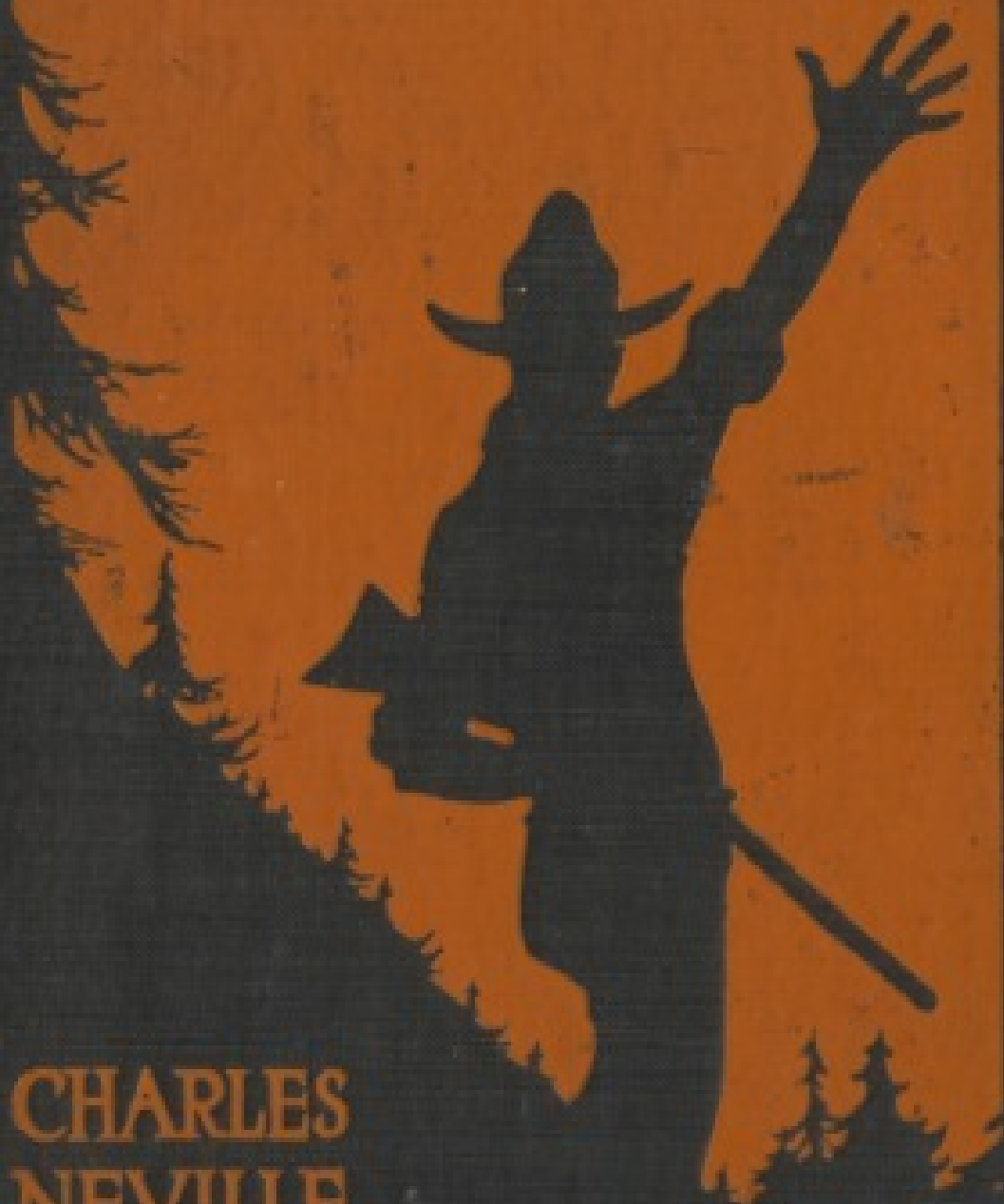


The CODE
of the
MOUNTAINS

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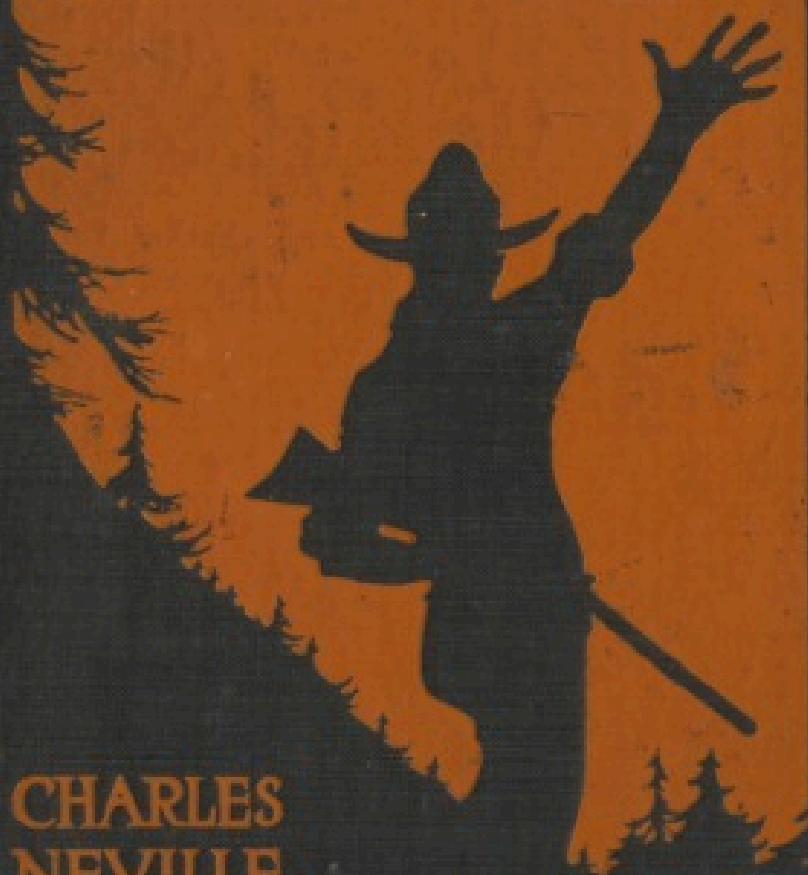
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*** START OF THE PROJECT GUTENBERG EBOOK THE CODE OF
THE MOUNTAINS ***

THE CODE OF THE MOUNTAINS

BY CHARLES NEVILLE BUCK

**AUTHOR OF THE CALL OF THE CUMBERLANDS, THE
BATTLE CRY, ETC.**

ILLUSTRATIONS BY
G. W. GAGE

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OTHER BOOKS BY
CHARLES NEVILLE BUCK

THE KEY TO YESTERDAY
THE LIGHTED MATCH
THE PORTAL OF DREAMS
THE CALL OF THE CUMBERLANDS
THE BATTLE CRY



"Newty," she said softly, "why don't you shake the dirt of this place offen your feet?"

THE CODE OF THE MOUNTAINS

CHAPTER I

This morning the boy from the forks of Troublesome Creek had back his name once more. It was not a distinguished name, nor one to be flaunted in pride of race or achievement. On the contrary, it was a synonym for violent law-breaking and in the homely parlance of the Cumberland ridges, where certain infractions are condoned, it stood for "pizen meanness." Generations of Spooners before him had taken up the surname and carried it like runners in a relay race—often into evil ways. Many had laid down their lives and name with abruptness and violence.

When the pioneers first set their feet into the Wilderness trail out of Virginia, some left because the vague hinterland west of the ridges placed them "beyond the law's pursuing."

Tradition said that of the latter class were the Spooners, but Newt Spooner had no occasion to probe the remote past for a record of turpitude. It lay before him inscribed in a round clerical hand on the ledger which the warden of the Frankfort Penitentiary was just closing. Though the Governor's clemency had expunged the red charge of murder set against his name at the tender age of eighteen, there was another record which the Governor could not erase. A sunken grave bore testimony in a steep mountainside burial-ground back in "Bloody Breathitt," where dead weed stalks rattled and tangled ropes of fox-grapes bore their fruit in due season.

However, even the name of Newt Spooner is a better thing than the Number 813, which for two years had been his designation within those gray and fortified walls along whose tops sentry-boxes punctuated the angles.

This morning he wore a suit of black clothes, the gift of the commonwealth, and his eyes were fixed rather avidly on a five-dollar note which the warden held tightly between his thumb and forefinger. Newt knew that the bill, too, was to be his. Yet the warden seemed needlessly deliberate in making the presentation. That functionary intended first to have something to say; something meant in all kindness, but as Newt waited, shifting his bulk uneasily from foot to foot, his narrowed eyes traveled with restlessness, and

his thin lips clamped themselves into a line indicative of neither gratitude nor penitence. The convict's thoughts for two years had been circling with uncomplicated directness about one focus. Newt Spooner had a fixed idea.

The office of the warden was not a cheery place. Its walls and desk and key-racks spoke suggestively of the business administered there. The warden tilted back in his swivel chair, and gazed at the forgiven, but unforgiving prisoner.

"Spooner," he began in that tone which all homilies have in common; "Spooner, you have been luckier than you had any reason to expect. It's up to you to see that I don't get you back here again."

He gazed sternly at the boy, for he was still a boy, despite the chalky and aged pallor of his face, despite the tight-clenched line of the thin lips, despite the stooping and emaciated shoulders. The Kentucky mountaineer withers into quick decay between prison walls, and, unless appearances were deceitful, this one was already being beckoned to by the specter of tuberculosis.

"You have been pardoned and restored to all civil rights by the Governor," went on the official. "Your youth and ill health appealed to some ladies who went through the prison. You are the youngest homicide we have here. They interceded because you were only an ignorant kid when you were drawn into this murder conspiracy."

Newt's eyes blazed evilly at the words, but he only clamped his mouth tighter. He would not have called it a murder conspiracy. To him it was merely "killin' a feller that needed killin'." "Since," continued the warden quietly, "you were full of white liquor, and since you had never had a chance to know much anyhow, those ladies got busy, and you have another chance. You ought to feel very grateful to them. It's up to you to prove that the experiment was worth the risk it involves—the risk of turning an assassin loose on society."

The boy from Troublesome said nothing. From his thin chest came a deep, racking cough. He spat on the floor, and wondered how long this man would hold back the five-dollar bill and prolong the interview.

"Well?" The warden's voice was impatient. "Don't you hear me talking to you? Haven't you got any sense of decent gratitude?"

A fiercely baleful wrath shot instinctively through Newt's gray hawk-like eyes and smoldered in their deep sockets, but there still was need to leash his anger—and conceal his purpose.

"I'm obleeged ter ye," he answered in a dead voice of mock humility, though his tongue ached to burst into profane denunciation, "but I hain't axed nobody ter do nothin'. I didn't 'low ter be beholden ter nobody."

"You are 'beholden' to everybody who has befriended you," retorted the warden with rising asperity. "Do you mean to go back to the mountains?"

At once there leaped into the released convict's mind a vision of being spied upon and thwarted in his purpose—a purpose which the law could not countenance. To cover his anger he fell into a fit of violent coughing, and, when he answered, it was with the crafty semblance of indecision.

"I 'lowed I mout go back an' see my kinfolks fer a spell."

"And after that?"

"I 'lowed," lied Spooner cautiously, "thet attar thet I'd go West."

"Now take a tip from me," commanded the warden, and, since he still held the five-dollar bill, the boy from Troublesome was forced to accord unwilling attention. "Every mountain man that goes away drifts eventually back to the mountains. God knows why they do it, but they do. You have just one chance of salvation. I had that in mind when I spoke to the Governor and asked him to include in your pardon a restoration of civil rights. If you get well enough to stand the physical examination, enlist in the army. Once in, you'll have to stay three years—and in three years a fellow can do a lot of thinking. It may make a man of you. If you don't take that tip I'll have you back here again—as sure as God made you—unless you get hanged instead."

The warden extended his hand containing the provision with which the commonwealth of Kentucky invited this human brandling to rehabilitate his

life. The mountaineer bent eagerly forward and clutched at the money with a wolfish haste of greed. Ten minutes later the prison gates swung outward.

The Frankfort Penitentiary sits on a hill looking down to a ragged town which straddles the Kentucky River. In the basin below somnolent streets spread away and lose themselves in glistening turnpikes between bluegrass farms where velvet lawns and shaded woodlands surround old mansions that mirror the charm and flavor of rural England. The state capital is a large village rather than a city, but to this boy who had known only the wild isolation of the Cumberlands, where sky-high ramparts have caught and arrested human development, Frankfort seemed a baffling metropolis. In the lumber-yards and distilleries that cluttered the steep river banks he saw only bewilderment and in the dome of the capitol the symbol of a power that had jailed him; that except for his youth would have hanged him.

One thing only he saw which struck a note of the nostalgic and brought a catch to his throat. That river had its headwaters in his own country. One branch flowed through his own county seat, and those knobs that hugged its banks and framed the straggling town under the singing June skies, were the little cousins of the mountains where his forefathers had lived their lives and fought their battles for a hundred years.

If he followed them long enough, they would mount from knobs to foothills and from foothills to peaks. The metaled turnpikes would dwindle and end in clay roads. These roads would in time give way to rougher trails, rock-strewn and licked by the little, whispering waters that make rivers, and he would travel by creek-bed ways over which wagons, if they go at all, must strain their axles and where men ride mules with their luggage in saddlebags. There forests of age-old oaks and spruce, pines and poplars and hickory and ash would troop down and smother in the hillsides, and the rhododendron would be in bloom just now. The laurel bushes would be all a-glisten and the elder tops would be tossing sprays of foam-like blossom between towering sentinels of rock.

But the beauties of the rugged home country had for him another meaning. At the roots of the laurel a man can crouch unseen with his rifle cradled against his shoulder to "lay-way" an enemy who has over-lived his time.

When he had a certain man in rifle-range, the rest would be elementally simple. He had spent more than two years thinking of that and evolving every needful plan in detail. There was now no need of haste. After all this thinking he could afford to consult his leisure and enjoy the pleasures of anticipation. When once the deed was done, as the warder had reminded him, there was the probable shadow of the gallows. But it should be said for the late Number 813 that in his reflections was no germ of vacillation or indecision. His one definite motive in life was what he deemed just reprisal. He was willing to pay for that without haggling over the cost, but he was not willing to defeat his end by hasty incaution.

He had been in prison over two years and was still very weak. He recognized with contempt the tremor of his hand. Once that hand had been so steady that all his squirrels fell from the hickories pierced through the head. It would be a little time before he could again command that nicety of rifle-craft. But now he must get home and home lay about a hundred and fifteen miles "over yon." He could reach Jackson by rail, but that would cost money, and there was ammunition to be bought and other matters of importance, and his capital was precisely five dollars. Besides, railroad trains were luxurious and effete; they were not for him. He would "jest natcherly take his foot in his hand and light out"—pausing only for a little "snack" to eat and a flask to cheer his journey.

He made his way slowly down into the center of the town: a town which had come to recognize at a glance these prison-given suits of black; these faces pasty with the pallor of confinement; this shamble fathered by the slouchy swing of the lock-step. For the June morning when No. 813 became again Newt Spooner was in the year 1897, and the ancient rigors of prison life still held.

Eyes turned curiously on the shambling derelict, but the only expression on Newt's face was one of surly defiance to the world. The only sentiment that stirred in his breast was such as might have brooded in the narrow and poisoned brain of a rattle-snake, lying close-coiled by the laurel roots along his native creek-beds.

Prisons are to reform and teach lessons of law. Newt Spooner had been in prison and was now out. He had already known how to hate, but now he

knew how to hate with a greater tensivity. Also, he had learned to cloak his animosity behind a craftier concealment.

He had grown up as a cub among wolf-like men, running with the pack. From his mother's shrunken breast he had drawn bitterness toward his foes and "meanness."

He remembered his boyhood surprise at the shocked face of the circuit rider when his father had laconically announced: "Stranger, thet thar boy's done drunk licker sence he was a baby. We weaned him on hit. Hit's good licker, 'cause we made hit ourselves—an' we hain't paid no damn' Gov'ment tax on hit, neither." But before him no Spooner had worn felon stripes, though many had been felons. That he had done so branded him with disgrace, and until he should remove that stigma by punishing the witness upon whose sworn word his conviction had been based, he must face the scorn of the battle-scarred members of the man-pack that still ranged free. So, as Newt Spooner turned his face homeward between sunny pasture lands and soft woodlands and golden grain fields and set his feet into the Lexington turnpike, young Henry Falkins became a man marked down for death.

CHAPTER II

Courts can not enforce laws upon which public opinion sets its embargo. The men of the mountains have lived isolated lives for a hundred years. They inhabit an island of medievalism entirely surrounded by civilization, but the civilization is no more a part of them than the water that surrounds an island is part of the island. "Leave us alone" has been the word of the hills to the gift-bearing Greeks of innovation. The right of men to settle their own quarrels after the method of the Scottish clans from whom they sprang, has been a thing which local courts have made only perfunctory efforts to deny—and which juries of the vicinage stubbornly refused to deny. Among their crude cabins one still hears phrases bequeathed by word of mouth from the England of Elizabeth and the Scotland of Mary Stuart. Immured behind their walls of sandstone, they have lived ignorantly—and fiercely.

Their peaks are heaped against the skies, and their fields are tilled with the hoe when mules and plows might fall down to destruction. With nature itself they pursue a constant and desperate quarrel for subsistence, and through generations of battle they have grown morose and sullen and vengeful and have lost all sense of life's humor.

But slowly the tide of outside influence is creeping in upon them and at the contact-points strangely anomalous conditions arise: the clash of incongruous centuries; the war between a stubborn old order and an inevitable new. In such a life there are here and there far-sighted men who, standing like great trees among stunted brethren, look out across a wider perspective with a surer vision.

The house of McAllister Falkins stands twenty miles from a railroad and is, for this crude environment, a mansion. It was built in the days when the first tide of pioneer life swept out of Virginia, and because it was, in that remote day, nearer kin to the culture of the Old Dominion than to the wilderness, it bore a strange blending of compromises between luxury and the exigency of the frontier.

The head of the house of Falkins, generation after generation, had clung to the old standards and old ideals. The children of this household had been reared like their cousins of Virginia and the bluegrass. Other branches of the family bearing the surname had gone to seed and lapsed into illiteracy. There were cousins who had to sign their names with cross-marks and who had been embroiled in savage animosities until the "Spooner-Falkins War" had become one of the sanguinary chapters of feudal history, but the head of the house had always stood apart and denounced the godless code of the vendetta.

And now the time was come when old McAllister Falkins could look ahead and begin to see the pale glow of a coming dawn. The railroads, whose surveyors and chain-bearers his neighbors had fought, were piercing and developing the hills. Here and there rose a circuit judge or a prosecuting attorney who dared to talk from an unterrified soul to grand and petit juries, and occasionally a panel harkened. District schools began to pass into the hands of teachers who could teach. In this place and that rose small colleges and the flickering blaze of enlightenment was struggling into a semblance of steadiness. McAllister Falkins had sent his son Henry away to school and college, and had had the satisfaction of seeing him return unspoiled.

The life of young Henry Falkins, therefore, had been cast both in and out of the Cumberlands, and he had reached the age of twenty-five with a minimum of enemies and a maximum of friends. His was the breadth of the lowlands and the unflinching strength of the hills. Then the lurking and inevitable shadow of that life had impalpably and suddenly fallen upon him.

When Bud Mortimer, a "marked man," riding home from Jackson, had slid from his horse and died in a creek-bed with a rifle-hole drilled through his chest, Falkins had been unlucky enough to have been squirrel-shooting near by and to have recognized one of three figures that left the open road and took cover in the laurel. By one of the strange chances of fate, Falkins, who was tramping the woods with no idea of concealment, had been unobserved, while the three assassins, crouching along with all their covert art of hiding out, had not quite escaped his eye. He had not heard the volley because the murder had taken place at a distance. He would not have suspected the men who passed casually below him with their rifles cradled in their elbows, had not a word or two, in the staccato voice of a youth who walked third in the

single file, come to his ears. These words were profanely triumphant and boastful of marksmanship. The other two men, the squirrel-hunter did not recognize. Still, Henry Falkins might not have known that the bull's-eye alluded to had been a human breast, and he did not know it till later.

When the dead man's friends had carried the matter to the courts, with no better evidence perhaps than the bad blood which they knew existed, and when young Newt Spooner, aged eighteen, but precocious in crime, stood at the bar, charged with murder, Henry Falkins told the prosecutor what he had seen. The prosecutor instructed him to keep his secret until he was called as a witness. He knew the conditions and recognized that, should this evidence come prematurely to the ears of the Spooners, he should probably not only lose valuable evidence, but also be saddled with another prosecution for murder—and just now his homicide docket was burdensomely heavy.

When their cub was indicted, the Spooner pack laughed. When he was haled into court, despite his callow years, he came with insolent confidence, as one above the law. He might have escaped and hidden out, since the court had allowed him bond, but that would have hampered his future freedom of action, so he preferred to go through the farce of a trial, and afterward be free.

He testified, and his alibi corps testified as one man, that he had been at Hazard, forty miles away, when Mortimer fell. The defense closed in sanguine trustfulness. Then, in rebuttal, the prosecution sprung a surprise—a sensation—a bomb. The surprise was Henry Falkins, and when he took the stand, the hand-made alibi collapsed. Even then Newt Spooner had not been able to realize that the convincing story of one witness could destroy his carefully fabricated tissue of lies. But sundry unexpected things were happening in this dingy court-room. A new spirit reigned there. Vaguely the sullen lad, crouching back in the prisoner's chair, was aware of a hardening and petrifying resolve on the rugged faces in the jury-box. Heretofore the average venireman had thought there was no health in incurring the wrath of a family of terrorists like the Spooners. Heretofore Spooners had always "come cl'ar." Heretofore prosecutors had made only perfunctory attempts to convict them. Not so with the Honorable Cale Floyd. From opening statement to closing argument he leaped savagely at the throat of the defense. His cross-examination was a merciless hail of verbal rifle-fire. As

he defied all the vicious animosities of the Spooner tribe, the court-room held its breath, and young Newt waited vainly for his kinsmen to rise *en masse* and silence his anathemas with a volley. Each night in his cell, young Newt Spooner wondered why he did not hear a sound outside the brick "jail-house," and see the doors go down before the wrath of his rescuers. It was incredible that the clan should stand by and permit him to be "penitentiared." Yet it finally dawned upon him that precisely this thing was happening. The realization had dazed and embittered him. He knew that even among his own he was not accounted as of great importance, but he bore the name of Spooner, and in the old days that would have been enough. He was the first sacrifice to the changing order. He felt no resentment against the prosecutor in spite of his philippics. The prosecutor was paid to do it. He even rather admired the courage which gave strength to the attack, when every precedent told the lawyer that he was inviting death for his pains. But for the man who had volunteered to testify; who belonged to the family which his family had hated and fought; who had come back to the mountains with "fotched-on" ideas and attacked him with the despised weapon of the law; for that man he felt such hatred as can only come of festering and venomous brooding, which lasts while life lasts.

These thoughts Newt Spooner carried as companions as he tramped the first leg of his homeward journey. Until he had come to Frankfort, hand-cuffed to a deputy sheriff, he had never seen this land of "down below." Its softly billowing landscape was to him unfamiliar and unpleasing. The great columned mansions of time-stained brick set deep in park-like woodlands; the smoothness of velvet lawns; rippling acres of grain ripening into gold under the June sun; all these things wore on his nerves. He was accustomed to a country shut in and sequestered between eternal hills; of roads where footfalls were silenced; of ragged patches of cultivation pocketed in surrounding forests. In such places a man could step aside and be hidden. Here he felt exposed; his very thoughts seemed naked. That men should live in such great houses and drive such smooth roads seemed monstrous and incredible. He hated the "highfalutin" bearing of these "furriners," who carried their chins aloft like masters of creation. He hated the sight of the "niggers" who served them. He hated all the orderly smoothness and opulence of this level land where no ridges broke the sky. So he stalked

along, his face set toward the far horizon, beyond which lay his mountains and his purpose.

It was a slow journey, for he was weak, but as he breathed the June air into his cramped lungs, his shoulders began to lose their slouch and his gait began to discard its prison shuffle for the long space-eating stride of the mountaineer.

At twilight, he came to a small house by the roadside. He had made a poor day's journey and, since night was falling, he turned in at the gate, as though it had been that of his own cabin. The place was shabby and its residents would have been characterized by the negroes as "po' white trash," but of social values the late Number 813 was ignorant. He saw only a roof and to the hills-man a roof is a shelter for whosoever may need it. Over the whitewashed fence clambering roses hung in profuse invitation, spicing the air with their fragrance.

Newt made his way to the door where a slatternly woman confronted him. She stared with disapproving eyes as she wiped her hands on her apron.

"Well, what do you want?" she challenged.

"I 'lowed ye'd let me stay all night—I'm a travelin'," replied the boy from Troublesome. He spoke simply and without cumbersome explanation. At home it would have been enough. But this woman only stared at him disapprovingly and as she took in his sullen visage and dusty suit of black, she recognized in him the erstwhile convict. With a suppressed scream she disappeared indoors.

Newt stood gazing without comprehension. That he might be turned away had not at first occurred to him. He had not yet grasped the essential differences between highland and lowland etiquette. He accordingly mounted the steps, crossed the porch and entered the door without knocking. In the mountains no one knocks on a door.

But at the threshold he met a tall man, who thrust him violently backward and squared himself across the opening. As Newt staggered backward and brought himself up against one of the porch supports, the householder surveyed him from crown to toe, and then, waving a hand outward, ordered briefly:

"Get the hell out of here, you damned jail-bird!"

For an instant the pardoned prisoner stood rigidly at gaze, while his eyes gathered wrath and his ugly snarl became wolf-like. Never had he been so greeted when claiming the traveler's prerogative of shelter from the night. But he was unarmed; moreover, he had a mission. He was going to kill one man. Killing men was expensive. It cost liberty and sometimes more. He could not waste animosity. So he veiled his anger and turned away. "I didn't 'low hit war a-goin' ter make ye mad," he mumbled as he went out again to the road. But he had learned his lesson. The mountaineer is as proud as he is ignorant, and, rather than risk another rebuff, he spent the night in a haystack, and the first rosy kindling of dawn found him again on his way; hungry, but setting his face stonily against the temptation to ask food.

The town of Winchester, like all the county seats of central Kentucky, breaks from its drowsy somnolence into a brief activity on court-day. On one Monday in each month the roads fill with an unaccustomed caravan of trade. Then under the hammer of the street auctioneer farm gear and live stock change hands; saloons and eating-houses do a banner business; politicians often harangue in the court-house square; friends renew old acquaintanceships and sometimes enemies renew old quarrels. But Winchester differs in one respect from its sister towns. The savor of a soil rich in chivalric traditions hangs here as it does over neighboring counties, and yet there is a difference. For Winchester is the nearest town of consequence to that foothilled borderland where the opulent bluegrass ends and the illiterate Cumberlands pile their grim ramparts. Here come the farther-wandering traders from the mountains; gaunt men with steady-gazing eyes and lean sinews and noiseless tread, to mingle with the louder-spoken and fuller-nourished brothers of the lowlands. It is on court-day that they come in greatest numbers. Here, too, live some of their own kin whom the menace of feudal reprisal has driven from their native slopes and "coves." With the mountaineer's strong yearning to remain as near as possible to his birthplace, these refugees have made new homes and new lives at the edge of the bluegrass where on occasion they can again see familiar faces. From Frankfort to Winchester is a matter of almost fifty

miles, and Newt Spooner, who had taken up his homeward journey on a Saturday morning, saw its court-house cupola and church spires pierce the screen of foliage on the forenoon of Monday, which chanced to be the Monday allotted to Clark County for its court.

Newt was very tired and very hungry. His rebuff at the farmhouse had festered and rankled in his mind, and he had refused to ask hospitality again or to speak to any man, save for the curt asking of necessary directions. In Lexington he had bought himself a "snack," but because he was penuriously hoarding his small capital, he spent with a stinting hand and pushed onward unsatisfied.

Now, as he trudged wearily, he saw a figure by the roadside at his front. The figure was that of a negro, who sat on a rock pile in the sun, hammering limestone chunks into road metal. As the boy came nearer, he saw another detail. The black man, though unguarded, was a prisoner and he sat safe against the chance of escape by reason of the huge iron ball fastened to one ankle by a padlocked chain. The white man, himself so lately released from the penitentiary, halted. He had the mountaineer's chronic aversion to "niggers," but here was someone whom he could question and who was in no position to insult him.

"How fur mout hit be ter Winchester?" he demanded.

The negro, welcoming interruption and conversation, turned with his granite-headed hammer poised over a piece of limestone.

"It's a right-smart piece, if a man's leg-weary. It's about a mile, boss," he said.

A mile to the hills-man is nothing; a mere "whoop and a holler," yet now it seemed to the ex-convict as his informant said, "a right-smart piece." The glow which spotted his pallid face at the cheekbones told of a temperature. Through his limbs went a dull ache. From time to time he coughed. Finally the negro laid aside his rock-hammer, and gazed long and inquiringly at his silent visitor. He, too, recognized the state-bestowed clothing and its meaning.

"'Scuse me, boss," he suggested, "but yer done come from Frankfort, ain't yer?"

Newt Spooner nodded, but his eyes narrowed, discouraging interrogation.

"Was yer—was yer in de pen'tenshery, boss?"

The man chained to his rock pile doubted the wisdom of his question, but African inquisitiveness had mastered his better judgment.

Instantly he recognized his mistake. The boy from Troublesome was at once on his feet and his sallow face was distorted with anger. From his lips came profane volleys of abuse. Transported by rage, he took a step forward with clenched fists. The negro clambered to his feet, and, since he was anchored against flight, backed away defensively, waving his rock hammer.

Newt Spooner selected a huge fragment of the scaly limestone, and withdrew just beyond the range of hammer and chain; but as the negro, in a paroxysm of terror, fell pleadingly to his knees, he dropped the missile at his side.

"I hain't a-goin' ter bust in yore damned black head," he said in slow wrath, "because I got another job ter do. Thet's ther only reason why I hain't a-goin' ter kill ye." Then he turned into the road and took up his journey again.

Back there in the fastnesses of the hills, toward which he was making his way, the leaven of change was beginning to work, yeast-like. When he reached his destination he was to learn with surprise that he could not take up without interruption the story of his life: the story out of which pages standing for two years had been torn. Births and deaths and the giving in marriage were not the only things that had happened. Quietly a new agent had entered in; the agent of a patient spirit of education. This spirit came burning in the hearts of men and women from below, who realized that they must breast stubborn opposition and that they must adapt their methods to the life they sought to change. They must plant and nourish the new idea in the younger minds and they must not seek to alter in a twinkling a régime that had long been immutable.

But buried deep in the forestry of the tangled hills, far back from a railroad stood a group of buildings that seemed miracle-reared. They were stanch buildings of square-hewn logs, which in contrast to the ramshackle huts about them appeared to have been lifted from another world and transported on the winds of some benevolent cyclone. It was difficult to think of these houses as having been raised from solid foundation to level ridgepole so far from the facilities of transportation. Yet here in the wilderness stood the "college."

It was no vaunting boastfulness that had inspired the almost fanatical men and women who stood as sponsors for the enterprise to give so high-sounding a name to the institution which taught kindergarten and primary classes. Some day, they hoped, it might grow up to its title, and meanwhile there were gray-beards and wrinkled women who sought to study primer and multiplication-table, but whose pride would bar them from advantages undignified by the name of college.

On the spring morning when Newt Spooner was trudging homeward, Doctor Murray, who had slowly and courageously turned his dream into a reality, sat in the study of the college. There was a smile on his lips, and the square-jawed face, which escaped all trace of the pedagogic, was contented. The sun streamed in through his windows and lighted a room finished in wainscoting of oak and maple—sawed at the mill, which was part of the institution and which he could see from his window, when he looked down.

Above, when he cast his eyes in that direction through another window, nestled the small hospital, where barbaric methods of local surgery were being altered. But, best of all, there came to his ears laughter and shouts from the trim campus where boys and girls were at play: boys and girls who until they had come here, had known little about laughter and much about drudgery. And every peal of mirth was a challenge to the old order of hatred and the ancient thralldom of sullenness.

A girl came into the room and laid some papers on his desk, and the doctor nodded at her with a smile.

"Minerva," he said, "I'm afraid you are working too hard. One doesn't have to learn everything at once, you know."

The pupil flushed and stood for a moment silent. She was straight and lithe, and under the blue calico dress that was turned down at her neck, her throat was brown with a tan through which a petal-like color glowed. Her brown hair glistened with the glint of polished mahogany, and her eyes struck the doctor as eyes meant for mirth, though they had hardly learned to laugh. The deadly seriousness of the hills and the Calvinistic seriousness that makes martyrs, seemed to hold in bondage a spirit that nature had intended to radiate gaiety. Her fingers drew themselves together into fists, and after a moment she spoke slowly, and her speech was a strange blending of the illiterate argot of the hills and a conscious effort to speak in the phrases dictated by the education which she coveted.

"I reckon ye don't hardly know how much I've got to learn," she said. "I reckon ye don't realize how plumb ign'rant I am."

Suddenly her voice became passionate.

"Maybe ye don't know how I hate it all—how I want to get away from ign'rance an' dirt an' wickedness. I've been wonderin' if I didn't err in comin' here. It's just makin' me hate that cabin over yon—I mean over there—on Troublesome. Sometimes I think it can't hardly do nothin'—do anything—but make me dissatisfied."

The head of the school looked up, and his face grew grave.

"There are times," he said, "when that thought comes to me, too. I don't mean as to you, Minerva, alone, but as to all those we take here and teach. At first it was all a dream of bringing a light to a place that was dark. That was the only phase I saw. But later I saw more. One can't make a dream a reality without struggle. Dissatisfaction is the price we must pay for regeneration—and people like you and myself must be among the first to pay it."

"Over there," she went on, as though talking to herself, "they only hates me for it. They says I'm stuck on myself an' that what's been good enough for my folks for all time ain't good enough for me no more—I mean any more."

"It takes time," the man reassured her. "In the place of ignorance, we offer education. In the place of lawlessness, we offer law. In the place of squalor, we offer thrift. Are those things not worth what they cost?"

The girl stood silent for a moment, then nodded her head.

"I reckon so," she answered simply, and turned to leave the library. After she had gone, the teacher sat for a time with his book open before him, but his eyes were contemplative, and it was from memory and not from the printed page that he was reading.

He was thinking back and seeing over again a day shortly after his school had opened. In those times there had been fewer buildings, and of the many pupils who came, hungry to learn, only a few could be taken in. Among the first had been Minerva.

She had come exhausted and tired because she had come on foot, and her mean calico dress had been briar-torn, and her feet, which were bare, had been bruised. But in her eyes was gleaming a passion of hunger and resolve for the food which the school offered the mind. She had presented herself, a ragged little mendicant asking the alms of education, carrying what belongings she had in such a bundle as tramps carry.

Back in her unlighted and windowless cabin, she had heard of this "new-fangled" institution where was to be dispensed the pabulum of "larnin'"—and she had made her pilgrimage. Now Doctor Murray was recalling that day. He had been down by the stile which gave entrance from the creek-bed road, when he had seen the slight figure trudging along, and the girl had stopped and eyed him shyly.

"Air ye the feller frum down below what aims ter give folks larnin'?" she had demanded, as her large eyes held his with a tense directness, untinged by any humor.

"To give folks learning is a large contract," he had answered with a quizzical smile; "but we hope to give to as many as we can, at least its rudiments."

"What's them?"

"The start. Have you ever been to school at all?"

"I've done been ter the blab-school. I kin read an' write an' figger."

Dr. Murray had stood there looking at her, and it had come to him that she made a very pathetic picture, with the yearning in her eyes and the dust of travel on her calico, so he denied her with a heavy heart.

"Just now," he said regretfully, "we can only take in a few pupils and we are already over-crowded. I'm afraid we can't make room for you." Suddenly he added, "How far have you come?"

"The rise of twenty mile, sence sun-up," she informed him simply, then tears welled rebelliously into her eyes. Her voice broke from her lips with a fierce passionateness.

"Ye've got ter take me," she cried out. "Ye've jest simply got ter take me. I've done been prayin' ter God Almighty ter give me a chanst. I've done heerd that ye war a preacher of ther Gospel, an' I reckon God hain't a-goin' ter suffer ye ter turn me away."

Doctor Murray had then been new to the hills. The storm-like intensity of the mountain character was bringing him its revelations. He stood there by the road, watching the ox-teams that were bringing logs in to his saw-mill and made rapid calculations and as he did so he heard the new candidate for matriculation rushing on:

"Ther Scripters says thet God's servant won't turn away sich as comes to him seeking light—an' I've done come."

"At all events," he answered gently, "come up and have something to eat, and I'll talk it over with my wife."

Mrs. Murray had spent a half-hour with the girl, and then had come back to her husband.

"She is as wild as a squirrel," was her announcement, "but I have never seen such a starving heart or brain. I don't know what we shall do with her, but we must let her stay." And so Minerva had stayed.

Now she went out of the library, and made her way to a favorite spot up on the hillside. It was a study hour, and she carried a book with her. The time she had spent here had wrought a transformation. The brain had unfolded and the heart had become unplaced. The terms of this school adapted

themselves to the needs of the environment. They did not conflict with the nearer demands of farm work, but accommodated themselves to necessity. When the frequent vacations came, Minerva went back to the cabin which she called her home. Each of these visits she dreaded.

Mountain reserve is hard to break. Even in her tempestuous appeal to the head of the school, she had not told her full story. Now she was thinking of it.

Mountain women grow old while they are yet young, but her mother had seemed to her different. Mountain women are grave with a gravity which is more than half sullen, but she remembered a mother who had laughed and whose voice had been often raised in song. Then when she was still very small, she remembered one of those rude mountain funerals where those who come raise their voices in a weird incantation of "mourning," which they leave off for gossip as soon as the period set aside for the clamor comes to its end. After that she had been motherless and had kept house for a shiftless and surly father. That house-keeping had been simple enough in the shack of one room, but it had been unrelieved drudgery, and because she was one of those human beings who are less near of kinship to the members of the family with whom they live than with some far-off ancestor whose nature is strangely duplicated, Minerva had always had longings for things which were to her undefined dreams. Her nature had always been in insurrection against the squalid facts of her life. Her inclinations and thoughts struck back, by one of Nature's practical jokes, to some woman who had been a lady in the courtly life of Virginia a century, or maybe two centuries, ago, before her ancestors became stranded pioneers and lapsed into illiteracy, degeneracy and venal sloth here in the hard hills. What this all meant she had not known, but she knew that one memory alone was sweet to her thoughts, and that that was the memory of her mother. She knew, too, that even before they had taught her at the college how perverted it all was, this whole scheme of mountain feudalism and black ignorance and bitterness had seemed to her wrong and repugnant. Something had told her that somewhere there must be something different and that somehow she must find it and weave it into the pattern of her life. Of these things she had thought as she sat in the summer evenings on the slab bench before the cabin door. In summer there was a great pine, which, just after twilight had faded into velvet blackness in the sky, pointed an index upward beyond the

valley; and over it, before the other stars came out there always appeared a tiny point of light, which she chose to call her star. Somehow, it seemed that in some vague future day that star would lead her.

She was often alone, for her father would leave her there and go his own ways, but a day came when he returned and began throwing his few possessions into a bundle.

"M'nervy," he said with a sullen sort of embarrassment, "I reckon thar's times when ye gits right-smart lonesome way up hyar, hain't thar?"

A catch had come into her voice as she said:

"Right often, Pappy."

He nodded, then added abruptly:

"Waal, we're ergwine ter nail up thet door ternight an' quit this-hyar place."

"Whar air we a-goin' ter?"

"I done got myarried terday," he announced. "I reckon we'll go down an' dwell with my wife's folks."

The sun was nearing the western peaks and the afternoon was well spent. The girl had had no intimation in advance of this contemplated change of order. She stood there stunned. Life had been empty enough, but here at least she had been in a fashion mistress of the wretched house, and here she had had her pine tree and her star, which were the emblems of her dreams.

A long, low moan escaped her, and her father's face reddened in anger. He turned away and left her, going into the house, and she fled precipitately to the heights above and sobbed out her misery at the roots of the pine to which she was bidding farewell.

Then they had moved, and life had meant fitting herself into a new family, no member of which liked her, and submitting to the shrewish heckling of a step-mother, who seemed to her a hideous libel upon the memory of the woman who had been lucky enough to die young.

Now, as she sat with her book in her lap, because in a few days she must go back to that cabin, the past was parading in review before her eyes, and though she was very hungry for "larnin'" she was neglecting her books.

CHAPTER III

The late convict had wasted his strength. His violent paroxysm of anger had exhausted him more than his laborious tramp. It had sent his temperature up and brought a sickening weakness to his muscles. He wavered as he plodded and once or twice even stumbled to his knees, until at last, with only three-quarters of a mile left, he turned aside to the bank of the roadside and sat down with the sweat of weakness dripping from his face.

It was such a day as must have set poets to making jeweled phrases out of words. The air and skies held that radiance which can make of a Kentucky June morning a miracle of beauty. The horizons were dreamily soft and warm. In the field at Newt Spooner's back a meadow-lark was madly trying to burst his pulsating throat with the flood of golden joy. In Newt Spooner's mind was a somber picture; a picture of the mountains which a few days more would throw across the eastern sky-line, and of a man who lived there and who was to die. He was to die without opportunity to defend himself and without benefit of clergy. It was not to be a fight, but an execution. In the entire mental range of the young man panting by the roadside was no reflex of any other thing than brute bitterness and "pizen meanness."

A buggy and horse rose into view over the crest of the hill. It had only one occupant and the occupant was a girl. She was unlike any woman Newt Spooner had ever known; unlike any of the "gals" back in the mountains. Her lithe figure had all the fresh charm of the sparkling morning and all the spirited quality of the thorough-bred. And just as to Newt Spooner the world held only gall, so to her it held only fragrance and music and starshine—and an abiding faith in men and women.

She was happy because she had not yet discovered any unhappiness and because she was young ... and because to-day she would see in Winchester a certain member of the opposite sex in whom her interest was direct and personal. Meantime, June was softly glowing around the whole circle of the sky's embrace and the trees were rustling their fresh greenery and the birds were singing.

She was singing, too, but suddenly she stopped as her eyes fell on the young man by the roadside. Her quick gaze discerned that he was desperately thin and that the color in his face burned only in hectic spots against a chalky pallor. She saw, too, that as he wiped his forehead on his sleeve his forearm and hand trembled. His clothes proclaimed him lately released from the penitentiary, but her ideas on the subject of prisons were vaguely confined to a compassionate regret that they existed. Quite probably had she found him there looking weak and sick even had he worn stripes, she would still have offered him help. She drew the horse to a standstill, and called out cheerfully in a voice as tuneful as the lark over yonder in the field:

"Good-morning. Can't I give you a lift?"

Newt Spooner gazed back at her sullenly and defiantly. The dog that has only been kicked distrusts the hand thrust out in kindness. It is unknown to his experience.

"Naw," he declined, with as surly an utterance as possible.

The girl flushed and her lips tightened. She flung back her head with a gesture that set truant curls tantalizingly astir and flapped the reins on the horse's back, but in quick afterthought she drew him down again. This boy's rudeness did not alter the fact that he was sick. He looked like a mountaineer and could hardly be expected to measure up to the bluegrass requirements of courtesy.

"You're about as polite as—as a mud-turtle," she calmly informed the traveler, holding his eyes with an unflinching gaze, before which they shamefacedly drooped; "but that doesn't make any difference. I'm going into Winchester, and you don't look very well. Hadn't you better get in and ride to town?"

The boy from Troublesome stared his incredulity. She seemed to him a marvelous sort of being. Her simple dress was to his eyes extravagantly elegant and her patrician delicacy of feature belonged to an order which neither the drudgery of the hills nor that of the state prison had given him opportunity to study.

"I reckon," he said slowly and diffidently, but no longer with a note of bitterness, "hit hain't wuth while to pester ye."

"That's all right," she commanded. "Climb in." Slowly he rose and obeyed, the whiskey-flask protruding from his coat-pocket, and when they had gone a quarter of a mile, Newt made his sole voluntary contribution to the conversation.

"I'm obleeged ter ye," he said.

She did not question him unduly, nor ply him with conversation, but she smiled, and in some subtle fashion there broke through the storm-wrack of the boy's bitterness a thin ray of light and glow of graciousness. She let him out at the court-house square, where buggies stood in rows and traders jostled and the auctioneer's shout resounded, and there he lost himself in the crowd; but first he stood looking after her until her buggy turned a corner, and then he remembered that she had nodded with a friendly smile of farewell. It was rather wonderful to be treated like a human being.

Newt Spooner wanted food and he wanted it to be cheap, so he foraged up and down Main Street until he came upon that lower section where several shabby eating-houses were sandwiched between equally shabby saloons.

And while he stood on the pavement undecided which way to turn, a hand was laid on his shoulder, and he wheeled, startled, to find himself gazing into the face of his kinsman, Red Newton.

"Come hyar," commanded the older man. "I done heered thet ye was pardoned out, an' I sorter 'lowed ye'd be making tracks fer ther mountings. I wants ter have talk with ye afore ye goes back."

"I aims ter git a snack ter eat," demurred Newt. "I hain't a-goin' ter talk ter no man afore I eats."

The other nodded.

"I knows a place whar we kin eat an' talk, too. Fult Cawsler hes done moved hyar from over on Squabble Creek, an' opened a resteraw. All our folks eats thar."

The youth, who had three days before been Number 813, permitted himself to be led through an uninviting doorway around which stood several gaunt men in mud-spattered clothes. But Red Newton did not suffer him to halt at any of those tables, covered with red oil-cloth, where several taciturn pilgrims from the hills were feeding themselves from the blades of their knives. Instead he whispered something to Fult Cawsler himself, and was permitted to climb a narrow stairway at the back. At its head they traversed a narrow hall and came into a separate room where around a private table were seated a group of men whom the boy knew. Old Jason Dode was, as usual, tipsy and, even as the new-comers entered, was tilting the bottle of "red licker" which he unwillingly substituted for the white and sweetish moonshine of his native stills. But the important thing was that Black Pete Spooner stood gazing out of the open window, though he stood back far enough to escape the eyes of passers-by below. His hands were thrust deep in his pockets and on his face was the same expression that always sat there. Few people passed Black Pete by without turning to look again. He stood somewhat upward of six feet and his broad shoulders tapered to a gauntness of waist and leg which gave him the suggestion of a timber wedge. He was as tough as that lumberman's implement and wedgelike, too, in his power of disrupting the dividing elements which, but for him, might have hung together in harmony.

His dark head he carried high-flung with a swing of independence, and that head, even more than the physique, caught and challenged attention.

Black Pete's face was rather narrow and rather long, but its brow was high, its nose strong and regular, and its chin had that square-blocked declaration of resoluteness which commands respect. Under brows black and bushy gazed out eyes that were the dominating feature. They were as clear and penetrating as crystal lenses, and in them dwelt a sober, almost sad contemplativeness as though the brain behind them were habitually gazing off beyond horizons that limited other visions. They were eyes that seemed able to pierce the opaque things of life. The hair curled crisply in glistening black, about the forehead and neck, and over the firm mouth a black mustache fell drooping in long ends. It was a face that hinted at no violence, though at great strength and determination. Rather was it suggestive of melancholy thought, and it had won for him the satiric title of the "Deacon."

As Red Newton and Newt Spooner came into the room, Black Pete turned his glance for a moment upon them, then wheeled again to the window with no apparent interest in their presence or existence. His face remained as wistfully distracted as though he were a minister preparing a discourse, on a text which lay very near his heart. But Newt, having seen him, continued to stare. His eyes narrowed. He knew that several years ago, before he had himself become a felon, the Deacon had gone West—where he did not know. But he did know that only so long as this man remained away from the county could there be hope of even comparative peace between the Spooners and the Falkinses. So dreaded was the quiet-visaged intriguer, so unalterably given to violence and the taking of lives, that his exile had been the condition precedent to all negotiations for truces and peace. Now Black Pete was back. Obviously, the meeting in Cawsler's "resteraw," seventy miles from home, held some portent beyond the casual.

They brought the newest prodigal food, and, while he devoured it, bolting it with wolfish hunger, he also picked up the loose ends of talk and began to understand the situation. There had been an election down in his section since Newt's conviction—an election and some other things, which Red Newton briefly summarized as "merry hell." The "penitentiarying" of Newt himself had been only the inaugural of more sweeping and hateful innovations. Three times the old blood-feud had broken into sporadic outbursts, and three men had been shot. But what most galled was the fact that the commonwealth's attorney had shown a hound-like nose for evidence and that all of the accused clansmen had been viciously prosecuted.

A truce had been patched, by the terms of which Jake Falerin, a cousin of McAllister Falkins and the leader of the militant Falkinses, had agreed to leave the hills and remove the menace of his disturbing influence. He had gone only as far as Winchester, and, from councils held there with visiting Falkinses, was as dangerous as though he had remained at home, even while his own life was safer. The Spooners had decided that this half-compliance was a practical breach of the truce, and in accordance with that theory the Deacon had come home. At least, he had come this far. In the meanwhile, the Honorable Cale Floyd, commonwealth's attorney, had reaped the gratitude of his constituency. Because he had waged relentless war on lawlessness and had begun to show incipient symptoms of victory,

he was defeated for reëlection. Sick of the futility of such endeavor, he had closed the bare law-office before which his shingle had swung in Jackson, and had come to Winchester, where the field was larger and where men were more appreciative of the qualities and principles for which he stood. He was the man who had put stripes on Newt, and who, had he remained in office long enough, would have made the pattern a family apparel for other Spooners.

"That's how things stands, Newt," summarized Red, turning to the new arrival, "an' that's what I 'lowed ye'd better know about afore ye went back home."

"An' them damned fellers, Jake Falerin an' Cale Floyd, is a settin' over thar somewhars in this-hyar town right now, a-brewin' of more deviltry," enlightened old Jason Dode in a hiccupy voice, "an' because they hain't in the mountings, they 'lows they kin go right on with hit. We don't 'low they kin."

The "Deacon" turned from the window, and strolled toward the table. Newt, having appeased his hunger, was wiping his mouth on the spotted tablecloth. The dark giant fixed him with thoughtful eyes. When he spoke, his voice was in contrast with those of his fellows, for his life in the West had almost freed it from drawl and vernacular, and he spoke with a quiet graveness.

"Son, this Cale Floyd is the same lawyer that sent you to prison."

Newt's eyes flashed.

"I reckon I hain't fergot thet," he said shortly.

Black Pete nodded sympathetically, and went on with the same grave intonation.

"I reckon you wouldn't mind much if he got his dues?"

"He's ergwine ter git his'n," asserted old Jason, his bloodshot eyes wickedly aflare. "He's ergwine ter git his'n this day afore sundown. An' Jake Falerin's ergwine ter git his'n, too. Them two fellers'll be in hell ternight."

"Shut the old fool up," suggested the Deacon passively; "he'll be shouting that out in the street after one more swig of liquor." Then he turned to Newt again.

"If Floyd isn't taken care of, son, the next commonwealth's attorney will follow right after him. We've got to give a lesson an' a warning. Do you understand?"

"I reckon I do," replied the ex-convict, but he spoke without ardor.

"This evenin' about half-past four o'clock," proceeded Black Pete, "Mister Lawyer Floyd is going to make a speech in front of the court-house. There'll be a crowd, and we figure that Falerin will be there, too. Our boys will get up close. Some of them will start a fight amongst themselves, and I reckon they'll pull guns. Mr. Floyd an' Mr. Falerin are apt to get accidentally shot."

Newt Spooner rose, and stretched his arms. His food and rest had refreshed him, and the red spots had gone out of his cheeks.

"What for," he inquired coolly, "air ye a-tellin' me all this-hyar business?"

The Deacon's grave eyes clouded, but otherwise his expression did not change.

"We figured you'd be interested, son. You were the first Spooner they ever put behind penitentiary bars. This man did it. We figured that when we came to punish these fellers—" He broke off with a shrug of his shoulders.

"Ye 'lowed ye mout git me ter kill 'em?" Newt spoke with absolutely no betrayal of interest.

"Jest the lawyer, Newt," interpolated Red Newton ingratiatingly. "He's your'n. Hit's yore right ter punish him."

The late convict wheeled on the speaker, and his face blackened and lowered.

"The hell hit is!" he screamed. "I hain't aholden nothin' 'g'inst ther lawyer. He didn't do nothin' but what he had a license ter do. I knows who I'm atter. You folks wants two men killed, an' you wants me ter be ther feller ter go

ter the penitentiary fer doin' hit. What the hell did any of ye do fer me last time? What the hell do I owe any of ye, wuth goin' back thar fer?"

For a moment, a general silence of dazed astonishment followed the outburst. It was the Deacon who broke it at last.

"All right, son," he said almost gently. "Every man accordin' to his lights. I reckon you ain't goin' to tell anybody what you've heard?"

Newt snorted contemptuously.

"I reckon ye knows thar hain't no danger of *thet*." "Hit 'pears like," interposed Red Newton with an apologetic shrug to the others, "hit 'pears like the penitenshery hes done broke ther boy's sperit. Some folks is thet-away, but hit don't hardly seem like no Spooner."

Newt wheeled on him.

"Thet's a low-down lie," he stormed. "Nothin' hain't broke my sperit. I hain't scairt of them, ner of you, ner of hell! I knows what I'm atter. Thar's a feller I'm ergwine ter kill, but hit hain't this one. I'm tendin' ter my own business?—not your'n. You-all got me inter one killin', an' not a blame one of ye stood by me atterwards. Now all of ye kin go ter hell!"

He glared around the group for a moment and left the house, and no one made an effort to stop him. Newt meant to take up his journey within an hour or two. He, too, had a vengeance planned, but the man he sought was back there in the mountains, and there was no use in "foolin' away time an' money here."

Yet an hour later he walked past the court-house and the large hotel just beyond it, and abruptly, opposite the hotel door, he halted. He had seen a buggy drive up and stop, and in the buggy was the girl who had brought him to town. He had forgotten her, but now he paused across the street and stood gazing. He gazed simply because she was the first living soul who had ever been kind or gracious to him, and, precisely as the blind man may feel the sunlight and know that it is pleasant, he glowed dumbly under the remembrance of her smile.

Then as he stood looking, a young man came out of the hotel with his hat lifted and his face smiling. In his eyes was an expression easy to read, an eager, glad welcome as he crossed the pavement with extended hand and climbed into the buggy beside the girl. The young man was well dressed and bore himself like a gentleman, yet he was a mountaineer by parentage and birth.

Newt's posture stiffened into rigidity. The color left his face and his eyes began to burn balefully.... He had just recognized Henry Falkins.

For an instant, the erstwhile convict stood paralyzed with astonishment, then the blood in his arteries began pounding a fanfare of triumph. Wheeling, he went rapidly toward the restaurant of Mr. Cawsler. There he would find some of the clansmen, and one of them could lend him a pistol. If they refused, he would ravish a weapon from them with his bare hands. After that, if they let him have ten minutes for his own, he would join them in any schemes, conspiracies or crimes that interested them. For him, ten minutes would be sufficient. His walk broke into a trot at which the passers-by laughed. A yokel in a hurry is always amusing.

CHAPTER IV

A group of shabby men lounging in front of Fult Cawsler's restaurant paid scant attention to a wild-eyed youth who came down the street at a run and dashed into the door. Newt found the dining-room on the main floor empty save for a weary and untidy woman who was clearing away the china of the mid-day trade, and Fult Cawsler himself, whose bulky figure was just then disappearing up the stairs. The boy stood for a moment anxiously gazing about the place with its oil-cloth table-covers and its gaudy wall calendars, then dashed pell-mell after the climbing restaurateur. The woman called to him in high-pitched and raucous prohibition, but Newt Spooner went heedlessly on his way. At the head of the stairs in the murky hallway Cawsler turned, and without at once recognizing the on-rushing invader wheeled belligerently to face him.

The plans which had been hatched in his place that day were not such as would enhance his reputation as a law-abiding tradesman should they come to general knowledge. As the proprietor blocked the way, his voice carried the ring of asperity.

"What in hell air ye makin' such a furss about?"

"Hit's me, hit's Newt Spooner," volleyed the unarmed avenger. "Whar's Red? Whar's the Deacon? I hain't got no time ter fool round. I'm in hell's own haste!"

"They've done gone—all of 'em," responded Cawsler calmly, as he recognized the ex-convict. "I don't know whar they're at." He paused, and then admonished coldly, "Ye'd better set down and calm yoreself. Ef ye runs around town so distracted-like, they'll put ye in the jail-house fer shore."

Newt only snarled. Here was a situation upon which he had not counted. He had unexpectedly found his quarry, and he was unarmed. By the time he remedied his deficiency his victim might have escaped. For an instant he stood in a futile and silent transport of rage, his entire body in a tremor of blood-lust and excitement. Then with an oath he pushed Cawsler aside and

entered the room where he had left his clansmen. It, too, was empty, except for a figure breathing with drunken and stertorous stupor in a chair at one corner.

The one man was old Jason Dode. Newt rushed across, and unceremoniously catching him by the shoulders, twisted his sagging figure until it lay chest upward. The old drunkard mumbled and raised balky hands against the indignity, but consciousness flitted only spasmodically across his face, and he sank back again with an incoherent murmur. Newt tore open his coat and vest, and ran his hand under the left armpit, but he found there only an empty holster. Old Jason was drunk and ineffective, and lest in his maudlin condition he might wander out and disturb the equilibrium of their plans, the clan had disarmed him. Newt rose and faced Cawlsler.

"I've got ter have a gun," he exploded. "Git me a gun!"

But Cawlsler, gazing into the wild face and burning eyes, judged that Newt, too, had been "hittin' up the red licker," and that a gun was just what he least needed. Accordingly he shrugged the fat shoulders under his dirty shirt, and shook his head in negation.

"I hain't got no gun," he lied; "I done loaned mine out." With another wild oath, the would-be assassin dashed down the steps and out into the street. He would search the town until he found a kinsman, and incidentally he would try to keep an eye of sufficient watchfulness on Henry Falkins to remain familiar with his movements. It did not occur to him that Henry Falkins might be unsuspecting. To his mind Henry Falkins must know, if he had heard of the pardon, that, straight as a homing pigeon, Newt would come to him for reprisal. Such was the code of the Cumberlands. So his task was threefold: to arm himself; to find Henry Falkins; and to conceal himself from Henry Falkins.

The Spooner aggregation meant to make its appearance at the psychological moment, and until that moment to remain as invisible as a covey of quail in close brush. Newt, no longer excited of guise, but quiet, almost feline in his alert movements, slunk from saloon to saloon, and scanned the length of the streets with a purposeful glitter in his eye—and his search for a kinsman was vain.

The afternoon was well advanced when the boy, lurking in a side street, saw a buggy pass at a rapid trot, and recognized its occupants. The vehicle was going out Main Street, and in it were a girl and a man. For the second time that day, he had sighted his quarry, and, turning into Main Street, he began to follow. It was merely reconnaissance, but, if he could hold the vehicle in sight long enough, he might know where later to take up his watch. A man on foot is poorly equipped to follow a standard-bred trotter between the shafts of a light buggy, but the streets of Winchester lie over gradual and rolling hills, and the girl who held the reins was a humane driver. A square ahead, she drew her horse to a walk for the climb, so the man could keep them in sight as far as the next ridge, and he strode along at a rapid distance-devouring walk, forgetting his weariness as a hunter forgets it when a covey rises whirring from the stubble.

Then for a while he lost them, and so, losing and regaining his view, he followed them up and down hill till the town dwindled into outskirts and the street became a smooth turnpike between farms and woodlands. But, at last, the difference in speed told, and the boy reluctantly abandoned the chase. Not, however, until he had glimpsed through stretches of velvet woodland a thing which he did not understand, and which he paused in perplexity to study. Back in the patriarchal grove of oaks and walnuts and hickories was a frame platform, and men were working on their hands and knees, polishing its floors. About it were strung long lines of paper lanterns of bright and varied colors and fantastic shapes. Still farther back, but close of access to the platform, rose the front of an ancient and vine-covered mansion with its little village of barns and servants' quarters, peeping out between lilac bushes and cedars. But it was the platform that puzzled the mountain traveler, and he perched himself on the fence to "study" about it.

A negro boy, riding a colt and carrying an empty basket, came jogging down the avenue and into the pike, where he drew rein in response to Newt Spooner's signal.

"What mout thet contraption be over yon?" demanded the mountaineer in a surly voice, as he indicated with a jerk of his head the object of his curiosity.

The servant laughed long and loud. He was a young negro and mounted. By putting spurs to his steed he could escape any penalty of insolence, and if the mountaineer dislikes the negro it is with no greater scorn than that which the negro feels for the poor white. When he had finished laughing his white teeth continued to gleam in a wide grin.

"Thet-thar contraption," he mimicked with an excellent impersonation of the nasal drawl in which he had been questioned, "is a platfawm. It's shorely an' p'intedly a platfawm. Our folks is gwine ter have a platfawm dance ternight. Saxton's band's coming frum Lexin'ton ter play de music, and all de quality folks'll be hyar."

At the sneer of the servant's manner, Newt Spooner had slipped down from the place he had assumed on the fence, and stalked menacingly out into the road. The negro had moved his horse a little to the side and waited. But, at the information received, Newt forgot his wrath in the engrossment of a sudden idea. A dance! The young people would be there in force. Perhaps among them would be the one he sought. In his country where round dances are unknown, special invitations are not required. Word goes out that so-and-so is giving a dance at such-and-such a point, and the countryside troops thither for shuffle and jig and wassail.

"I reckon," said Newt slowly, "I reckon I'll be thar."

The black boy let out a loud guffaw. He leaned back with one hand supporting his weight on the haunches of his mount, and whooped his mirthful derision to the open heavens. Newt gazed at him, first in astonishment; then in passion.

"What air ye a-laughin' at, nigger?" he inquired with low-pitched ferocity of voice.

The boy gathered up his reins, and, under the pressure of his spurred heel, the colt was away in a gallop.

"I may be a nigger," he flung back over his shoulder, "but I ain't no po' white trash. The likes of you comin' to our dance! Good Gawd!" A roar of ironical laughter followed in the wake of clattering hoofs, while Newt Spooner, his thin face working with a positive mania of fury, hurled rock after rock at the retreating figure.

Slowly the mountain boy walked back toward town, his black suit already whitened with a fine coating of turnpike dust.

As he neared the court-house, he quickened his step, for a dense crowd was gathered at its front, and he knew that the speaking must be in progress. His people would be in the throng and they would be armed. If he were going to the dance to-night, he needed a gun, and yet his craftiness automatically set a restraint on his impatient haste. Should he rush headlong into that crowd just on the verge of trouble, he might rush also into arrest. The applause and laughter with which the crowd just now jostled shoulders told him that nothing had yet occurred to break the peace or equipoise of the occasion; but that something was to happen he knew, and the knowledge made him cautious. A distinguished-looking gentleman with white hair was speaking from an improvised stand, and, as the ex-convict drew near the outskirts of the crowd, he found himself standing near a man who wore a blue coat, and leaned on a stout hickory staff. The partial uniform of this individual proclaimed a town marshal, and the badge on the breast corroborated the proclamation. It occurred to Newt that to be talking with an officer of the law when the shooting began would constitute an excellent alibi. So he stopped, and touching the officer on the elbow, inquired:

"Stranger, who mout thet man be, thet's a-talkin'?"

The policeman turned and regarded him out of a broad, good-humored face, in which shrewd, but merry eyes twinkled.

Newt wanted that officer to know him the next time they met, and to remember him definitely, so he returned the gaze with one frank and unblinking.

"That's General Braden, sonny," the town marshal amiably enlightened; "he's just introducin' the Honorable Cale Floyd. That's Floyd now."

"I hain't in yore way, am I, stranger?" questioned Newt humbly by way of further emphasizing his presence. "I 'low ef I hain't, I'll jest stay right hyar an' listen at him speak."

The officer laughed.

"Stay right where you are, sonny," he invited; "I expect it's as good a place as any." And then, to the boy's delight, the other laid a hand lightly on his shoulder.

The young man from the waters of Troublesome wore a blank face, although it was difficult. He had told himself that he felt no hostility for this prosecutor who had convicted him. Yet, now, as he saw the tall man step forward to take his place on the platform, remove his felt hat and shake back the black hair which fell, mane-like, over his forehead, Newt acknowledged a sense of gladness that he was to be killed.

The Honorable Cale Floyd had fought a bitter battle back there in the lawless hills for the vindication of law. He had walked in the shadow of death and had been deprived of office; ostracized like Aristides because he was "too just a man."

Now, he had come down here to the cultured bluegrass, and was being pointed out as something of a hero. Clients with well-filled purses brought their litigation to his office. And it came to pass that in the glow of unwonted recognition, the simplicity with which he had faced peril back there in his own country was slipping from him. He felt the theatric quality of the moment, and struck something of a pose as the crowd took in his tall figure and broad shoulders and country lawyer's make-up of frock coat and black string tie. He had recognized that it was more effective to appear the backwoods lawyer than the well-groomed attorney. His mentality would flash more startlingly from six feet of rugged mountaineer, and his attainments would limn themselves forth in a more impressive forcefulness. In short, the Honorable Cale Floyd was not now averse to capitalizing his past vicissitudes.

So he shook back his hair, and stood smiling with the June sun slanting to his fearlessly rugged features and touching them like a face cast in bronze. Then he began to talk. He warmed into his subject, gathering a wine-like thrill from the interested attention of the upturned faces; faces which long jury experience made as readable to him as clear type, and he threw more and more fire into his utterance, until he was borne out of himself and into a realm of eloquence. With a characteristic gesture, he leaned far outward and stretched his hand, index-like, toward the edge of the crowd. Thus had he

turned often from the jury-box and scourged with figure and invective the man in the prisoner's dock. It chanced that all unconsciously the finger went like an aimed weapon to the face of Newt Spooner, and straightway the boy saw red. From his mind passed the white brick façade of the bluegrass court-house, the sea of hats and the field of shoulders, and in their stead there rose again before him the dingy interior in Jackson, where he sat beside his counsel, while this same man, with this same gesture, loosed on his head all the bolts of the law's castigation. And at that same moment, playing with hypnotic intensity on his audience, the Honorable Cale Floyd fell instantly and suddenly silent, holding his bronze-like pose of outstretched arm and hand. It was only for a momentary pause: an oratorical trick of contrast and emphasis, out of which his voice would presently ring again in compelling tones. But in that instant of quiet there rose from the center of the crowd a sudden shuffle and a muffled outcry accompanied by a swaying of bodies. It was so close to the stand that the speaker, looking off more widely, was conscious of it only with annoyance for a marred effect. But, as he drew himself erect once more, to the undefined disturbance was added an outbreak of oaths, and, before they had died away, several close pistol reports came spitting sharply from the front, and little wisps of blue smoke twisted upward above the hats. At once there followed a general pandemonium, shoving, shouting, the shrill screams of women; an effort among the panic-stricken to get away by climbing over those who obstructed them.

With an oath, and an eloquent sweep of the hand to his pistol-pocket, the town marshal left Newt, who stood with an enigmatical smile on his lips, and went ploughing through the scattering mob toward the center of the disturbance. For a breathing space, the speaker stood leaning on the rail of the platform and looking out with no expression on his face save one of chagrined interruption.

Newt Spooner suppressed a snarl of contempt.

"By God," he muttered to himself, "ef they didn't go an' plumb miss him!"

But, as he was still growling inwardly with disgust, the attorney started to step back, reeled and crumpled limply to the floor of the platform.

CHAPTER V

After the momentary shock of sudden panic the scattered auditors began shamefacedly drifting back for inquiry and a solution.

Newt Spooner saw General Braden and a companion carrying the limp figure of the mountain lawyer down the stairway of the platform and heard them cursing the lawlessness of the mountaineers who, "having made an excursion from their own shambles were waging their damnable war on the streets of a civilized town."

He saw the crowd opening to let out several men who bore another prostrate figure, and, as they passed, one glance at the face, which had fallen back, loose-jawed, between the supporting arms, told him that some one had "gotten" Jake Falerin. Then he saw the town marshal, supported by half-dozen volunteer deputies, fighting for a passage through the throng with the prisoners, whose bodies they shielded with their own. This group made its way up the stairs, and flattened itself against the court-house wall.

Behind the drawn revolvers of the guard, the late convict recognized the faces of Red Newton and his accomplice. Already the crowd, which had a moment before been in panic-stricken flight, was pressing menacingly forward, and talk of lynching ran like wildfire from mouth to mouth. The officer was brandishing his pistol, and two of the volunteers were holding aloft, in show of force, the revolvers they had taken from the captives, whom they were waiting to slip through the court-house halls to the jail. Someone had gone around to unlock the doors.

The prisoners themselves stood stoically enough with mask-like faces, and if the roar of bluegrass wrath intimidated them, their eyes and lips showed no trace.

The countenance of Red Newton even wore a satirical smile as he commented to the other Spooner, loudly enough to be heard around a wide radius:

"These-here furriners air shore hell-bent on law an' order, hain't they? They're bounden fer ter have hit, even if they has ter lynch folks ter git hit."

Then the door opened, and the officer with his prisoners backed swiftly through it and slammed it in the faces of the crowd. Newt calmly walked down the stairs, and strolled along the street. At a corner, he saw Black Pete leaning nonchalantly against the wall in conversation with a farmer, who was roundly berating the violence of the mountaineers. The Deacon was chewing a wooden toothpick and regarding his chance companion with grave and respectful attention, nodding his head in approval of the sentiments expressed, but, as Newt passed him, he fell into step, and the two walked together toward Mr. Cawsler's restaurant.

"Son," suggested the quiet giant who had arranged the little tragedy of the afternoon, "this town's going to be a right-bad place for us mountain men for a time. If I was you, I'd dig out."

"Thet's my business," retorted the other sullenly. "I've got a matter ter settle up, fust—besides I reckon I kin prove I didn't have no hand in these doin's. I was havin' speech with the policeman when hit busted loose."

The Deacon came as near smiling as he ever came. One side of his long mustache tilted up, but his eyes remained sadly grave.

"I reckon I can prove that I didn't have no part in it, either," he said easily. "But some of these Falerins have seen me around town, and I reckon they'll try to get me implicated. That Falkins crowd suspects everybody. Come in here with me a minute, son."

The Deacon turned and led the way into a saloon, already noisy with excited men having recourse to drink and discussion.

They passed through the place and into the yard at the rear, where, after a look around to assure himself that they were alone, the older man drew a heavy revolver from under his coat.

"If they try to get me into it," he said calmly, "I'm going to make them search me. Keep my gun for me a while, if you don't mind. You were with the policeman, and they won't suspicion you."

For a moment Newt hesitated, then came the thought of his own affairs. A weapon was what, above all other things, he needed. Accordingly, he took it silently, and slipped it inside his coat, and without a word or a nod turned and walked back through the saloon, to disappear beyond its swinging screens.

When night came a two-thirds moon rode high and paled the summer stars into pin-points. Newt Spooner knew from talk on the streets that the lawyer would recover to reap greater reputation from the affair in which, even after leaving the storm of his own country, he had fallen under a mountain hand. But Jake Falerin would reap nothing from the afternoon's doings beyond an obituary in the newspapers: an obituary which would recount a sanguinary career closed with a sanguinary climax.

These matters, however, gave Newt only minor concern. He was not to be shaken from a fixed resolve by other men's hopes or disappointments. Nightfall found him trudging out the moon-bathed turnpike between the blue and silver mists of the fields; because, though uninvited, he was going to a party. He was not going as a guest, nor yet wholly as an onlooker. If one man was not among the guests, he would turn back from the fringe of the festivity, touching it no further. If that one man was there, Newt Spooner meant to break up the party, and add a sequel to the shocking transpirings of the afternoon.

Many buggies passed him, driving slowly, for the night was gracious with the sweet fragrance of the young summer, and the occupants of the vehicles were young, too, and no part of a summer dance is better than the going thither and the coming home. From this caravan came the music of much laughter, and now and then the lilting of a song: sounds as unaccustomed to Newt Spooner as grand opera. But the only impression made on him was the realization that he was too early; so, when he found a thick grove flanking the road, he climbed the fence and lay down under a hedge and rested. While he was stretched there in the dewy grass, he cocked and uncocked the revolver to make sure that, when he needed it, it would not fail him.

It was a night for lovers and lovers were availing themselves of it, but to Newt Spooner the seductive whispers through the upper branches of the

oaks carried no message of peace or minstrelsy. Yet, even to him, there was a dumb sense that life here in the great "down below" was a different thing, and, as he lay there fingering the mechanism of his revolver, he could not escape a large and disturbing wonderment. The breadth of the sky made him feel small and alone in the center of vastness. At home, mountain walls rose confiningly on all sides and one looked up at a narrowed patch of stars as if from the depth of a great well. But here one could gaze away on the level of the eyes and watch the wonderful phenomenon of a heaven coming down with its stars to meet the edge of the flattened earth. At home, one would ride the dirt roads on muleback and in silence, save where the hoofs splashed along the creek-beds. But here the horses beat a sharp rat-tat with metal shoes on a metaled road, and the rubber-tired wheels ran noiselessly. These people, too, reversed the order of things even as their country reversed them. At home, almost every one was poor; here every one seemed rich, and the women, whom every mountaineer knows should be treated as inferiors, suited only to the tasks of housework and child-rearing, were treated by the men as equals. That he knew from the chatter and laughter of those who passed in earshot, driving two and two. And what fools they all were, for surely no people who were not fools could chatter and laugh and sing!

After an hour, the buggies passed less frequently, leaving the road free of travel, except for town-faring negroes on foot and singing. Then Newt Spooner came out from behind his hedge and made his way once more along the turnpike. What his eyes had once seen his memory retained with photographic distinctness, and as soon as he reached the beginning of the low stone fence, which he had noted that afternoon, he knew that he was drawing near the dance.

But Newt would have known that he was near his destination without the fence, for already, though blurred by the distance into an indistinct and formless spot of brightness and color, he could make out the illumination of the Chinese lanterns and there came to his ears across the softness of the night the merry strains of a band playing a two-step.

The mountain boy made a rapid survey. The house sat deeply back in the woodland, some five hundred yards from the road, but the platform, though almost directly at its front, lay nearer the farther side. The lateral fences of

the woodland were lined with locust groves, giving a band of shadow along the edges. He might have crossed the fence at the nearest corner and worked his way back, but time was not an object, and so, before selecting his route, he went along the turnpike to the other side of the place for fuller reconnaissance, and found there even better and more continuous cover. Also, by taking that side, he was further from the driveway and would arrive closer to the platform without leaving the shadow. As Newt crossed into the woodland, he became invisible, thanks to the inky shade of the locusts, just now heavy with fragrance of bloom. The thickets of his own rhododendron and laurel could not have availed him more serviceably. At his left were acres of undulating bluegrass, broken generously with forest trees, and between the trees lay a silver lake of open moonlight, dotted with islands of shadow. But, by following the fence line back, he could invisibly draw near to the platform, and creep still closer under the shelter of a heavy growth of lilac bushes.

Suddenly, the mountain boy's heart began to pound in a strange way. He had never been afraid of anything and he was not afraid now, but as he crept, like a woodland animal, close enough to take in details, he felt as a man might feel who finds himself pursuing an enemy on Mars. He was in a new world and one so strange to him that its very difference brought a sense of misgiving. He had been born and reared in a windowless mountain cabin of one room. His light at night had been that of crackling logs on a stone hearth and a single lamp without a chimney. He had heard hatred of enemies preached before he could talk himself. That his present purpose was righteous, he passionately believed; that one should pay his blood-debt seemed axiomatic. Yet, as he looked out, he could not shake off that sense of strange uneasiness. Something was wrong. Perhaps it was simply the inarticulate realization that the scene was set for merry-making and not for tragedy. At home, it was different. The mountains were sterner and bred sterner emotions. The darkness there seemed grimmer, too. This was not the night or place for a murder.

Criss crossed about the platform and between the trees swayed the vivid color splashes of the lanterns, like magnified and luminous confetti. Sifting and eddying on the swaying floor went the rhythmic whirlpool of dancers. The soft colors of evening gowns, the ivory flashes of girlish shoulders and the floating of filmy scarfs dizzied the boy, who by the iron dictate of

heredity and upbringing was a human rattle-snake. The strange sight of men in evening dress, their shirt-fronts gleaming like conspicuous targets, added to his bewilderment.

Between the trees passed strolling couples whose laughter lilted musically, and, as he crept nearer in the shadow of the lilac bushes, he saw a queer little affair which was also new to him, only a few yards away. It was a rustic summer-house, over the timbers of which trailed masses of honeysuckle, and into it, as he lay there peering sharply ahead, went a man and a girl. The man was dutifully wielding a fan after the flush of the dance and talking earnestly in a low tone, and the girl was laughing up into his face with a silvery softness so unlike the nasal voices of his own kind that Newt could make nothing of it. Nowhere was the hint of hardship: the hardship which was in his country life's dominant note. Back at the rear in the moonlight, the whitewashed barns and fences gleamed like structures of ivory.

He lay there on his stomach, his elbows on the ground and his chin in his hands, trying to search the faces of the dancers. But the dancers shifted and sifted in so bewildering a maze that even had they been nearer at hand he could hardly have identified familiar features. Then the music stopped, and he drew a breath of relief, for the platform partly emptied itself, and, as the couples came down and strolled under the lanterns, it was easier to search for the face he wanted to see.

Newt Spooner had been there perhaps an hour while waltz and two-step alternated to set the human mass he was trying to sift into fresh and maddening puzzles of rapid movement and vagueness. At the distance he had decided it was hopeless, and though the summer-house under the honeysuckle seemed a favorite retreat to which couple after couple came for a moment of rest and innocent flirtation, it had not proved a Mecca for his victim, if indeed his victim were there at all. Of this possibility he now felt a diminishing credulity. He would, nevertheless, try to slip closer for a final scrutiny and then go back to town, admitting temporary defeat. Then, as with snake-like movements he was hitching himself forward, he suddenly stopped and crouched closer to the ground and held his intaken breath in his throbbing throat.

A new couple came out of the shadow and strolled across the patch of open moonlight toward the summer-house. The girl was she who had picked him up on the road, and the man was Henry Falkins. Even in evening dress, there was no mistaking the features, and that shirt-front was a target to even an amateur's taste.

The girl wore a filmy gown and about her bare shoulders was thrown some silky thing as iridescent as gossamer. But, unlike those others who had come there, she was not laughing.

Instead, she was looking up with a very direct gaze into the man's face, and her eyes and lips bore a somewhat wistful seriousness.

At the front of the summer-house, her companion stopped and broke a spray of bloom from the vine.

"It always reminds me of you," he told her in a soft voice. "There may be sweeter fragrances, but I doubt it. I guess that's why."

He lifted a drooping branch of leaf and bloom, and she passed under his arm.

Newt Spooner was lying only a few yards away, but he must be closer. The mass of vine obscured his line of vision, and he had no wish to kill the girl. Behind his ambuscade of trellised supports, he could come near enough to reach his hand through and touch his victim if he chose. It was almost too simple—too easy. Yet, after all, it was a bad arrangement, though that he could not remedy. He must announce himself to the man he meant to kill, or defeat the satisfaction of revenge. To let him die without realizing why would rob the punishment of its sting. Then the woman would doubtless make an outcry, and his chance of escape would end. Besides that there was a second objection: the girl had befriended him. He was to some extent "beholden to her." He wished now that he had refused to drive with her; but, when he had accepted her invitation, he had had no idea that his purpose could concern her, and his purpose came first.

Newt Spooner drew very near. He cautiously pulled back a branch of the honey-suckle, and looked through. The girl was sitting with her eyes downcast, and the man standing with one knee on the rough bench. He was leaning forward and his voice, though tense with earnestness, was almost a

whisper. Newt might at that moment have been noisy instead of noiseless without danger of distracting the attention of that man and woman.

At home in the mountains, Henry Falkins would have been more wary, but here in the bluegrass he had laid aside all thoughts of danger, as he had laid aside his high-laced boots and corduroys. He was standing at the other side of life's gamut. Enmity, for him, did not exist. The universe was filled, he believed at that moment, to the boundary of the last sentinel star with love. The night breathed it. He was breathing it, the girl's eyes were just then raised to meet his, brimming with a light that set his pulses bounding.

"Back there in the hills," he said, "there is a place high up the mountainside that looks down on such a night as this over an ocean of silver mists in the valley. I have often gone there alone and listened to the nightingale talking about you. After this," he added joyously, "all nights will be moonlight and starlight for me, dear, if—" But there he broke off and became silent.

Newt Spooner advanced one knee a few inches, and steadied his position. He drew the vine back a little further with his left hand, and slowly thrust his right into his coat pocket. When it came back, it held the pistol, and this Newt placed at his back, that the soft click of its cocking might be muffled by his intervening body.

The stars were as bright and the moon as serene that night back in the broken ramparts of the mountains as here in the lowlands. No hint of brewing tragedy disturbed the majesty of the summits that raised their crests into the cobalt, or marred the silvery flood that bathed the valleys.

Where the college buildings nestled in a tidy village near the waters of Fist-fight Creek, the picture was a nocturne that must have brought joy to the heart of a painter whose soul responds to the beautiful.

Already, in the dormitories, most of the children were asleep, but one girl, who was half child and half woman, crept noiselessly down the stairs of the building where she had her room, and made her way to the creek-bank.

She had spent a longer time over her studies than had her fellow pupils, because in her serious little breast burned a hunger for that education which might open new ways and make for her a life beyond the imprisonment of her environment.

In years, Minerva Rawlins was a child, but the life of her people brings early maturity and into her little brain had recently been creeping the restlessness of new things—and of womanhood. To-night, the plaintive call of the whippoorwills from the deep shadows of the timber was a call to be under open skies, where the thoughts that assailed her might not feel cramped within walls. There were many things of which she must think—and it happened that the subject uppermost in her mind was Henry Falkins.

She went with lithe tread and pliant carriage down beyond the saw-mill to a spot where the sycamores hung low by the waters that swirled in a cascade over a litter of huge rocks. On the steep mountainside beyond, the flowering laurel and rhododendron were thick, and the forests hardly showed a scar from the axes that had claimed the timber for the buildings. She had discovered that here through a gap between two summits she could see the same pale star to which the single pine had pointed back there from the front door of the cabin, which, wretched as it was, had been her only idea of home. In the silvers and grays and cobalts of the picture, and in the night song of the whippoorwills and booming frogs, there was solace, and to-night she wanted solace.

She told herself that this restlessness which would not let her sleep was loneliness; but beyond that single feeling were others more complex for which she had no analysis.

There was the starving eagerness for something very different from what wares life had ever spread to her gaze, some yearning that had crept down through lapsed generations from an ancestor or ancestress who had known the courtly life of Old Virginia before the pioneer tide swept them westward to their stranding. This hunger was a fiery thing, which made the eagerness to learn blaze hotly because its attainment meant struggle.

Then there was the conflict between that loyalty which the code of the Cumberlands impresses as a cardinal duty upon its children, and an

insurgent hatred for the squalid family into which her father's second marriage had thrown her.

The law of feudalism and of the clan writes at the head of its decalogue, "Kith and kin above all." Minerva would have resented an implication of wanted staunchness, and yet as she sat with her small and well-chiseled chin cradled in the hands, which drudgery must soon make hard and shapeless, her eyes filled with tears and her slender body trembled with instinctive repulsion at the thought of return to the cabin where the razor-backed hogs would scratch their backs under the gaping floor timbers, and where darkness hung day-long between smoke-blackened rafters.

And though she did not admit that either, a part of the restlessness was the awakening of womanhood, and the woman's hunger for love. She thought of all the young men she knew back there; of the boorish creatures whose breath reeked with moonshine whiskey, and whose thoughts were as coarse as their brogans, and once more a shiver ran through her.

It all made her feel very wicked. She had come to the college and learned a little, and she had learned above all a fastidious discontent, which was poisoning her thoughts.

She told herself she ought to be very happy. Then a smile stole across her face as she sat there in the moonlight, and she drew from the collar of her calico dress a small medal on a string. It was a medal that had a few days before been awarded her for proficiency, but to her it stood for the nearest glimpse she had ever had of romance, though of romance passing by like a caravan which she had viewed from the wayside.

There had been spelling matches and recitations and the award of small prizes at the college, and the rough folk had trooped in from the countryside, riding mules or walking from many miles about. Women had come in bright-hued calicoes and sun-bonnets, and bearded, gaunt men in hodden-gray. Through that gathering and above it, since one who is very young and very inexperienced may be pardoned for a finger-touch from the gods of romance, a figure had stood out for Minerva Rawlins, endowed with every superiority.

The guests of honor on that occasion had been Old Mack Falkins and his son Henry. Old Mack had made a speech and, in awarding the prizes, his son had followed him. The people of the countryside had listened, and their applause had rocked the rafters, with that sincerity of admiration which they accorded to his native-born eloquence. But it was the younger man who had brought to Minerva Rawlins her first stir of hero-worship; the adulation of the inexperienced young girl for the first man she had seen who seemed an exemplar and a revelation.

Comparison is the one yard-stick of life, and by comparison this young man, who had lived the life of the outer world as well as that at home, might well have loomed large to such impressionable eyes.

Minerva was seeing that scene again; the school-room with its shuffling audience, and the young speaker whose words carried no taint of dialect or inelegance, as he spoke of the torch which was being lighted here to dispel the murk of illiteracy.

What Henry Falkins had said became in a fashion Minerva's standards. She found herself hating the lawlessness of the feud and the squalor of backwoods ignorance. She found herself wishing to be a recruit in the little army that sought to raise other ideals—but most of all she found herself longing rebelliously for the chance to have in her own life the companionship of some man like that. To herself she put it that way. She did not say *that* man, but, when she said "some man like that," the features and bearing and voice of young Falkins portrayed themselves, and as she sat with the medal in her fingers, listening to the whippoorwills, her fancy conjured up his image.

CHAPTER VI

When Newt Spooner had begun his search for Henry Falkins that afternoon he had not been so unobserved as he thought himself. Not very far behind him had walked Red Newton. He had not left Cawsler's with any intention of spying upon the boy and had seen him only by chance, yet when the latter halted in front of the hotel and stood there with the telltale expression which the recognition of Falkins brought to his face, Red Newton observed it and slipped silently into the door of a convenient store. When Newt went running excitedly back to Cawsler's place, the brain of the older clansman began to work rapidly. To his memory recurred the tirade that had broken so tempestuously from the boy's lips.

"I knows what I'm atter. I knows who I'm ergwine ter git. Thar's a feller I'm ergwine ter kill." The unforgiving malice in the boy's eyes, the rigid posture of his whole body as he stood contemplating his enemy, told Red Newton the whole story. This, then, was the man Newt meant to kill. It was logical enough. This was the witness who had riddled the alibi.

At first, Red Newton shrugged his shoulders in the fashion of one who has no call to meddle in the affairs of others, but as fresh aspects of the matter presented themselves to his consideration, a very real danger to all his family arose to confront him.

If Newt should shoot Henry Falkins on the streets of Winchester before the speaking of this afternoon, it would stir into action such a tidal wave of public indignation against the mountaineers that the more vital conspiracy would be thwarted. He surmised that Newt was rushing back to Cawsler's place to arm himself, and his first instinct was to follow. Then he remembered that the place was now empty save for the drunken Dode, and Cawsler himself, whose discretion could be trusted. So, he took no action, and, when later the same buggy passed the court-house and within a few moments Newt went swinging along after it on foot, the disappointed face of the boy told the other that he had failed. Red Newton rubbed his stubbled chin reflectively, bit off a large chew of tobacco and withdrew into his inner

consciousness for reflection. As the result of those cogitations he strolled over to the hitching rack where he found a lowland farmer with whom he had spent a part of the morning talking cattle.

"Stranger," he suggested, "I 'lowed I'd love to ride out the road a piece, an' I figgered I'd ask ye ter lend me yore horse fer about a half-hour. I hain't ergwine fur, an' I won't ride him hard. I'll do es much fer you when you come up my way."

With ready assent, the farmer went over and untied his plug, and Red Newton swung himself to the saddle. Then he rode slowly and casually after the boy. He did not try to overtake him, satisfying himself with keeping him in sight, while he himself remained too far back to be recognizable. But Red Newton had affairs of consequence in town, so, as soon as he was satisfied that Newt had lost sight of the buggy, he turned back. He intended to mention the circumstance to Black Pete, but Black Pete was keeping discreetly out of sight, and so he found no opportunity for speech with him.

Meanwhile, the throng about the court-house was thickening, and Red Newton caught sight of Jake Falerin making his way to a place near the stand. That was his own cue for action, so, forgetting minor things, and keeping as inconspicuous as possible, he began edging toward a position of proximity in Falerin's rear. He signaled with a nod to one of his kinsmen, who was standing silently, but alertly, a little way off, and who at once began working forward in answer to the sign. The plan worked with well-oiled smoothness. Red Newton came so close that he almost brushed shoulders with his intended victim, and even when he stood at Jake Falerin's back, chewing his tobacco with as little expression as a cow chewing its cud, Falerin did not turn around or suspect his presence.

As the speaking went forward, Red Newton cast his eyes about, and placed those of his kinsmen who were present. It had not been deemed advisable to have the clan largely represented, and it gave him pleasure to recognize that Falerins largely out-numbered Spooners. Later, when the question of self-defense and placing the responsibility arose, it would appear that the Falkins element had come en masse, and from this circumstance would arise a presumption of malice aforethought on their part. That would

materially strengthen the Spooner defense. In dividing the mountain men into the two factions of Spooner and Falkins, Red followed the classification of the feud. The Falerins and Hulburts and their kindred were "Falkinses," though they bore other names, just as he himself, though a Newton, was nevertheless a Spooner.

At the psychological moment, Red Newton stepped forward and violently dug his elbow into Jake Falerin's midriff. Falerin wheeled to see who was crowding him, and the eyes of the two mountaineers met in a glance which escaped the generality of upturned faces. So well did each understand what a quarrel between them must mean that Jake did not hedge an inch nor attempt to evade the issue. He planted his left fist on Red Newton's jaw, while he drew with his right. But Red Newton was the more prepared, though, as he reeled back under the blow, he would have fallen, had there been room to fall. As it was he leaned against the crowd, and fired from that position, just a fraction of a second before Falerin's weapon came free of the holster. It was only those directly at Red's back who saw the swift play, and to their eyes it bore the seeming of self-defense. In the same instant, the kinsman at Red Newton's shoulder fired on the attorney so suddenly that it looked as if he too were aiming at Falerin's head, instead of just to its side.

Later in the afternoon, Black Pete, whose name had been mentioned to the commonwealth attorney by several of the Falerins, walked voluntarily into the office of that functionary. His demeanor was quiet and deeply grieved. Moreover, it was characterized by a show of frankness that was disarming. He said he would be glad to submit to a search—that he never went armed. He feared that in an indirect way, though entirely without his intent, he had been instrumental in bringing on the afternoon's deplorable tragedy. The commonwealth's attorney was astounded at this unsolicited statement, verging so closely on a confession, and felt impelled to warn the Deacon that he might yet find himself a defendant, and that whatever he said would be used against him. Had the Deacon been addicted to smiling he would have smiled then. As it was, he only nodded his head gravely, half sadly, as he stood there, his hands in his pockets, and his steady gray eyes unwaveringly holding those of his inquisitor.

"I reckon that's right, an' I'm obliged to you," he answered respectfully, "but I find as I go 'long that a man gets just as far by tellin' the full truth."

"Just as you like. What part did you have in this affair?" demanded the state prosecutor—a little too eagerly.

"Maybe you'd better let me tell it my own way," suggested Black Pete imperturbably. "I haven't got much education and I may ramble a little, but I'll do my best. You know all about the feud, I reckon? I went West years ago, and out there I got to see that these things are foolish. A sort of truce was patched up finally, and it was agreed that I must stay West, and Jake Falerin must leave the mountains, too. I got a little money saved up, and sent word that I was comin' home to settle up a mortgage on my sister's farm, and attend to some other family business. I didn't aim to stay, and I haven't been any closer to the mountains than right here. I wasn't goin' any closer till everybody agreed to it. I didn't think these fellers would fight right here in Winchester."

The Deacon stood with the regretful air of one who has been disappointed in his confidence as to the worthiness of others. At last, he continued in a conscience-stricken tone:

"I've been studyin' about it considerable since it happened. I'm afraid the Falerins saw me, and figured I'd broke the truce by comin' back, and, when Jake met Red in the crowd, they both got panicky, and begun to shoot."

That was all the Deacon had to state except his promise to remain in Winchester, subject to the call of the commonwealth. He knew that no one, save a handful whom he could trust, could implicate him in the conspiracy, which he had devised and engineered. His claws and fangs were well-tucked under his sheep's hide of innocence. While he was in the law-office, the jailer arrived with news that Red Newton and his other prisoner had asked to see Black Pete Spooner, with a view to employing counsel for their defense. The Deacon turned to the commonwealth's attorney.

"What do you think?" he said. "I reckon these boys have that privilege, haven't they? I want to be fair all round. If they did shoot in self-defense, I want them to have their rights, but I'll be here if you need me."

So, late in the afternoon, in the privacy of the cell which the two mountaineers complacently shared, the Deacon heard from Red how the boy, Newt, fresh from the penitentiary, was already on the trail of a

"marked-down" victim. It was news that disconcerted the master assassin to a degree which he would not have cared to admit. These men depended upon making a case of self-defense, and looked to him to see them through. The gravest element that confronted them was the violent dislike of the bluegrass, where they must face trial, for the murderous tendencies of the mountains. If there should occur on the heels of the first tragedy a second, traceable to a mountain man, the fat would be in the fire. At all costs, young Newt must for the present hold his hand. Above all else, that was imperative. Black Pete questioned the prisoner searchingly and learned that Newt had gone out Main Street, and Red had followed him for some distance. Therefore, that was the road young Newt would watch, and the road upon which young Newt must be watched. Cawsler later reported the manner in which the boy had come demanding arms, and the Deacon bitterly regretted having surrendered to him his own pistol.

And Newt had disappeared. Of each Spooner he met, the Deacon demanded news of his whereabouts. Finally, near the court-house, he met a man who had seen the sought-for one sauntering slowly out the road near the edge of town. Since it was only a few minutes before, he could not have gone far.

The Deacon hurried forward, and from a party of incoming negroes he learned of the dance, which explained the procession of buggies and gave him a clew. Probably, Newt had learned that his intended victim would be there. At least, it would be worth investigating. But of Newt himself he saw nothing, for when he reached the spot where the boy had climbed the fence to kill time behind the hedge, he unwittingly passed him by. At the beginning of the stone fence, where he caught first the music and the light of the festivities, his eye took in the growth of locusts and his mountain mind reckoned by swift processes. Here was such natural cover as a man would be likely to seek in working his way surreptitiously rearward. He had begun to fear he might be too late, in which event his coming at all would be more fatal than staying away. That haste prevented his using the most exhaustive caution, and so he did not explore to the far side of the woodland, but crossed the fence at the nearest corner and went swiftly back, skulking in the shadow. In point of fact, instead of being later than the boy, he arrived first, but on the opposite side of the broad lawn. When he had gone back as far as the house level, his painstaking search commenced. He was not only endeavoring to remain concealed, important as that was, but

also to penetrate the shadows and find the other hidden man. It was a thing that would have been sheer impossibility but for his splendid wood-craft and the catlike focus of his eyes in the night. So, when he had exhausted the possibilities on that side of the house to his full satisfaction, he recognized his mistake, and knew that he had wasted precious time. He should be on the far side, and, taking a long detour which carried him far to the rear of the barns and led him behind the fence line of the paddock lots, he worked his way up again to the front until he reached the edge of the lilac bushes, and could see the summer-house. To that spot he began crawling noiselessly, and, led by a sure instinct, and while still some fifty yards away, his trained eye caught a stealthy shadow also hitching forward at his front. There still lay between him and Newt Spooner the matter of some thirty yards, and, even if he rose to his feet and ran for it, he would overtake the boy so close to the vine-covered retreat that any sound of interference would result in the discovery of both. He did not personally know that the summer-house was occupied, but he argued it from the movements of the other skulker. Newt was so engrossed in his hate that at this particular moment he had eyes and ears only for the front. Between the lilac thicket where Black Pete crouched and the vine shadows where Newt knelt, lay an open space of flooding radiance, but it was directly behind the summer-house, and, unless Newt saw him crossing it, no one was apt to see. The Deacon rose to his feet and ran for it.

As Newt thrust the revolver behind him to cock it, Black Pete's hand closed silently around his, and Black Pete's thumb was jammed between the back-drawn hammer and the firing-pin.



**Black Pete's thumb was jammed between the back-drawn
hammer and the firing pin.**

CHAPTER VII

Henry Falkins and Lucinda Merton had not kept close count on the flying moments since they had entered the summer-house. The girl had promised to sit out two consecutive dances with him, since to-morrow morning he must go back to the mountains. So, having only a little while and much to say, he had plunged in, and, though his voice was low, his words came tumultuously. Of course, she knew that he was in love with her, but until to-night it had been a thing which had been given no concrete declaration. Except for a glow of confession in her eyes, she had said nothing of loving him. Yet now, when he wished to claim every moment for himself, she had asked him to tell her about his hills and their people, of whom she and her world knew so little.

"I want you to understand the life and conditions there," he told her, "and yet I don't want to talk of that to-night. I would like to paint for you true pictures of my mountains just as they look under this moon, as they will look when to-morrow's sun comes up over the peaks and begins to drive away the lingering mists; of the elder bushes and rhododendron and wild roses that bloom on the tangled slopes; but to-night I want to talk only of you and me."

He paused, and her voice carried a responsive thrill as she said:

"I should love your mountains! It must all be very beautiful—but so different from this." Her eyes traveled out with native pride over the smooth opulence of the country, which had seemed the Promised Land to the eyes of its pioneer discoverers.

"Yes," he admitted; "it is very different. We have rugged fields and rugged people. Down here you spring from Cavalier stock. But to-night there are in the world only ourselves. Let's talk of our private universe." His voice was feverishly eager. "Until I can in some way improve my fortunes, God knows I ought to be silent as to love." He leaned forward and added desperately: "But I can't be silent. After all, what is the use? You know I love you. If I never spoke a syllable of it, you would still know it. You can

feel it in the tremor of my hand when I take yours in greeting. And if I lock my lips, my eyes give them the lie. You know I love you, but you will never know how much."

He leaned forward and his breath came fast while his heart pounded with the great anxiety of putting his fortunes to the touch. He had knowledge of other lovers who had come and gone; gone very reluctantly, from the quest of her heart.

He had known her a year, and friendship had grown into that intimacy which tacitly admits something deeper than the casual. In her house he had been accepted almost as a member of the family—but that need not mean that he was accepted as a lover. In his mountains such an association would have been tantamount to an engagement, but here in the bluegrass it was different.

There had been sometimes a quality in her smile which he had never seen on her lips or in her eyes for other men, and she must know of his love. Still, he had heretofore been content to hope without certainty—and now the moment had come when, if he had builded on false dreams, he must wake to a reality of which he could think only with terror.

For his own crude land, he was a rich man, whose status was the status of a baron; but, down here in the counties of aristocracy and wealth, he was poor and a mountaineer.

"I suppose," he went on, with a voice that came from a taut throat, which he forced into measured syllables, "I suppose that until I can offer you a home like this, I should not ask you to confess a love for me, even if you could feel it. I can't even ask you to marry me yet, and still because you must know it, because you have a heart that must tell you, it seems to me that it is only hypocritical to lock my lips. My heart is too full to be damned up. It must have utterance. It must say, 'I love you.' I can't go on any longer being just a favored friend." He paused a moment and wiped the moisture of his anxiety from his brow, and his voice was tensely even in its control. "It means too much now, for that. If I am living in a fool's paradise I must know it before it is too late. They say we men of the Cumberlands have somber natures that take things seriously. To hope too long—and then fail

—" He broke off again and added quietly—"that would be a thing that would utterly ruin me. I love you."

The girl did not at once speak. He saw that her face was downcast and that her breast rose and fell, in an emotion which might be pity. Perhaps she, too, found speech difficult because she was merciful. A man and a girl were coming toward the summer-house, and Henry Falkins watched them with a fascination of fear lest they interrupt. The seconds seemed to stretch into an interminable suspense. Slowly he put out his hand, and took hers. Her fingers trembled in his grasp and slowly he bent and kissed her lowered head.

"I am waiting," he whispered; but something in the voice said more and told her of the torture of his doubt.

At last, very slowly, her face came up and her eyes met his. They were misty eyes, but smiling, and as he bent with a wild leaping of his pulses and took her in his arms, her lips, too, met his, responsive to his kisses.

Finally he rose, and now it was his own hands that trembled and his own senses that swam with the intoxication of a happiness which seemed to him miraculous.

"I suppose," laughed the girl, "I ought to be ashamed to surrender so quickly—but I'm not. I'm very proud."

For a moment after that they sat silent and across the moonlight came the band music and the softened laughter of the dancers. And it was at that moment that Newt Spooner, so close that they could almost have heard his breathing, was reaching into his pocket for his borrowed revolver. The pause was brief, for the girl, looking into her lover's eyes, became suddenly beset by a new thought—perhaps some subtle premonition—and in its wake came panic. She laid her hands on his shoulders and bent so close that he could feel the play of her breath on his forehead.

"But you are going back there," she exclaimed; "back to the mountains, and I'm afraid. Are you in any danger, because, if you are, you sha'n't go! I won't let you go. Why, only to-day, there in Winchester, think what happened!"

The man laughed.

"I sha'n't be hurt," he assured her. "Your love will be my talisman."

"If my love has such power," she exclaimed, "you will go on living to the end of time."

He took her two hands in his.

"Let's have no thought of danger to-night," he said. "To-night belongs to love, dearest: to love and to us."

And that was the exact moment at which Black Pete Spooner closed his hand over the pistol, thrusting his thumb between hammer and pin, and his forefinger between trigger and guard.

So suddenly interrupted at the threshold of his attainment, a man from the lowlands would have betrayed himself with oath or exclamation, or at least have struggled noisily in the grip that thwarted him. Newt Spooner was a mountaineer. Ambuscading caution was to him as instinctive as to the fox or weasel. He felt his hand drawn down at his back so forcibly that, crouching with his weight on one knee and one foot, he could not rise—yet he remained utterly noiseless. He carefully turned his head, and at the distance of a few inches recognized, even in the darkness, the drooping mustache and square jaw of the Deacon. The Deacon was holding a finger of the disengaged hand to his lips in an imperative command for silence. Black Pete was always a diplomat. He regarded this moment as one of rather desperate crisis, calling for extreme finesse.

No word of explanation could be spoken; the slightest sound of scuffling would give the alarm fatal to both. He knew that the implacable hatred of this single-ideal boy was not a thing to yield readily. So he continued to put into his manner and touch something of subtle and friendly reassurance, lest Newt flare into reckless and needless antagonism. And Newt felt at the moment a wave of relief in recognizing one of his own people.

The strategist gently shook the hand which held the weapon in hint that Newt should surrender it, while he nodded and laid the other hand conciliatingly on the boy's shoulder. But Newt, although he made no sound or motion, held tightly to the pistol, and so for a moment while Henry Falkins was boasting of his safety with the confidence of youth and love, his intended assassin crouched not six feet away while the man who sought

to prevent his act bent over him, holding his hand, and the wills of the two wrestled in utter silence.

There is in all leaders, good or bad, a psychological, almost hypnotic element of power which can, at need, act without words. Black Pete was recognized so thoroughly as a man of leadership that the enemy talked peace only on the basis of his exile. Newt Spooner had always regarded him with awe as the leader of his clan. Moreover, the Deacon's attitude just now was rather that of a friend who carried a warning than that of an enemy. The hypnotism of his masterful quiet was telling on the infuriated boy and yet there flared anew in his breast a dangerous resentment against the balking of his purpose. How it might have ended is problematical, but as they held their strained pose, and as Henry Falkins talked on in false security, a second couple came strolling to the summer-house. Finding it occupied, they banteringly apologized for intrusion, while Miss Merton and her escort blushing declared themselves on the point of departure, and went back to the dance. So the chance was gone. Slowly, Newt surrendered his pistol, and the Deacon silently rose to his feet and pointed off through the bushes. The boy strode sullenly on ahead and neither he nor his captor made a sound or spoke a word until they had progressed so far into the shadow that they were safe from overhearing. Then and then only Newt wheeled. His voice was almost a sob in its bitter and vibrant passion, as, with blazing eyes and snarling teeth, he demanded:

"What in hell did ye do thet fur? Damn ye, he b'longs ter me. Ye didn't hev no call ter interfere." He threw himself prone on the ground, clawing into it with his lean fingers as a frenzied animal might claw, and his thin body racked itself with silent sobs of anger and frustration. It ended in a fit of coughing which he could not control, and which he smothered in his two hands until the paroxysm passed.

The Deacon sought to soothe him. Most mountaineers speak with a nasal harshness, but this man had the exceptional quality that gave to his words an ingratiating and velvety smoothness.

"Don't worry, son. I wouldn't have interfered, only I was obliged to. He's your enemy, and he did you wrong, but this ain't the moment to kill him. Go back home and bide your time. If you need help, call on me after a little."

"Hits as fitten a time es any," blurted Newt tensely. "They hain't no manner of use puttin' hit off. I tells ye I'm ergwine ter git him. Hit hain't ergwine ter do no good to argify with me. Nothin' hain't ergwine ter change me none."

"Son," insisted the other calmly, "I ain't aimin' to change you. I've never let men change me, have I? But there's a time for everything, an' just now you must hearken to me." He sketched briefly and forcibly his interviews in the office of the commonwealth attorney and at the jail. He enlarged on the fatality of having another shooting by a mountaineer tread so close on the heels of the first tragedy.

"You ain't aimin' to put these boys' necks into ropes, son," he suggested chidingly at the end. "You can get your man without makin' your own kin pay such a steep price. All I ask of you is to pass me your word that you won't do anything until you get back to the hills. Seems to me that's fair enough."

Newt sat silent for a time, scowling blackly, but at last he rose and nodded.

"I gives ye my hand on thet—because I don't see no way ter holp myself," he capitulated. It is the mountain's formula of oath, and though the men who use it rarely shake hands, its utterance is a recognized bond.

"Come along to town with me," suggested the Deacon. "You can sleep at my boardin' place, and in the morning you can start out."

But to that proposition Newt shook his head.

"I aims ter start right now, es soon es I kin buy a snack ter put in my pocket," he announced decisively. "Which road goes towards Jackson?" When at last he did lie down for sleep that night, it was under the lee of a last year's straw stack and surrounded by the rustling spears of this year's corn, where he could look up at the stars and call defiantly upon them all to bear witness that he had no intention of being deterred by the interference of any man.

It had been a very exhausting day, strenuous with much footsore tramping; strenuous, too, with the buffeting of emotions as sudden and violent as the tempests which sometimes swept across his hills; bending the forests, lashing the sandstone ramparts, shrieking through valleys and cannonading

along the slopes. And like the hills when such a storm has wreaked its noisy wrath and swollen all the thread-like streams to freshets, he lay by his straw stack supine and shaken. It seemed to him that he had only just stretched himself out on the straw when he opened his eyes to see the east pallidly kindling with the preface of dawn, yet it had been long enough for his limbs to have cramped and chilled under the moisture of the night. He rose and ate a small supply of his provender, and took a swig from the flask, wiping the mouth of the bottle with his palm, after the custom of his country. After that he started on with the gray dawn growing rosy at his front. At length, he halted and drew a long breath of relief and satisfaction, for already he was beginning to recognize, in the changing character of the country, harbingers of home. The smooth swell of the bluegrass began to break into a choppier formation and assume raggedness, while far away the sky-line was broken by a climbing back-bone of foothills.

Unless he could mend his rate of travel he had still ahead several days of journeying, but early in the afternoon, when he sat down to rest, it was by a woodland stream where the underbrush grew in a tangle and the wild roses were blooming among scrub oaks. Cornucopias of the trumpet-flower flared vividly, and here and there he caught a glimpse of a chinked log-cabin. That night he slept at Clay City, where the channel of Red River was almost choked with logs; logs floated down from higher up. Once more he slept in a "feather-bed," for a distant relative had taken him in, willing to "eat an' sleep him" for no greater remuneration than the news of what had happened in Winchester; willing even to produce from some hidden place a jug from which moonshine liquor ran white and colorless.

The next day brought such a dawn as he had not seen since he had left Jackson with cuffed wrists, a dawn in which the sun did not blaze forth at once unobscured, but came up to dissipate the mists and flare redly through their vanishing, before he stood forth master of the day. And even then the skies were full of sullen hinting at rain. Nature seemed to brood in accord with his own dreariness of mind; and wisps of cloud trailed down the summits, as he nodded with a curt, "I'm obleeged ter ye," and pushed onward, boring into hills that grew ever taller and wilder.

At last, he came to Jackson, the shack town that is the county seat of Breathitt, which the world knows as "bloody." But even the twisting and

steep streets beyond the bridge offered this traveler no security for tarrying. Jackson knew that in Winchester Jake Falerin had fallen, and that Black Pete was back from the West, and Jackson was a Falerin strong-hold. The outlook was for stormy days, and it would be as well for the boy to push at once to his own section, some twenty miles away, where along the waters of Troublesome and Lost Creeks he would be among his own people. In front of the court-house and along the main street he saw groups of men, some of them Falkinses and some Spooners, and though there was no open hostility, they separated studiously into their own respective groups and their movements were characterized by an alertness which told of mutual and restive suspicion.

Newt Spooner was not afraid, but just now he was not wasting his activities. Moreover, he was still half-sick and not courting quarrels save those of his own choosing. As he strolled through the streets of the town, no one seemed to notice him. He had been forgotten. He paused before the court-house with the small "jail-house" squatting in the yard and surveyed both with wormwood bitterness of unforgiving memory.

Across the street where brick banks and modern plate-glass store fronts stood jammed between frontier-like shacks, he halted once more. Court was adjourning for the noon recess, and a homicide jury came out of the dingy doors, marching in columns of twos, while behind, shirt-sleeved and collarless, stalked the sheriff, herding the panel to its mid-day meal and bearing a long hickory staff. They were rude and bearded men, for the most part spare and sinewy, but the elder among them tramped with a shambling gait that told of unrelieved drudgery.

Newt made his way to the north end of the town, and took the road across the hills. By nightfall he would be in his own territory.

Now he was once more treading familiar trails, and though he was tired and the way became steeper, he walked with a resilient stride. The roads along the valley gulches were only creek-beds, and where they looped over the tops of ridges they were uneven stairways of broken rock. Sometimes for a little space they ran level along high banks where the sand was like that of a beach. But Newt had taken off his shoes and as he splashed along the water courses, where straining "jolt-wagons" had cut smooth ruts almost hub-deep

into the shaly beds, the grateful water stimulated him. About him were great forests almost virgin to the ax. Spruce pines and walnuts and poplars towered over him, and the road dipped often through a gloom like that of a dim chapel. Down there little cascades whispered, and out of fern banks rose huge brown and gray and green boulders of sandstone, like altars of the Druids. The rhododendron, which his people called "laurel," and the laurel, which they called "ivy," cloaked the open slopes. It was a country where a good walker can travel faster afoot than mounted. He drank from wayside springs and from the flask which his kinsman had refilled. His mind turned to its magnet, and he planned anew the death of Henry Falkins, but now that he was at home he planned with confidence of success and in this conviction he found a certain contentment. It was something to be where he belonged and something to walk free of the chaingang. Around him the hills closed in comforting tiers of ramparts. From the high points of the road, he could look off over valleys to other peaks and see here and there the roof of a cabin with its small patch of corn and its rude out-houses. He passed tilting fields where red and blue calico dresses flashed as entire families worked with hoes, and roadside habitations of logs where raggedy children fled inside to gaze timidly around the corners of door-jambs. Razor-backed hogs and flocks of geese wandered near every habitation, and mules flapped their long ears as they looked out from primitive stables, fashioned by closing in with fence shelters under overhanging shelves of rock.

CHAPTER VIII

When the pitchiness of night closed in until it seemed that the mountains moved up and huddled closer together, Newt was on well-remembered roads and did not pause. In an hour or two the moon would be up, and he would reach the cabin which he called home.

With the coming of the moon the hills underwent a wizardry of beauty which was lost on the boy. First, silvery threads of light began to weave along the bristling ridges of the east and opalescent flecks to glimmer overhead. Then a soft blue-gray light filtered down the slopes; throwing the shoulders of the mountains into relief and bathing the lowlands in a luminous mist. The waters of Troublesome caught the glint and the frogs boomed out from bass to treble, while back in the timbered slopes the whippoorwills set up a plaintive chorus.

Ahead of him Newt saw his destination. A cabin of logs stood darkly at the side of the road, marking his journey's end. Though the moon struck across the small hard-tramped yard, the house threw its shadow forward and was itself a block of darkness from which shone no light. That was because there was no light to shine, except what came from the fireplace, and because there was no window through which it might show. But Newt needed no illumination. He knew every wretched detail by heart. There was one room only, except for the lean-to shed, which served as kitchen and dining-room, and that was reached by going outside and walking around the corner of the house. The one room was pictured on his mind almost as clearly as he trudged toward its door-step as it could be when he entered it. Through the slabs of the puncheon floor the wind came in gusty weather. In each of the four corners was a large double bed with feather mattresses, for the family, when he had left home, had numbered six. About the log walls on pegs driven into the chinking would be hanging such articles of clothing as were not in use, except such other articles as were thrust in disorder under the beds. Unless the family had "lain down" they would be huddling about the hearth with their shoes off, for even in June when the night chill came it was customary to kindle an evening fire. Always in the past, his

great grandfather, old Luke Spooner, had sat at the right-hand corner of that hearth, mumbling into his long white beard. Newt wondered if he would still be there. He had been almost a centenarian when they took the grandson away to the penitentiary; his sight almost gone, his hearing almost gone, his brain wasted to a remnant of nightmare brooding, but his physical vitality holding out like a spent and stubborn fortress. Once he had been among the most feared of feudists, tireless, unafraid, vindictive and honest. He would hardly be there now, reflected Newt. He must have died by this time. One member of his family only would he greet with any feeling akin to welcome. His father had in his rough way been fond of him, and Newt in an equally wolfish fashion had reciprocated the feeling. It had never been expressed in words or demonstration, for of these things the mountaineer is as chary as a grizzly. Often in the long warfare of quarreling and bickering between his father and mother, which Newt regarded as a natural and universal incident of family life, his "pappy" had taken his side and rescued him from a "whopping."

Newt thought he would be glad to see his father.

He crossed the stile, hewn in rough steps from a poplar stump, and strode over to the broken mill-stone that served as a door-step. He shouted, "I'm a-comin' in," and pushed at the door. It was barred. That was a sign of the troublesome condition of the times. The mountaineer shouts an announcement of his coming from a distance to avoid the seeming of surreptitiousness, but, having reached the threshold, does not knock.

"Who's thet?" called a high-pitched, irritable voice from the interior. It was his mother's voice, and Newt replied:

"Hit's me, Mammy. Let me in."

No outburst or murmur of surprise broke from the cabin at the announcement of the prodigal's return. He heard only the rasping of a bar being drawn from its sockets, and then the door swung in. Newt entered, and with no offer to embrace his mother cast an appraising glance about the place, which the logs on the hearth revealed in a wavering light. The corners of the room were darkly shadowed, but the semicircle about the fireplace was red and yellow from the flames. The rafters were smoke-

blackened, and an odor hung between the walls like that in a house used for curing hams.

About the fire sat the family group, but none of them rose to welcome him. At the right hand corner sat old Luke. He was not dead then, after all, though just now he was sleeping with his bearded, mummy-like face fallen forward and his long hickory staff resting between his knees. Newt's younger brother, "Little Luke," grown since he had left home from a boy of thirteen to a gawky and angular young cub of sixteen, and his sister, who had been twelve and was now fifteen, stared at him in shy silence. His mother who was only a little more than forty had all the seeming of sixty. She was bent and slovenly. But of his father he saw nothing, though a man sat in the remaining chair, and when this interloper leaned forward, holding down his beard with his forefinger as he spat at the ashes, Newt recognized Clem Rawlins, a distant kinsman. Clem's presence surprised him little, for it would have been quite natural for Clem or any other man who found himself benighted to stop and "stay all night."

His mother came forward, and invited:

"Take my cheer, Newt. I'll set on the bed."

Newt dropped into the seat, and inquired:

"Where's pappy?"

"Daid," was his mother's laconic reply.

"When did he die?"

Clem Rawlins answered in a deep, drawling voice:

"He failed tol'able fast-like after ye left, Newt. He had the weak treemers, an' died erbout cawn-plantin' time a-follerin' of yore goin' down below."

The boy said nothing. He sat mutely scowling into the fire.

A constrained silence fell on the gathering, which was at last broken by the boy's mother in a tone of dubious embarrassment.

"With yore old gran-pap on my hands, Newt, an' yore pap daid an' Little Luk kind of puny-like, I couldn't hardly git along withouten some man on the place an' so—" She paused again, then added with a note half-apology, half-defiance: "An' so I married Clem. I was plumb driv ter hit."

She knew that the boy had never liked his kinsman, Clem Rawlins, but now Newt sat with his brow drawn and his gaze fixed on the embers, making no response. Clem waited stolidly, puffing at his pipe, though he, too, would be glad when the moment of explanation was ended. At last, the boy dismissed the topic with the curt comment:

"I reckon thet's yore business."

After a while, he rose and went to the corner of the room where once his few belongings had been kept. He evidently failed to find that for which he sought, for he came back to the fire and demanded:

"Whar's my rifle-gun?"

His mother was still sitting on the edge of the bed. She had filled her clay pipe and lighted it with a coal from the fire. Once more her voice carried the note of anxious embarrassment, and she tried to give it also an ingratiating quality, as she replied.

"Well, ye see, Newty, atter yore pappy died we had a heap of trouble. 'Peared like the good Lord hed done plumb forgot us in his provi-dence. The hail kilt all the cawn, an' the hawks died off like es ef they was blighted, an' so—" She paused, and the boy finished for her in a voice very metallic, though not reproachful.

"So ye went an' sold my rifle-gun. Is thet what ye war a-tryin' ter say?"

"Thet's hit," she acknowledged. Then in exculpation she went on: "Ye see, Newt, I wouldn't 'a' done hit, only I didn't reckon ye'd want hit no more. We didn't hardly 'low ye'd ever come back hyar noways."

Newt Spooner rose from his chair and stood facing them. His fists were tight-clenched at his sides. The spurting blaze of the slowly dying fire sent his shadow wavering out across the semicircle of light.

"You-all didn't 'low I'd need my rifle-gun no more," he repeated slowly, with forced restraint. "Ye didn't hardly reckon I'd ever come back hyar-abouts. Ye 'lowed I wuz buried alive in thet damned penitentiary whar ye let me go without a-holpin' me none. Ye 'lowed I'd jest stay thar an' rot." He paused and his breath came heavily. Then his utterance quickened. "Well, ye 'lowed plumb wrong. I'm hyar an' thar's a thing I'm hyar ter do, an' hit's a thing thet calls fer a gun. Ye done married this-hyar man. Thet's yore business an' his'n. 'Pears like ter me ye mout 'a' done a sight better, but I hain't got no call ter say nothin' erbout thet."

With a vague idea of placating both sides of what might become a family rupture, the woman suggested in a milder tone than usual:

"I mout 'a' done a sight wusser, too, Newt."

The boy sniffed.

"I don't hardly see how," he retorted. "Now I've done been robbed of my gun. What's become of my pappy's gun?"

His mother hesitated, then confessed:

"I done give it ter Clem."

The son nodded his head.

"Thet's what I 'lowed. Now thet gun b'longs ter me. I've done lawfully heired hit from my pap." He turned suddenly to Clem Rawlins, and his voice rang out in sharp and peremptory outburst.

"Go git hit!"

Rawlins rose in quick obedience, and went to his own corner whence he fetched the repeating rifle that had been the elder Spooner's.

Newt stood before the fireplace, testing and loading the magazine, while his mother looked on in anxious scrutiny.

Then the centenarian across the hearth roused up, lifting his ancient and withered face, in which the jaw muscles worked loosely and flabbily.

"Who air thet feller?" he demanded in a quavering, accusing voice, gazing up without recognition at the tall, spare figure which towered over him.

"Thet's little Newt," shouted the mother, bending her lips close to his ear. The old man sat foolishly blinking for a time as his wandering thoughts came back to a focus.

Finally, he brandished his long staff and stormed weakly.

"Ye hadn't oughter suffered yeself ter be penitentiariated. In my day no Spooner wouldn't 'a' done hit. Ye air the fust one thet's ever wore stripes...."

"I wouldn't of gone thar nuther, ef my own kin hed a-stood by me," blazed the boy with an evil glitter in his eye.

"Don't pay him no mind, Newt," hastily admonished his mother; "he hain't noways responsible. He's plumb fitty."

"Why the hell don't he die?" demanded the youth, gazing down contemptuously on the withered and decaying figure.

"I'm kinder tuckered out," he added a moment later. "I reckon I'll lay down."

Such was Newt Spooner's home-coming.

CHAPTER IX

On the morning after the convict's return, in the hour when the mists still hung in wraith-like fogs over the slopes, Newt and the other men of the household gathered around the kitchen table while his mother and sister, maintaining their position of mere women, served them standing. They ate in sordid silence, stooping low over their plates and neglecting their forks.

The food was perhaps less good than that which the penitentiary furnished its inmates. The bodies of dead bees floated in the wild honey and to a palate accustomed to more delicate provender the reeking grease in which everything floated would have induced nausea, but it was the food upon which the former convict had been reared, and he greedily bolted it. As soon as he had finished his breakfast he rose, and, picking up his rifle, sauntered toward the door. This he did with a belligerent air, for he knew the simple laws of native life. The land and cabin had belonged to his father, and the boy felt that he needed no invitation to return and take up his residence there. None the less, if he was to stay, he would be expected to assume his just share in the burdens of daily work. For the present, however, he meant to take a vacation; to tramp the hillsides and see how far he had lost his knack with the rifle. So, he filled his pocket with cartridges, and strolled out of the door, kicking from his way several trespassing chickens that were exploring the interior of the room. As he passed the barn, Clem and "Little Luke" were feeding the mule and the hogs. Newt paused for a moment and watched them, making no offer to assist, and they for their part made no request that he lend a hand.

"Goin' huntin', Newt?" queried the step-father, pausing with a shuck-basket of feed in his hands.

"Mebby so," growled the home-comer.

Clem regarded his uncommunicative law-kin with an expressionless stare for a while, and then said slowly:

"Hit hain't none of my concern, I reckon, but I seen yore pockets was strutty, an' I 'lowed ye mout be goin' tol'able fur."

"Mebby so," repeated Newt.

The pockets to which Clem alluded bulged with ammunition and a flask. The phrase he used was slang in Scotland in the days when Queen Mary reigned. It is common parlance to-day where these beleaguered Anglo-Saxons retain the idioms of their ancestors, and live the life of another century in mountains which were old before the Andes, the Alps, the Rockies or the Himalayas were thrown above the level of the sea. The Elizabethan gallant who was "strutty" threw out a swelling chest, hence, that which bulges is strutty.

The household did not see Newt again until the sun was well into the west, but at intervals they heard the sharp bark of his rifle growing fainter as he penetrated farther into the hills.

For Newt had taken himself away into the thickness of the timber and laurel for target practice. He went about it as systematically as though he were a battleship at maneuvers. As he swung his way noiselessly along forest paths, he would stop suddenly and throw the piece to his shoulder, sighting on some knot or leaf picked out at random. On these occasions he wasted no powder and lead. He was simply testing his quickness of eye and steadiness of hand, and he smiled with grim pleasure at the result. But at last a target showed high up on a walnut trunk. There the figure of a giant woodpecker hung, drumming loudly, and inviting a trial shot, by the very conspicuousness of its red, black and white plumage. Newt leveled the rifle and fired, and the big bird came tumultuously floundering to the ground.

The boy smiled unpleasantly:

"I reckon," he mused, "hit hain't only woodpeckers I kin hit."

As the day wore on, he practised more intricate feats. Gathering a handful of hickory leaves, he fastened them about the gigantic girth of a tulip poplar which towered nobly in a level place. Then, going back a distance of fifty yards, he began running rapidly around the tree. At every few yards of his course he would halt abruptly, wheel and fire at one of the leaves. As he went up, panting, to inspect results, he smiled again in grim satisfaction.

Along the creek-bed roads and over the mountain-scaling trails that day, a girl was taking a twenty mile walk from the clean dormitory of the college to the vermin-infested murk of a cabin on Troublesome. She carried a small bundle, but the long march was a thing that did not seem to trouble her.

Sometimes she came to places where the road ran down into the waters of shallow fords, and then she stopped and took off her shoes and stockings and waded to the other bank.

On either side of her rose the rustling forests, tuneful with the song of birds. The laurel blossoms waved pink centers and the rhododendron nodded at her.

Here and there a squirrel barked or a cock-quail sounded his "bob-white" to his nesting mate. And as Minerva tramped on with that resilient, tireless stride which was one of the few blessings of her hard heritage, the cloud on her brow was dispelled and after a while her voice rose to the crooning of an ancient "ballet," and she remembered only that she was young and strong and that it was June. Perhaps she dreamed a little of a make-believe world in which the men were not brutal and bestial, but, like the Henry Falkins of her imagination, individuals who had heard of chivalry and who even in this age preserved something of its spirit and its spark.

Yet every now and then the picture of the cabin rose before her imagination, and the smile died from her eyes, and her lips became straight-set and taut. She saw the old imbecile in the chimney corner and the shrewish step-mother, and the badgering step-sister, and even in the father who had brought her here, she knew that she had no effective ally. Clem Rawlins had his work cut out for him in protecting himself in these matters, and he sought the path of least resistance by taking refuge in surly silence until he was goaded to the point where his temper broke into violent outburst.

At last, the walk ended, ended at the door-step of the cheerless cabin, and there as Minerva crossed the stile stood her step-mother, on the threshold with her arms akimbo and a clay pipe clamped between her teeth.

"M'nervy," she said in a rasping tone, in which dwelt no note of welcome, "I've done yore b'longin's under Sis's bed. Thar hain't no more pegs ter

hang things on an' Newty's done fared back from down b'low. He's a-goin' ter lay down on ther bed you've been usin'."

The girl halted before the door.

"Who's Newty?" she asked. The boy's name had not been often mentioned since she had come over here, and she had forgotten the ragged lad she had known years before, when instead of being a murderer he was only a small shaver with sullen eyes and a tongue which he did not often use.

"Newty's my oldest boy," enlightened the elder woman briefly. "He's been a sojournin' in Frankfort." Then in a tone of absolute commonplace she added: "He's been in ther penitenshery."

Minerva Rawlins stood silent, but her cheeks blazed wrathfully. So, beside the horrors of uncongeniality under this roof, she was now to be turned out of her own bed to make way for an arrival from the state prison.

Long ago she had learned to set a seal upon her lips and to endure in silence what things must be borne, but into her eyes flashed an insurgent gleam, and the hag-like woman in the doorway caught it and scowled.

"I reckon Newty's got a license ter dwell in this-hyar house," she belligerently asserted. "He was born hyar, an' he didn't come in hyar taggin' along with no widderer. Newty hain't no step-child."

The speaker turned and disappeared into the general murk of the interior, and the girl followed her without comment, but with a suddenly born hatred for the man who had come from a cell back to the family which she must call her own.

When Newt Spooner crossed the stile that afternoon, breathing deeply the healing of the mountain air, he paused and scowled. Coming across the yard from the "Spring-branch" with a bucket of water was the slender figure of a girl. She was not his sister, but another girl whom he did not recognize. She seemed to be about eighteen, and she was pretty, with the transient bloom of mountain young womanhood, often as vivid and as short-lived as that of the

morning glory. But the thing which most perplexed Newt, as he stood resentfully wondering how many other invaders he was to encounter at the cabin, was the fact that her calico dress was neater and her whole appearance more suggestive of civilized self-respect than that of the other women of the household.



Coming across the yard from the "Spring-branch" was the slender figure of a girl.

She was not barefooted, but wore shoes and stockings, and instead of being lost in loose sack or slip-shod mother-hubbard, her slight waist was trimly belted.

While Newt stared at her, she, too, looked up and saw him. For a moment she seemed startled at the black-visaged apparition, but after a moment she coolly returned his glance, and disappeared into the house.

When the boy later on went to the door, the westerling sun sent a long golden shaft into the primitive interior, down which the dust motes danced, although the corners remained somberly obscure. In the room were only the "women-folks"; his mother sitting huddled over her pipe; his sister lying idly stretched on one of the beds with an ill-natured frown in her eyes, and the strange girl. The strange girl sat, not near the cold hearth, where now there was no fire, but in the sun, and the sun fell upon and sparkled in her brown hair and awakened dull glints like the luster of polished mahogany. She was holding her lips rather tightly drawn, as in self-repression, and there was a mistiness about her eyes that hinted at unshed tears.

"I reckon," Newt's mother was saying in a spitefully hard voice, as the boy's figure darkened the door, "ye thinks sence ye went off ter school and got ter consartin' with them fotchted-on teachers, thet ye're better'n what we be."

The girl made no reply, but she bent over the sewing in her lap, and her fingers trembled. Mrs. Rawlins looked up and, with a jerk of her head, announced for the benefit of her son:

"This here air Clem's gal, Minervy. I married a widderer." The last sentence was snapped out in a tone of deep complaining, from which one might infer that in the train of marrying a widower followed many melancholy consequences.

At that the girl raised her face and into it swept a sudden flush of anger. She looked challengingly at Newt and her eyes told him that, if she was silent under the shrewish heckling of the woman, she was quite ready to give him battle. But the boy had no intention of insulting her. He did not know that already she was finding herself in that most pathetic of all positions, the status of being just enough educated to be unplaced at home, and too little educated to be placed elsewhere. She had been thrown, by her father's second marriage, under the persecutions of a shrew, a jealous step-sister, and a century-old imbecile. She looked at Newt and reflected that his arrival added a murderer to the group. "Clem's gal" was longing for that different and more wholesome life over there at the college. But Newt had seen the look in her eyes and recognized that she like himself was here among people who offered no friendship. It was a rude bond of sympathy, and

though she was "Clem's gal," and, in consequence, of the enemy, he rose to her defense.

"I reckon," he remarked sullenly, "she hain't no more tee-totally tickled about yore a-marryin' of a widderer then what you be."

The girl's eyes were lifted with an amazed expression from the calico dress upon which she was working, and her face swiftly softened. But Newt, a stranger to tender emotions, and bent on presenting to every man and woman a face of defiance, gave no further sign of sympathy.

He went to the bed which had been assigned to him, and threw himself on his back, from which position he lay scowling up at the smoked rafters and resting.

Presently, his mother began again her querulous bickering. The conversation was one-sided, and the boy, lying silent in his dark corner, noted that Minerva merely bent her head as one may bend it against the buffeting of gusty wind or rain. But he was himself less long suffering, and so he raised his voice with the dictatorial authority of a man rebuking a quarreling harem.

"Mammy," he ordered curtly, "I'm plumb sick an' tired o' heerin' all this-hyar blamed fursin', an' I wants ye ter shet up. If Clem's gal is a willin' ter endure all thet jawin', I hain't."

For an hour there was no sound in the cabin except the low, monotonous voice of Newt's sister, crooning an ancient "ballet" that once was sung in Scotland before the Pilgrims landed in the western world.

About sunset that afternoon, Newt came upon the Rawlins girl milking near the barn. When she raised her head from the flank of the cow and saw him standing a short distance away, a sudden stream of color came flooding to her cheeks and temples. He had not yet heard her speak a word, but now after stammering a moment she said:

"Hit was mighty good of ye, Newt, ter take up fer me. I'm much obliged."

The acknowledgment was somewhat difficult to make. This black sheep of her acquired family stood for all the things that the knightly Henry Falkins

had deplored in speaking of the lawless spirit of the mountains. He was the sullen impersonation of the murder-spirit which shoots from ambush. He had come from prison and it was Mercy, not Justice, that had opened the iron gates to set him free. She did not know that the testimony of Falkins had put him there, or that Newt's set purpose was revenge, but she had shaped her heart to despise him, and he had in a rough way stood forth her champion. Perhaps, after all, he too had been a victim of conditions bigger and blacker than his own nature.

Newt's scowl darkened. He was not accustomed to gratitude and in it found embarrassment.

"Huh!" he growled. "Hit warn't nothin'. I jest natcherly hates ter heer so much damn' naggin'. Why don't ye jaw back at 'em? Air ye sceered?"

The girl shook her head. "I ain't here much," she said, "an' I reckon thar's enough squabblin' in this house without me joinin' in."

"Well, that's yore business," commented the ex-convict, "but if I was you I'd stand up to 'em." He turned on his heel and left her.

To the house of McAllister Falkins "furriners" from the outside world came as to an oasis in a desert, or perhaps, more properly speaking, as to the tent of a great sheik set in the oasis, for the father of young Henry Falkins was "the grand old man of the mountains."

His forefathers had come from Virginia with the ideas of the old chivalric régime. It was the tradition that when the first Falkins set his face to the unbroken west, he had brought with his pioneer outfit a retinue of negroes, a string of race-horses and a coop of fighting cocks. The game birds and the gamer horses had not been game enough to survive the hardships of the wilderness road, but the main stem of the Falkins stock had retained its stamina and refused through a century to degenerate. Collateral branches had one by one lapsed into the semi-barbarism of a cruelly isolated life. Nephews and cousins bearing the same name had succumbed to intermarriage and degeneracy, yet the main stem had grown straight. Old

McAllister Falkins was a college man and a lawyer who did not practise. Though he was the foremost bearer of the name which stood linked with that of Spooner as giving title to a feud that had bathed the country in bloodshed for generations, neither he nor his direct ancestors nor his direct descendant had ever been drawn into its vortex. In some miraculous fashion he had been able to stand aside, admired by his tempestuous kinsmen; respected even by the equally vindictive Spooners. To have raised a hand against "Old Mack" Falkins would have been to defy both clans. To have raised a hand against his son would not have occurred to any Spooner other than young Newt, mad with rage and private hatred. Old McAllister Falkins had represented his district in Congress, by a vote of both factions, and his retirement had been voluntary. It was his hope that his son, too, might become the shepherd of these wild, goat-like sheep, and wield an influence for peace. Now, both father and son were deeply disquieted at the menace of a fresh up-flaring. The death of Falerin would fire the Falkins clansmen, and if that dreaded intriguer, Black Pete, showed his face in the hills it was difficult to see how calamitous days could be averted. As yet the Deacon had not appeared save in Winchester, but on Friday the Clark County court was to hear a motion for bail, made by the two defendants, and, if it were granted, Saturday would see them back in Jackson—and then the deluge! Saturday is a day for gathering at the county seat and for drinking white liquor. The Falkinses would without doubt be there, too, in force, ready to recognize and resent insult, and the town would be much like a powder-magazine used as a smoking-room. McAllister Falkins had advised such of the Falkins leaders as he could reach to keep the clan out of Jackson, or, if that were impossible, to hold the dogs of passion and carousal in leash. He meant to be there in person to aid in the work of pacification. If only Red Newton and the Deacon did not reappear, like Mohammedan prophets among wild tribesmen, the dangerous day might yet dawn and spend itself without bloodshed.

While the two enlightened men of the name were sitting one afternoon on the porch of their house, discussing these matters, they saw a horseman riding down the road which looped over the mountain. The traveler sat his saddle with straight shoulders and his height approached the gigantic. Before he had reached the palings of the yard fence, the angle of his black hat and the tilt of his chin proclaimed him the Deacon.

Old McAllister Falkins rose with a suppressed exclamation of dismay, and Henry bit off an oath.

Black Pete Spooner rode along at an easy amble, and outside the fence he drew rein and sang out in a grave and utterly unembarrassed voice:

"Gentlemen, may I alight and have speech with you?"

The two Falkinses rose and walked down to meet the unexpected visitor, uncertain what attitude to take in the face of such stupendous effrontery. The dark giant offered his hand, and said:

"I reckon you gentlemen are a little surprised to see me, and I guess when you know why I came you'll be still more surprised."

CHAPTER X

Gravely restraining their protests until the visitor should have spoken, yet heavy-hearted with premonition, the elder and younger Falkins led the way up the flagstone path to the porch. Had the head of the house of Montagu strolled casually in, his hands still red with murder, for an afternoon call at the strong-hold of the Capulets, his advent could hardly have been more unexpected or unwelcome. The Honorable McAllister Falkins and his son were mountaineers, and to the mountaineer the voluntary arrival of a guest under the roof-tree is a mandate to consideration so long as he remains there.

The Deacon disposed himself in a heavy split-bottomed rocker, and for a time a survey of the landscape seemed to absorb him.

The house sat in its yard overlooking the twisting road and the steep banks of the middle fork of Kentucky River. For that unlettered land it was a mansion, with its two-story height and painted weather-boarding. Its glazed, green-shuttered windows gave it a certain dignity. Instead of puncheon floors, there were carpets and such furniture as one might have seen in the outer world, mingled strangely with old-fashioned reminders of pioneer life. At one end of the porch leaned a discarded spinning wheel, and an arm's length away stood the phonograph with which the two Falkins men had been soothing their anxieties with the strains of "Il Trovatore."

Off to the side of the house stretched an orchard in whose shadowed rim of lingering locust bloom ranged a trim line of ancient "bee gums." It was a simple and rambling farmhouse, but in a country of squalid habitations it partook of a certain grandeur, and one must needs go far to find a more ruggedly magnificent outlook, over park-like stretches of patriarchal timber, palisading river-banks and towering mountains, than that commanded from its verandah.

For a few moments the Deacon sat in his rocker with as little seeming realization of his unwelcomeness as though he were an old friend and constant visitor. He sat upright, his hat lying on the floor at his side and his

hands resting on his large-boned knees. Both the men of the Falkins house acknowledged anew how unusual and commanding was that face, and how difficult it was to recognize upon it any hall-mark of crime or villainy. The dark eyes were steadfastly gentle, and even under the long drooping mustache the lips held a sort of dreamer's curve. Finally, the visitor spoke.

"The more I study about it, the more I'm afraid that Saturday can't hardly pass by without trouble."

McAllister Falkins rose from his chair and paced the porch. At last, he paused before Black Pete Spooner, and began steadily:

"I don't know why you have come to me." The old gentleman's voice was self-contained, though his eyes bored accusingly into those of his visitor. "I certainly shall express no criticism until you have said in full whatever you came here to say. You must know that I have always held aloof from feud-bickerings. You must know that I have always counseled impartially and truly such men as have come to me from both factions. But above all you must know that, if there is bloodshed in Jackson on Saturday, no other thing will be so directly responsible for it as your reappearance in the county. Your presence and Falerin's death will be the twin causes. If you seek to avoid a holocaust, you are pursuing a strange course."

While Falkins talked, the Deacon listened attentively, acknowledging the force of each remark with a grave nod of his head. At the end of the speech he sat awhile with his brows judicially drawn, then answered:

"There's a heap of truth and good sense in all that. I don't expect you to take my word on any matter, but I'm here to propose doin' things, not just sayin' things. I think there is one way to keep these boys from mischief, if you two men and me can act together." He paused after that a moment, then his voice came deeply resonant and full of warning. "And I tell you that whether I'm at the North Pole or right here, unless we three do get together, there's goin' to be hell in Jackson next Saturday."

He held them both with so steady and guileless a gaze that for a moment both of the advocates of peace and law wondered if they were not actually talking with a convert; wondered half-convinced, despite all they knew of

his history. Henry Falkins filled his pipe in silence, and then, as the three settled themselves in their chairs, Black Pete began again:

"You men both know what a bad name I had when I left these mountains. I was guilty of several crimes to start with, and my reputation did the rest. Whatever meanness broke loose got laid to my door. I'm not complainin'. Enough of them accusations were true to give fellers license to suspect me in the balance. Then I went away."

"With the understanding that you were to stay away," interrupted McAllister Falkins.

The Deacon nodded his head.

"I'm comin' to that," he answered with tranquillity. "Anyhow, I went away, and I've come back with just one hatred left."

"What is that?" demanded Henry Falkins. This man with one hatred was more to be feared than another with many.

"Hatred of lawlessness and the sort of meanness that assassinates and quarrels," was the quiet and surprising response.

There was no offer to argue or deny, and after a moment he went on.

"That sounds a little funny from my lips, I reckon, but all I ask is a chance to prove it."

"And simply going away wrought this conversion?" It was the elder man who put the question, and his voice was frank in its scepticism.

The Deacon shook his head.

"No, not only that. It's a long story, and there's no need for tellin' it all. But some of my time out West I was prospectin' in Old Mexico. I was took down with fever, and they nursed me at a monastery. I caught on to considerable Spanish, and—well, to cut it short—I got religion. But as far as my past record goes, maybe just because I've got the name of being so mean and troublesome, there are some men hereabouts that would hearken to my counsel when they wouldn't listen to a better man."

He paused and sat staring absently across the river, but his eyes were taking in everything, and, as he turned his grave glance on his auditors, he was keenly studying their faces.

"What plan did you have to propose?" inquired Henry Falkins.

"It's this way," came the prompt reply. "There are just two men in this country that can talk to a Spooner an' a Falkins alike an' be hearkened to by both. You are the two men. But there are a few Spooners that won't even listen to you—and they are the meanest of the lot. It's the meanest men that make the most trouble—and these are the men that will listen to me. If we three are in town Saturday—"

"If you are in town Saturday, mingling with the Spooners and inflaming the Falkinses, the entire state militia couldn't maintain order," broke out old McAllister with vehement heat.

"Now, wait a minute!" And not for one minute, but ten, the returned exile talked. As they listened, the father and son saw unfold a plan of unexampled boldness and danger, particularly of danger to its proposer, but as it outlined and developed itself they began to see also a dawn of hope. The very effrontery of the thing might carry it through peril to success.

"I won't equivocate," responded the head of the Falkins family with blunt directness. "If you are honest, you deserve to be treated frankly, and, if you are not honest, there is no use in flattering you. It's not my way to flatter men. You have always been a plausible talker, and you have cloaked many criminal acts under that plausibility. On the other hand, I can't see anything which you could gain in this matter by deceit. On its face it looks fair enough—and if you come through alive, it may bring peace to the county."

Again the Spooner leader nodded gravely.

"That's worth taking a chance for, ain't it?" he inquired.

"Have you talked to any of your people?" demanded the old man as he agitatedly paced his verandah.

"No—I haven't seen a soul except those in my own house—and you. I didn't want it known yet that I was in the county. But in the next two nights

I'm goin' to have speech with a half-dozen Spooners, an' they'll be a half-dozen of the strongest men."

McAllister Falkins considered for a time, and put a pertinent question.

"Can you and your half-dozen hold the Spooner crowd in check? Saturday will be the fourth of July. There will be heavy drinking in Jackson. Can you answer for your rank and file?"

For just an instant, the grave face of the dark-haired giant lost its impassivity and something like a snort of contempt escaped his lips.

"When you drive sheep," he demanded curtly, "do you consult the fool beasts? Give me the sheep-men an' the sheep-dogs, an' I'll pretty nigh tell you where the sheep are going to."

The visitor rose and stood looking from the eyes of one to those of the other.

"We will both be in Jackson on Saturday," said McAllister Falkins.

"Me, too," said the giant. "But I'll be there unbeknownst until the minute comes for me to show myself."

The Deacon had taken up his hat and reached the top step of the porch. There he turned and, looking at the younger man, suggested:

"I was goin' to advise that you didn't go, Henry. Your father can do what's got to be done."

"Why?" demanded the son sharply. "You arrange that my father shall take his life into his hands in an effort to quiet a frenzied mob, and then suggest that I let him go alone? Why?"

The visitor seemed to sympathize with the sentiment.

"That's right," he conceded. "After all, you've got to go. I don't think Mr. Falkins is runnin' much risk. I don't think there's a man in these parts that would harm him or let him be harmed. But it's a little different with you. Little Newt Spooner has been pardoned out of the penitentiary. I guess you knew that?"

"So I heard. What has that to do with me?"

"Well, he's a mean little devil, that boy is, an' he's holdin' it up against you that your testimony busted his alibi."

"Now, Spooner," Old Mack spoke quietly but with an ominous force, "you have just said you could herd your sheep. If you can't handle the youngest and blackest of them, we might as well abandon the bigger experiment. If through this boy any harm comes to my son, I give you the fairest warning that for once I shall take the law in my own hands—and kill you."

Henry Falkins laughed.

"Father," he said, "there's no occasion to excite yourself. I'm not troubled about Newt."

But there was no spark of resentment in the Deacon's face. His eyes lost none of their thoughtful gentleness. He held out his hand and spoke deliberately:

"If Newt hurts Henry, Mr. Falkins, you can hold me accountable. If either of you men were hurt by one of my family, my life wouldn't be worth two bits. I reckon you know that, and you know that I know it. I'll see to little Newt, but it wouldn't hardly have been honest not to tell Henry that the boy is nursin' a grudge." He turned and went down to the stile and turned his mule back for the twenty miles that lay between the house of McAllister Falkins and the section of Troublesome where the Spooners held dominion.

The Deacon had much to think of. He had come back from the West because he was homesick; because as the warden had told Newt: "Every mountain man that goes away drifts back to the mountains. God knows why they do it, but they do." As long as Jake Falerin influenced his tribe from Winchester Black Pete's return would be impossible. As long as the Honorable Cale Floyd lived, his influence would reach back and bear fruit in the mountains. For those reasons the Deacon had staged the shooting in Winchester. Now, with the brain and counsel of Jake Falerin stilled, he saw, in a great peace movement, a chance to beguile the lesser leaders of his foes. Having satisfied his private designs, it was nothing to him that others with equally strong grievances must pocket them and sit silent under the

truce he meant to make. For a time he intended that this truce should be honestly kept, but later—

The Deacon was thinking several moves ahead. Yet he, who could dictate to a fierce faction, stood in fear of little Newt. He had stopped him once, and had promised the boy his future assistance. Newt wanted one of the only two men in the country who must not be killed; whose assassination would bring down the wrath of the state and flood the county with soldiers, and make even a timid judiciary more afraid to shield than to punish. Yet, how to stop this boy puzzled Black Pete to such an extent that, as he rode, his brow was deeply corrugated. Inwardly he cursed bitterly the ladies who had sympathized and the Governor who had pardoned. It would have been much better to let the troublesome prisoner rot in the penitentiary.

The Deacon was not riding the county roads back to Troublesome. He was taking a shorter and steeper trail, which led over the mountains. Travel by this way was slow and arduous, but it was an isolated way and offered a better route for a man who wished to ride unseen.

At a point where the narrow trail doubled sharply around the shoulder of a hill-top and where the soft earth deadened the hoofbeats of his horse, he came unexpectedly on a walking figure. The mounted man had come around the angle so unwarnedly that he seemed to rise from nowhere. The walking figure had made an instinctive dive for the cover of the roadside brush and tangle, and then, with a realization that it was too late to escape detection, had halted and stood with his bare feet planted in the soft mud of the road and his face slowly blackening. The man on foot was Newt Spooner. He was once more dressed in mountain jeans and butternut, and at his side his swinging right hand clutched a repeating rifle.

The Deacon drew his horse to a standstill with an amicable nod.

"Howdy, Newt?" he greeted. The boy made no response, and shifted his weight from foot to foot, while his eyes kindled with growing fury. About a little roadside puddle fluttered a small flock of white and lemon butterflies, disturbed by human invasion, and on a branch overhead a squirrel ran out and stopped cautiously.

"There's a squirrel, Newt," suggested the Deacon casually. "I reckon you're squirrel-huntin', ain't you?"

But the boy did not answer, and the Deacon knew why. He was thirteen miles from home, and was stalking bigger game than squirrels.

CHAPTER XI

For a little space the two men looked at each other, the Deacon to outward seeming with the casual interest of a chance meeting, and the boy with a lowering truculence which augured trouble.

The little mud-butterflies alighted again at the edge of the puddle, and the squirrel whisked himself away.

Back on the hillsides the white elder blossoms and pink-hearted laurel cups nodded in the sleepy languor of a summer afternoon. In the overhead blue a buzzard drifted on tilting wings.

"You're right far off your beat, ain't you, son?" suggested Black Pete at length.

The sullen visage did not alter or brighten.

"I hain't none too fur off," was the surly response. "I reckon I knows what I'm a-doin'."

The Deacon nodded. He had been thankful for the momentary silence which had afforded him an interval for fast and very necessary thinking, and he had made use of the opportunity. Straight as a crow flies, Newt Spooner was making his way across crest and cove and gulch to the house of the man he had "marked down." He had been home three weeks now, and his lungs had drunk in the splendid mountain air and the elixir had begun to heal the soreness of his chest. The pallor had left his face and the native brown had come again to his skin. Newt Spooner was tough-fibered, and his recovery, as any eye could see, would now be speedy and complete. Also, he had practised with his rifle until he no longer doubted his ability to handle it, and he was going on this tuneful and gracious day at the end of June to carry out his unalterable purpose. All this the Deacon read from his eyes and from the circumstances of the meeting. The Deacon had gone to the Falkins house unarmed, as his pose of peace-advocate required, and the boy standing in the road before him had shifted the rifle with a rather

marked emphasis of gesture, so that now it was cradled on his elbow, and his right hand was almost caressingly toying with the lock. This time he could command the situation, and his face said that he meant to do it.

"I reckon I know what you are aimin' to do, son," suggested the older man as he swung one leg over the pommel, and sat sidewise, looking down.

The boy's eyes flashed.

"Hit hain't whut I'm *aimin'* ter do," he declared. "Hit's whut I'm dead shore *a-goin'* ter do."

"It comes to the same thing," agreed Pete imperturbably. "When a feller like you an' me has got his mind made up to a thing, there ain't much difference between aimin' an' doin'."

Suddenly it occurred to the boy that the presence of the Deacon over here was in itself worthy of explanation.

"Whut air ye a-doin' hyar?" he snapped out.

"I've just been over to Old Mack's house," replied the other frankly, and he saw the boy's attitude stiffen from head to foot at the name. His shoulders grew rigid and his eyes snapped. The rifle came half-way up, and the rifle-bearer came a step forward.

"Ye didn't carry no warnin' over thar, did ye?" The question was a snarling whisper.

Black Pete laughed. It was a thing so rare for him to laugh that the boy was surprised, but at once he grew thoughtfully, even sadly grave again.

"Son," he reproached, "when we told you down in Winchester what we aimed to do, an' you turned us down, did I act like I was afraid of your warnin' anybody? Moreover, didn't I promise you that I'd help you in this business?"

"I don't need no holpin'," declared the boy vehemently; "all I asts is ter be let alone."

"All right." The Deacon swung his dangling foot back to the stirrup. "I was just goin' to name it to you that Henry Falkins ain't there. If you're set on walkin' these three miles more for nothin' and then walkin' 'em back again, go right ahead. There'll be half-a-dozen Falkinses to see you and spread the news that you've been skulkin' round the place. You'll give the whole business away without findin' your man. If that's the way you want to play your game, go ahead."

The boy gazed at his informant with disappointed eyes, and the Deacon gazed back steadily.

"Air ye plumb shore thet he hain't thar? He was thar day before yestiddy. I knows thet fer shore." The boy spoke eagerly, but the more wily schemer shook his head with positiveness.

"He left this mornin' for Winchester. Seems he's got a girl in Winchester. Ef you're inclined, you can get up behind me, an' I'll give you a lift as far as I go."

Newt believed this story, but it only fired his wrath, and his voice was sour, as he put his next question:

"Whut in hell wus you a-doin' over thar at McAllister Falkins' house?"

It was naturally no part of the Deacon's program to tell that. His mind was even now working rapidly in the effort to devise some permanent means of curbing Newt's sinister activities. The present device of falsification was merely a play for time and would serve a very transitory purpose.

"Oh," he said casually, "I don't mind tellin' you, but I wouldn't like it to get round much, son. I was pullin' the wool over their eyes, an' tryin' to help out those boys that shot Jake Falerin."

But, if Black Pete Spooner could have looked far enough into the future, he would have allowed his lawless cousin to go his way and satisfy his vengeance, and would have taken his own chance on escape.

The two rode on together, up steep ascents and down into fragrant gorges where the waters whispered and the dampness of fern and moss lay between dripping boulders. They went through densely tangled trails where the

incense of the elder and catalpa was heavy to the nostrils, and climbed over steep and precipitous heights, and to neither came a throb of enthusiasm for the profligate beauty of the vistas.

"Clem's gal" had gone back to school some time ago, and it was only on vacations and Saturdays that she returned to the cabin on Troublesome.

But this afternoon, when Newt trudged in from his futile expedition across the hills, he saw her crossing the yard in the gathering twilight, and this time the boy did not growl in his throat like a quarrelsome dog at the sight of her. He would not admit to himself that he liked her, but he disliked her less than the others. She was too much like a "furriner" to please him, and too quiet. There was no element in his creed of intolerance, which could understand her gentleness. It was sheer weakness, yet in that very weakness was an appeal to something in himself, which he did not seek to analyze. At all events, "Clem's gal" in a way interested him. She was young and lithe and strong; stronger than the women whom she permitted to badger her with incessant shrewishness. Also, she must be "smarter" than they, for she had been away to school. This fondness for "larnin'" in itself indicated a reprehensible spirit of acceptance for the "stuck-up" ideas of the outer world. But for that she had some excuse. Her shiftless father, for whom the boy entertained a deep contempt, had humored his daughter's ambitions so that she might in the end secure her teacher's certificate and contribute to his support. It was not an unselfish motive, but the girl, eager for education, had not questioned motives.

When Lucinda Merton had taken Newt in her buggy on the outskirts of Winchester, a vague sense of sunshine had struck through the fog of his friendlessness, and he had, for the first time, a conception of feminine graciousness. In his brief talks with Minerva the same incomprehensible thing occurred. Some unaccountable glow of sympathy awoke in him, and he felt that he need not be on the defensive, alert for treachery and enmity.

When she went away, a sort of dull loneliness settled over him, and when she came back, an unacknowledged pleasure stole into his heart.

After the supper things were put away Newt went sulkily out of the cabin and took himself to the quiet of the creek-bank, some distance away. There was no moon, and in the starlight the mountains loomed very dark and somber against the steely night sky. The trees were unstirring and no wind moved even in their uppermost fronds. The boy sat hunched at the top of the bank with his face in his two hands and his elbows on his knees. At last, he reached into his pocket for his pipe and a few crumbs of tobacco. In the spurt of the match, his features were for an instant lighted, and Minerva, who also had slipped out of the crowded cabin for the peace of the open air and the stars, saw in the momentary illumination that it was a face very black and brooding and unhappy. She, too, was unhappy. She was thinking how at this hour back there in the school, the little family of teachers and such pupils as had not had to come away would be sitting on the latticed porch, looking off over the campus. Later on, in the comfortable library, the man who guided the institution with a sure and sympathetic wisdom would be reading to them under the shaded lamp, giving them wonderful glimpses of another world through the windows of books. Reflecting on these things, the girl had strayed farther away from the house than she had expected, and had come upon Newt, brooding in solitary wretchedness over the day's failure.

"Newt," she said shyly, when she came up to him, "ye looks like as ef somethin' was a-botherin' ye. Is anything wrong?"

The boy turned his head slowly, then shook it in silence.

"Nothin' to tell a gal," he answered.

In the darkness he was a black silhouette except that as he drew deep puffs the pipe-bowl reddened and gave momentary outline to his tight jaws and scowling mouth.

They sat together without talk for a time. Once a small owl flapped to a branch overhead and sent its mournful quaver out across the night. After awhile the boy groped around for a stick, and, rising with a sudden angry oath, hurled it viciously at the bird.

"Damn the owl," he complained. "Hit worrits me."

"Newt—" the girl's voice was softly reproachful—"why did you drive it away? It wasn't hurtin' anything."

"Hit warn't a-fotchin' joy ter nobody," he sullenly rejoined. "I hain't a-feelin' in no fit humor ter be pestered."

Once more she inquired:

"Is anything the matter?"

He rose, and his voice broke out passionately.

"Every man's hand is sot ergin me—but hit hain't no use. I 'lows ter accomplish my task, ef I has ter go through hell on hossback ter do hit!"

She did not know, or vaguely suspect, that the thing he "'lowed" to do was to kill the man whom she had set high on the pedestal of her hero-worship; that his avowal was the avowal of the vendetta's lust for blood. She saw only his isolation and need of friendliness. She did not know that in letting himself out in even that small measure of confidence, he was paying tribute to her increasing importance in his life. She knew only that her sympathy was stirred and that an affection such as she might have felt for some unlovely dog, starving for affection, made her want to befriend him.

"My hand ain't against you," she assured him, and, as the pipe glowed with a long, half-fierce inhalation, she saw his eyes on her face with a dumb, half-worshiping expression, for which his lips found no utterance. But all the man said was:

"I'm obleeged ter ye," and after that they sat for an hour in silences rarely broken with a disconnected conversation. It was the conversation of two very lonely people groping for companionship, but one was very shy and the other was fettered with a taciturnity too strong to break, so the groping brought little more than an incoherent sympathy.

Neither of them heard the footfalls of a horse on the sandy road above them, and neither of them knew that Black Pete Spooner went into the cabin and spent a half-hour there. His coming was at once a surprise and an event, for the people in that house had not heard that he had reappeared in the hills, and they knew that where he went trouble went with him.

"Where's little Newt?" he inquired, peering about the dark corners of the room.

"He's done went out somewhars," replied his mother. "When did ye git hyar, Pete? I heered tell that ye had gone off to some place the other side of the world."

"Didn't Newt tell you I was back?"

"Newt don't never tell us nothin'," complained Clem.

The Deacon nodded. Then he drew Clem aside.

"Do you know what little Newt aims to do?" he accusingly demanded.

Clem shook his head, and his bearded face mirrored anxiety.

"I done told ye he don't never tell us nothin'."

"Well, he's aimin' to kill Henry Falkins, an' if he does it, there's goin' ter be merry hell to pay in these mountains. You've got to keep an eye on him."

"My God!" exclaimed the step-father in genuine fright and perplexity. "What kin I do? He don't pay no mind to me—none whatsoever. Thet boy's a rattle-snake in human form."

The Deacon looked the other contemptuously up and down.

"No, he ain't," was the prompt retort. "A rattle-snake gives warnin', Newt don't. I'm havin' him watched pretty close. I don't want him hurt, but he mustn't kill Henry. Don't tell him I've been here, but if he starts over towards the Falkins place, send word to Jim Spooner's cabin. Jim will go up to the ridge an' blow his fox horn, an' they'll pass it along. Try to keep him home from Jackson Saturday, but if he does go, send word to Jim when he's started, and we'll take care of him when he gets there." The Deacon turned and disappeared through the door. He had several other houses to visit, and he had selected the night because in its darkness he could give his movements a highly beneficial secrecy.

But, on the following day, Newt met an acquaintance on a hill-trail, who stopped him for conversation and planted seeds of suspicion in his mind. He

spoke of a rumor traveling from cabin to cabin to the effect that the Deacon had returned to the hills to act as a pacificator, instead of a leader of war.

Newt said nothing and contented himself with listening, but deep in his suspicious nature uneasy doubts began to stir. A peace might be welcomed by his people, but to him it threatened the paralyzing of his trigger-finger. Possibly the wily Deacon had lied to him and turned him back for some deeper reason than merely to save him the remainder of a profitless journey.

So Newton Spooner, as soon as he had the opportunity, began strolling from cabin to cabin along the way toward the Falkins house once more. He heard, but did not know the significance of the fox horns that carried clearly from ridge to ridge, and when he had reached the wayside store of Sam Hoover, standing on a sandy stretch in the crotch of two creeks, he instituted active inquiries.

CHAPTER XII

Sam Hoover he thought he could trust. Sam, at least, had come to him when they were taking him to prison, and had denounced the lethargy with which his kinsmen were standing idle while he went into bondage.

The store was a frame shack, presenting at its front a barrel-littered porch and a hitching-rack. Beyond one of the creek branches stood a dilapidated "meeting house" in a flat, gravel-strewn area. Sam Hoover himself sat at his door; a slouching giant in store clothes, coatless and open of vest, collarless and soiled of linen. His movements were ponderous, and his eyes were sunk in pouched sockets.

As Newt slouched up to the porch in the forenoon, the waves of heat were playing over the earth, and the mountains were torpid with mid-day stillness. This was a point about half-way between the two clan centers, and the man who trafficked here presented to each faction in turn the guise of friendship and to each played the tale-bearer under his smug semblance of neutrality.

But the place was a point from which branched the road that Henry Falkins must travel to Jackson, and the store-keeper would know when he had last passed that way.

Now, it happened that, though the Deacon had invented on the spur of the moment his news of Henry Falkins' departure, he had come much nearer the truth than he himself guessed. Almost a week intervened before Saturday and it had occurred to the young man, although he would have laughed had someone else made the suggestion, that the Fourth of July held some element of danger for himself. That being the case, he was possessed of a desire to see the girl in Winchester in the meantime. It might be a last chance. He had no intent of confiding in her anything that might alarm her, but he thought that with her words of love fresh in his memory he could undertake Saturday's work armed and accoutered with a higher confidence. So, almost on the heels of the Deacon, when he had left the Falkins house, Henry had ridden, bound for Jackson and Winchester. Had Newt Spooner

gone home on foot and by the county road instead of with the Deacon and by sequestered trails, the two men must have met near Hoover's store—and Henry Falkins would not have gone on to Winchester.

Sam Hoover greeted the boy with a, "Howdy, Newt?" and the boy sat on the floor of the porch with a silent nod, and leaned his shoulders against a post. At last, he questioned casually:

"Hev ye seed anything of Henry Falkins hereabouts of late?"

"He rid by hyar this week," the store-keeper responded. "Hit war either the day afore yistiddy or the day afore thet, I disremember which, but he stopped to water his horse, and passed the time o' day with me. He 'lowed he war a-travelin' ter Winchester."

"Air ye plumb shore he hain't rid back?"

"He 'lowed he'd be back Satiddy—an' I hain't seen him pass by, so I reckon he warn't a-lyin'."

Newt sat watching a flock of geese that waddled down the gravel to the creek, and Hoover forbore to question him. After a space the boy rose, stretched his arms and legs, and succinctly announced, "Reckon I'll be a-startin' home." He did not know that men apportioned to that task by the Deacon watched and reported his going and coming, even to the words of the brief conversation at the wayside store. Sam Hoover, however, gave his information impartially, and the Deacon was duly informed.

Henry Falkins was riding along the gleaming white ribbon of turnpike near Winchester.

Over this land was brooding one of those days of rare charm that sometimes come to the bluegrass about the first of July. While the summer was yet young and while the gold-headed wheat was falling into rich shocks behind the binder blade, there had drifted into the heat a vagrant breath of Indian summer. The distances lay softened by a mistiness that clung like a haze of dreams. Into the air stole an insinuating freshness, which set the blood to a

keener pulsing, and over the breast of the undulating soil hung an impalpable, but unescapable, mantle of romance.

The slim girl who sat her dancing saddle-mare with the easy grace of a daughter of generations of horsemen, felt it and glanced sidewise at the somewhat grave-faced young man by her side. He, too, felt it and drank in long drafts of the incensed air. He was as well mounted as herself, but his horsemanship lacked her instinctive freedom of poise. Henry Falkins, though much of his life had been spent in the saddle, had been reared to the ways of a country where men must ride rough and tortuous roads and rarely ride well. The horse of race-track and show-ring and hunting field were as alien there as the other bluegrass luxuries of wainscoted halls and silent servants and groaning tables and silver-surmounted sideboards.

Even now, athrill with the joy of the moment, Henry Falkins felt at the back of his mind an oppressive sense of the humorless and brooding hills, and the humorless and brooding men who peopled them.

They were turning between stone gate-posts into a driveway that led through shaded woodlands where thorough-bred dams grazed in sleek aristocracy with leggy colts capering at their sides. Beyond was the brick house, toned by its generations to an ancient richness, with its harping pine and cedar trees about it, and at the left its garden, giving a border of bright flower mosaic.

They had not been talking much. They were both happy enough to be silent together, but as they turned into the home place Lucinda raised sparkling eyes. He was riding close, and, as his horse swerved suddenly to the side of her own mount, she leaned impulsively toward him and let her gauntleted hand drop for a moment to his bridle arm, as she whispered happily:

"My bluegrass is yours, and your mountains are mine—and all the life of Kentucky is ours!"

At the broad verandah where a negro appeared to take their horses, Colonel Cameron looked up from his paper and smiled his welcome. The entire house seemed to smile a welcome. Late roses still clung along the walls where their earlier brethren were fallen to pods. The girl sat in a deep porch-chair and the setting sun gilded the landscape and rested on her

delicate coloring and features as she smiled on the two men whom she loved: the old man of the passing order of chivalry and elegance, and the young man of slowly awakening hills. And when night came the man and the girl sat alone in the shadow of an oak. Soon he must be back in the troubled highlands, but to-night was his, with its stars overhead; its sense of security and delight; its whispered talk; and, drifting from the negro cabins, the mellow cadence of songs and the tinkle of banjos. When the girl fell silent and he spoke only by the telegraphy of his hand-clasp on her slender fingers, there came to his ears the words of an old song, forgotten save by these children and grandchildren of slaves:

"Way down yander in de big bayou—
Whar de Yankee gunboats lay,
Ole Massa's tuck his hat an' coat—
An' I spec's he's runned away."

Yet, Henry Falkins was conscious of missing something that should go with the night, for there was no calling of whippoorwills from the overhead thickets of timber and no dark shadow-walls of mountains closing in about him.

Early on the morning of Saturday, the Fourth of July, Newt Spooner left the door of the cabin on Troublesome, and went across to the stable, carrying his rifle. Under his coat was strapped Clem's revolver, and again his pockets were "strutty with ca'tridges." He vouchsafed no explanation, and Clem, though heavy-hearted with anxiety, asked no questions and attempted no dissuasion. He merely stood looking on stupidly, as the boy led out and saddled the one nag in the stable, and swung the beast's head toward Jackson, riding away in the morning mists. Over these roads, climbing, dropping, crossing water-courses sometimes by a dozen fords to the mile, he did not hurry. He would not reach Jackson by the north road until about ten o'clock, and then he would drift quietly and unostentatiously about for a while, watching the gathering of the two clans. There might be general trouble or there might not; but until noon quiet would prevail. The Deacon had certain plans and would be in command. The boy was learning the

lesson of craft. He meant to see the Deacon and assure him that he had given up his plan of private revenge. He would even volunteer for such service to the clan as Black Pete should suggest. Having so disarmed suspicion, he could have a free hand, and, when his chance came, could employ it. Once avenged, he was ready to answer for his treachery.

The usually deserted roads were no longer empty. From every trail men were riding townward. The rumor had gone broadcast that to-day would be eventful, and from both sides of the line the clans were gathering. Many of them arrived early, and instinctively Spooners grouped themselves on one side of the street and Falkinses on the other. Rifles were much in evidence, but with this exception there was as yet no sign of trouble.

As Newt had ridden out of the stable-lot, Minerva had come to the door of the cabin. On the Fourth of July there were no classes at the college, and the girl was back. She saw her father gaze after the departing horseman and then turn with a sagging jaw and an expression of genuine alarm in his eyes. She heard him shout a summons to his younger step-son, and a premonition of danger arose in her heart.

She ran over to the stable, and caught Clem Rawlins by the arm.

"What is it, pappy?" she demanded.

He turned a frightened face toward her, and licked his bearded lips. For a moment he was silent, then he blurted out with no preface or preparation:

"Newty's done sot out fer Jackson ter git Henry Falkins."

With a gasp which she struggled vainly to suppress, the girl reeled back and stood leaning for support against the rough timbers of the stable. For a moment she could not understand, and when she found words she asked in a dazed voice:

"To get Henry Falkins—why?"

Over the hills the mists were slowly lifting. The upper peaks still trailed over their heights, veil-like streamers of gray mists which blotted out all outlines; but below them pale and iridescent patches of color glowed with indescribable delicacy and beauty. The miracle of awakening morning in the mountains was fulfilling itself. There before her the girl saw the crude barn and heard the grunting of razor-backs and the voices of the geese as they waddled down toward the water. She saw her father brushing his arm across his face, and shouting at intervals for his younger step-son. Once more she repeated:

"To get Henry Falkins—why?"

"Henry's ther man thet penitensheried Newt," came the response. "Newt's done swore the blood-oath. He's done tried oncet afore, but he was hindered. Thar's a meetin' over at Jackson terday, an' men air lookin' fer trouble. Newt aims ter git Henry terday."

Suddenly the girl's stupor broke into a fury of inquisition.

"Does ye aim ter stand there an' suffer a man ter be murdered without liftin' a finger ter save him?" Her questioning voice rose shrilly and lapsed into dialect. "Why did ye stand by an' let Newt go?"

Clem Rawlins shook his head.

"What war I a-goin' ter do?" he perplexedly demanded. "Does ye reckon Newty war liable ter take counsel offen me."

"Well, ye've got ter do suthin now, Clem Rawlins," she commanded, and her voice was fiercely imperative. "Ther blood-curse hes laid on these hyar hills full long, an' God Almighty will hold ye blameful ef ye don't stop this killin'."

The man stood there dazed and frightened, and dropped his eyes before the flaming accusation of her steady gaze.

His bare toes twisted themselves in the dust, and at last he spoke, almost in a whine:

"Ther Deacon hes done bid me ter fotch word ter Jim Spooner's cabin ef Newt fared forth terday. They aims ter send ther signal ahead with fox

horns, an' ther Deacon 'lows ter look atter Newty when he gits ter town. Thet's what I'm a-callin' sonny fer. I wants ter send him over ter Jim's house."

The girl laughed scornfully. This moment of need had transformed her from Minerva of the schools to Minerva of the unrelenting hills. Her mission was still the mission of the school, but her method was the method of the hills.

"An' ye aims ter trust ther life of ther only real man in these mountings ter ther dawdling of sonny?" The question was contemptuous. She, who brooked day-long heckling without retort, must now be answered without evasion. "No—I'll go myself, an' I won't stop thar. I'll borry a ridin'-critter from Jim Spooner, an' I'll take the short cut over ther ridges an' ther roughs, an' I'll git ter town ahead of Newt. I aims ter carry a warnin' inter Jackson."

She wheeled and without sun-bonnet or hat plunged into the laurel thickets of the hillside, and was climbing with a tireless stride up slopes which would have winded a razor-back hog.

Later on, she could think: now, she must act. The life of the man she had idealized was the prize for which she was fighting.

Suddenly the full significance of the boy's declaration that he would accomplish his end if he had to "ride through hell on hossback" came to her.

She had started out by hating Newt. Of late, she had felt that deep sympathy for him which is the borderland of affection. She had resolved on reclaiming him. Now, again, she hated him.

Fifteen minutes after she had started, she was riding away from the stile of Jim Spooner's house on a borrowed mule. The short cut she contemplated taking required a mule. There were fords where a horse, with its less steady footing, would have probably hurled her to death. There were washed out trails where the ride would be in the nature of tightrope walking. But these things did not deter Minerva Rawlins. She was a mountain woman with a mission to perform.

As she rode away from the stile, she heard a deep mellow note, which was not loud, but which she knew would carry for miles—the note of a fox horn. It was once the signal of the moss-troopers. It had rung over the

heather and gorse in Scotland hundreds of years ago. To-day it would ring as truly over the Cumberland ridges where these belated Scotch highlanders lived the old life in the old, unalleviated way.

She leaned forward in her saddle, lashing her mule with a hickory branch, and listened, and at last her lips curved in a momentary smile of satisfaction. Far ahead of her, more faintly and more distantly, she heard it again. The message was being relayed.

But in that long, hard ride, with the forests tuneful in their color and their unspeakable beauty, yet eloquent in their silences, she had ample opportunity for reflection, and as she reflected, the bitterness oozed out of her heart, and in its place came compassion.

Now, she realized that she was not fighting only to save the life of the man whom she had idealized, who to her was the one knightly person she had ever known; but, also, to save from himself the boy with the black obsession.

At first, Newt had seemed only a murder-driven miscreant whose aims she must thwart. Now, she saw him from a different angle. He was the victim of the false order, which those men and women at the school sought to amend. She, also, was seeking to amend it, but while she must give battle to Newt Spooner and defeat his purpose, she could do so with the realization that his guilt was only the guilt of a sort of lunacy, for which he was scarcely responsible.

His was one idea. He was a prison-reformed man, which is often to say an embittered man.

Of course, she knew that, when he learned what she had done, Newt would believe that the one friend he had ever known had become his irretrievable enemy. Of course, in honesty, if he did not learn it from another source, she must herself tell him what part she had played in this day's happenings. That she would do, and in the end perhaps he would thank her.

At last, on a spent and limping mule, she rode into Jackson. Finally, she stood face to face with the venerable old man, to whom she gave her message. Henry Falkins had not yet reached the town, but she conveyed her warning to his father, and, when she did so, she learned that the pre-

arranged code of fox-horn signals had already brought the tidings, so she slipped away and hid herself indoors at the house of a kinsman.

It happened that just as Newt rode his horse around the bend of the north road and turned into Main Street, his eyes narrowed and his jaws clamped, and the lines that ran from his nose down around the corners of his mouth grew deeper and harder. He had heard the whistle of a train, and he knew that it was a signal announcing the approach of his victim.

In point of fact, it heralded not only Henry Falkins, but Red Newton, and Buddy Spooner, his accomplice, freshly released on bond from the Winchester jail, and returning, perhaps, to fire the waiting volcano.

Henry Falkins had seen the two defendants sitting quietly and peaceably in the smoking-car, and they had nodded affably to him. The young man stood now in the car vestibule, as the train roared over the trestle and slowed down at the station. On the platform were two groups of men. They stood with a space between them and eagerly watched the incoming cars. As Henry Falkins swung himself down from the step, he noted, despite the general and studied calmness of deportment, several details which were to his eye significant. He saw in both groups the faces of men from far away in the recessed fastnesses of the hills, who came to town rarely, save in answer to the call of the clan. These men were even more uncouth of apparel and wilder of visage than their brethren. Their dialect, too, was quaint, and some of them carried muzzle-loading squirrel-guns of a pattern long obsolete, save in the antiquated life of "over yon."

McAllister Falkins met his son on the platform, and together they crossed the toll-bridge into the meandering streets of the town proper, where the shacks and houses sprawled like pieces thrown haphazard from a dice-box on a dozen levels and slants. At length, Old Mack voiced his apprehension:

"It looks ugly, my boy," he said. "Jake Falerin's son, young Jake, has assumed the leadership, and his one song is punishment of his father's murder. He's drinking and excited, and he has a strong and nasty-tempered force behind him. I've been with him, urging peace, and several of his older

advisers seem inclined to listen. I've gotten their promise that they will make every mortal effort to delay any outbreak until I've made my speech at noon. That's as far as I can move them."

"And the other fellows—the Spooners?" inquired the son anxiously. "What's their mood? If they commence celebrating the return of these assassins, the situation will become hopeless."

McAllister nodded.

"So far they seem quiet enough, but they are all armed to the teeth and keyed to concert pitch. Black Pete has kept religiously out of sight, and seems to be acting in good faith. He slipped secretly into town before sunrise, and has been under cover ever since in the court-house. He has talked to several of his leaders in my presence. They, too, have promised to hold their hands until I have spoken. My God, Henry, the single chance seems to hang on the possibility of my being able to sweep them off their feet—and if I fail—!" He broke off suddenly, and his eyes wore the torture of weariness.

They walked between swelling crowds, always separated by the width of the street into opposing forces, but from both groups the glances that fell upon father and son were glances of confidence and admiration. If there was any man living whose voice could penetrate, with a message of harmony, their armored hatreds, that man was McAllister Falkins. But he had won and held his influence by his total aloofness of attitude. Now, he was to take a central and pivotal position, and, if he failed, his prestige would go down to wreck with his effort, and the work of a lifetime would collapse like a pin-pricked balloon.

No women or children were to be seen on the streets. Doors were closed, and the more public hitching-racks were empty. Horses and mules had been relegated to back streets and sheltered places. But as yet from the gathering storm-cloud had broken no rumble of thunder and no flash of lightning. There was only a constant tightening of nerves to the point where they must be released or snap.

To the eyes of Henry Falkins, the answer was hideously clear. They meant to hear his father patiently as a matter of respect; but they had no intention

of being influenced by what he said. When he reached his conclusion, the gathered tempest would break; and, when it had subsided, another bloody chapter would have been added to the history of these mud-rutted and twisting streets. It could not be undone.

Meanwhile, even the complimentary restraint could not last, if a single fanatic broke from the order of the ranks.

The hours crawled with heavy suspense toward noon. Crowds that had been attenuated strings along the sidewalks began drawing in and concentrating at the court-house square. On the right, the Spooners gathered around the figures of the two returned defendants, while on the left the Falkinses drew about a raw-boned young giant whose baleful eyes never left the faces of Red Newton and Buddy Spooner. This was "Young Jake," itching to be about his work of reprisal and impatient of delay. Stragglers drifted in until only the brick path and a few feet of hard-tramped earth at its margin separated the two armies. Newt Spooner was going up and down the street sorely perplexed, because he had been unable to locate the Deacon and make the pretended peace-pact, which was a prerequisite to his own arrangements. Wherever he went, a half-dozen men went also. They were not always the same men, but they were always the same in number, and he knew that he was being watched by an escort of the Deacon's selection, and that until he satisfied that leader, he could not shake them off.

Then he saw McAllister and Henry Falkins, coming toward the court-house. The sun was directly overhead now, and the shadows were short. Newt tightened his grip on his rifle, and, as he did so, the unconfessed body-guard closed around him and worried him with casual conversation. The boy ground his teeth and waited.

Then, as McAllister and Henry Falkins turned into the court-house yard, something happened.

Young Jake Falerin had made his way through his own crowd to the foot of the court-house steps, as befitted the claimant to feud leadership. From that place of vantage he could hear what was said and give his orders when the speech ended. Red Newton and Buddy Spooner had acted on a similar impulse from their side of the path, and as the recently orphaned youth

raised his eyes, to find them gazing into those of his principal enemies, his promise to wait became a forgotten thing.

With an oath, his hand swept under his coat, and came out armed. Red Newton had been equally swift, and for an instant the two men stood facing each other with leveled pistols.

At that cue, the clicking of scores of rifle-hammers ran along the waiting lines. Yet, for a second or two, there followed no other sound. The knowledge that to draw a trigger indubitably meant to fall oneself in the same breath, was holding them in check for an undecided breathing space. If a gun cracked now, it meant wholesale carnage along those ranks. Both lines knew it—and hesitated.

Then, while they stood tensed of muscle and blazing of eye, old McAllister Falkins stepped between the ringleaders, and held up his arms. At his side stood his son Henry, and on the quiet of indrawn and tight-held breaths the elder's words broke with almost as staccato a sharpness as that which would have come from the lips of the guns.

CHAPTER XIII

For years no man had heard McAllister Falkins speak except in the smooth and cultivated parlance of the lowlands. In Congress he had been accounted silver-tongued, yet now, by some stress of excitement, when the white-haired patriarch lifted up his voice, words came tumbling from his lips, not in measured phrases but in the crude cascading force of vernacular.

Henry Falkins had felt instinctively that the greater danger for his father lay toward the guns of the Spooners, since it was hardly likely, even in so impassioned a crisis, that a Falkins rifle would turn on a Falkins breast. Acting in response to that belief, he had stepped between the old man and Red Newton, and the two men stood back to back, while the tableau held, each of them unarmed.

And as old McAllister raised his clenched hands and roared out in a voice that carried, "Stop hit, ye damn' fools!" he found his snapping eyes gazing into a pair that looked down into his own, though he stood an even six feet in his socks. The eyes of the protagonist were not snapping like his own, but smoldering dangerously with hatred and resolve. The entire face was black and rigid, from its unkempt locks of jet to its high outstanding cheekbones and clamped under jaw. The right hand that had raised the pistol still held it, but instead of pressing it to the breast of his enemy, young Jake now found it trained on the venerated man whom he must not injure, and with slow unwillingness the muzzle drooped.

"What deviltry air this?" thundered McAllister Falkins, addressing himself to the young ringleader. "What hes happened to the breed of Falkinses thet a man what gave his hand in contract breaks his bond? Air the Falkinses turned liars and pledge-busters?"

"Why hain't ye a-talkin' ter them other fellers, too?" demanded young Jake with that nasal shrillness which excitement brings to the mountain tongue. "Does ye see any more guns over hyar then amongst them murderers?"

At the epithet, a murmur ran ominously along the opposite side of the path, but there were men there to quiet it at the raising of Henry Falkins' hand; men representing the Deacon, whose influence, though unseen, was powerful enough to hold his people leashed.

"Never mind why I don't talk to them." The resonant voice of Old Mack rang like a bell, and, now that the first death-freighted instant had passed, he spoke again without dialect. "I'm talking to you now. You-all gave me your pledge that you would hear me out without a breach of peace. You tried to break that pledge. You drew first. I saw you. I am talking to you now, and I speak as the oldest man in the county who bears the name of Falkins. I speak as the man who has the right, if he chooses, to be the head of the Falkins family, and I am talking to you who are a young cub of a boy and whose name is not even Falkins—and by God, sir, I mean to be listened to!"

Sentence mounted on sentence with growing stress of passionate force, and then came a new silence as the old man stood there, weaponless and rigid, glaring into the face of the younger, who, with pistol half-raised, burned slowly from the nape of his sinewy neck to the top of his forehead in an angry wave of color. But suddenly at his back young Jake felt, rather than heard, a low murmur, and he knew, as it grew and traveled among his clansmen, that at a word from this gray-beard, his people would repudiate the young pretender and follow the aged and rightful leader into war, or—which was a more stressful test—into peace.

While this question of family supremacy was argued on the Falkins' side of the path, the Spooners stood silent, intruding no evidence of interest. They simply waited.

"You have assumed to be the leader of the Falkinses," went on the old man. "By what authority? Tell me that!"

"My pap war the head of our kith an' kin," retorted Jake hotly; "an' I'm his son. He's done been murdered, an' I hain't the sort of a Falkins that sets still an' lets them things go on."

And so capricious is the spirit of a mob that at that statement, as though they had been momentarily misled, a new murmur of concurrence in the

sentiment rose from the Falkins side and one or two voices—well in the protected rear—shouted, "No, and we hain't nuther!"

"Silence!" roared old McAllister again. "Let's talk about one thing at a time. You gave me your hand to wait until I had had my say, and you tried to break your bond. When I have had my say, you men can talk about what you are going to do. If you make a move before I've uttered my final word—either you men over there—" with a wave of the hand to the right, "or you over there—" with a wave to the left—"you stamp both crowds with the brand of perjury. And, when I talk, the first thing I shall demand is that the Falkinses either change their names or get a grown man with brains in his head to lead them."

The speaker paused, and the crowd waited, tense and breathless, but now the rifles again hung at their bearers' sides, or rested with grounded stocks. Then young Jake inquired in a sneering drawl:

"Wall, why don't ye begin yore speech?"

"I'm going to, but first I'm going to ask your uncle, Job Falerin, and Jim Falerin and Mark McDonald to come out here."

Slowly three men worked their way to the front of the crowd.

"Men," instructed McAllister Falkins, with the decisiveness of a general officer who has no doubt of instant obedience for his commands, "take that boy's gun away from him until I'm through." For a moment they hesitated, and the boy himself tightened his grip on his weapon until his knuckles showed in white spots.

McAllister Falkins caught the wrist and held it; without a word the three elder kinsmen surrounded and disarmed the young insurgent. Instantly, McAllister Falkins wheeled to face the Spooners.

"Jim Spooner, Joe Belmear, Jerry Sparvin!" He ripped out the names rapidly and crisply. "Do you do likewise with Red Newton and Buddy Spooner."

But the two defendants had been reading the signs, and, as their kinsmen came forward, they voluntarily surrendered their weapons.

"Now," went on the old man, "I'm going to ask you boys on both sides of the road to show me one more evidence of good faith. Let all the men in the front of this crowd carry back their guns and stack them at the rear. Then let them come forward again. Don't let us have any rifles or pistols at the front."

Rather wondering at their ready compliance, yet under the force of something like a spell and also with a sense of immense relief, the crowd began shifting and jostling, and when it again fell quiet not a barrel or stock was visible.

Slowly old McAllister ascended the court-house steps and stood looking down.

"Now," he announced quietly, "I want those same three Falkins men and those same three Spooners, still armed, to come up here and stand on either side of me. I wish to have the honor of their services as my escort and body guard."

As he spoke the last words the old orator smiled, and through the crowd, humorless and grim as it was, ran a murmur of responsive laughter at the ludicrous jest of this old lion asking personal protection. Yet he had drawn impartially from both elements, and the men named stepped to their places with alacrity.

Then the old man began to speak.

The mountaineer has few pleasures, and except for feudal warfare, few excitements. He loves the fulminations of public speaking and the stirring influences of the forensic. McAllister Falkins they believed to be the greatest of all orators, and no interrupting sound broke the thread of his speech. He praised the good in both factions and denounced their mutual lawlessness. He pleaded with the Falkinses, as with members of his own family, to await patiently the process of law in the trials of Red Newton and Buddy Spooner. If they were guilty, they should be hanged. If they had acted in self-defense, they had the right to Spooner forgiveness as well as vindication at the hands of the jury. He hazarded no opinion as to the facts. He only begged all men to wait and see, and while they waited that their leaders should shake hands and maintain as a sacred thing the truce so

plighted. But it was the fashion of his saying these things which in the end availed, for he knew his hearers and played on their emotions as a pianist plays on the keys of a familiar instrument.

"Why," he cried at last, "in the good days when we all came, Spooners and Falkinses alike, out of the mother state, facing our common enemies in the wilderness, we came as comrades and as friends. When we quarreled, we settled it in the honest way of men with fist and skull. Then we shot from cover only upon wild beast and Indian, never upon our neighbor. We lived the lives of men, and died God-fearing deaths."

He paused. He had been heard with a rapt attention, but he knew that the difficult part of his speech lay yet ahead, and, as he wiped his forehead with his handkerchief, the voice of young Jake Falerin flung challengingly up at him the first interruption.

"We can't be friends with Black Pete Spooner a-stirrin' up strife in these mountings." And after that came cries of "Where is Black Pete?" and "Tell us about the Deacon!"

"Black Pete Spooner is in the mountains, and he is here in town," replied the orator quietly, though he found it difficult to make so portentous an announcement calmly. "But he declares he is here in the interests of peace, and is willing to let you, not only Spooners, but Spooners and Falkinses alike, judge whether or not he can stay. If you decide against him he is ready to go. He asks only that you hear him out, and I ask only that every man of you give me his hand on it, that until he has spoken no one will attack him. I have never had dealings with the Deacon. I have never trusted him, but now I ask you as a personal favor to hear him; holding your hands and paroling him in the interval to my care and in my custody."

There was no immediate response. A moody silence settled over the Falkins men, as though the favorite patriarch had asked too much, but McAllister Falkins turned questioningly to Job and Jim Falerin and Mark McDonald, standing at his side. These three ambassadors looked out over the sea of upturned faces with the scrutiny of weather-prophets studying the clouds. After that, for a moment they whispered together, and at last Job, as the senior, stepped forward and declared in a clear voice:

"The Falkins boys is willin' ter hear what the Deacon's got ter say. They're willin' to give their hands thet if they thinks he's a-lyin', as he gene'lly is, they'll hold him safe twell the train leaves fer Winchester termorrow mornin'—provided the Spooners keep faith."

"That's all I ask," assented McAllister Falkins, and he held out his hand. Slowly and solemnly, in the order of their ages, Job, Jim and Mark shook it, pledging their kinsmen. The whole proceeding, so medieval and rude, yet so characteristic, struck young Henry Falkins with a grip of the dramatic.

But that moment of drama was to be followed by another and tenser one, for the elderly speaker turned toward the court-house door at his back, and raised his hand; and in response to the signal the tall and dignified figure of the Deacon appeared for a moment framed there, and came forward to take his place at the side of his sponsor.

They knew he was coming, were expecting him; had agreed to hear him speak, and yet, when they actually saw him, it was with something like a shock to the Falkins element, so that, despite the bondage of their pledge, a low chorused growl ran from throat to throat. Many of their younger clansmen had never seen this man of whom such black tales were told. None of the older men had seen him in recent years.

His name and his repute stood as a title of ruthless power, of guile and murder. It was a name with which children were frightened into obedience in log-cabins, up and down the creeks where Falkinses and Falerins dwelt.

And for a space Black Pete said nothing. He stood looking down, his broad shoulders drawn back, his hat at the familiar forward tilt, his long chin raised, and in his steady eyes the contemplative half-dreamy look of a pastor gazing down on his flock. Perhaps he was thinking of that other scene when another man had stood, just as he did now, on an elevation at the front of a court-house. That man had fallen at his order. The Deacon knew that to one-half of his auditors he was a man "marked down" and a truce-breaker, but his face mirrored no such recognition, no apprehension, and, when he began to speak, his voice went out to the far edge of the crowd, though it went in such soft modulation that it did not seem loud to those who stood nearest.

He declared that he was not attempting to defend his past. His present mission was reparation. He told with a homely and convincing force, yet with modesty and humbleness, of his experiences and conversion. He had come back only to ask permission to stay; and, if permitted to do so, his influences would hereafter be for peace.

McAllister and Henry Falkins would testify that it was at his suggestion that these speeches had been made. He had talked with the Spooner leaders, and could also speak for them. He was ready to establish a truce of two years' duration, and he hoped at the end of that time it might be made permanent. He did not hope to be believed without proof. He therefore offered himself as a hostage, and hereby placed himself in the custody of the three Falkinses, who stood upon the court-house steps. He would go unarmed to their houses as often as required, and keep in touch with them—as a probationer. He took all the chances that such a course involved—and took them willingly, he said, since, if he could bring peace to men who should live as neighbors and friends, his own life was a little thing. It was a masterful bit of hypocritical eloquence, of *argumentum ad hominem*; but it was made to simple and illiterate hearers. At its end, he turned dramatically, drew from its holster his heavy-calibered revolver, and presented it, grip foremost, to Job Falerin. An almost awed silence fell on the audience. Across the street, windows began to open cautiously and female heads to peer out. The long, unbroken quiet had reassured the town. Curiosity was overcoming caution. From the hotel, a short distance away, two traveling salesmen, who had heretofore remained indoors, ventured to take a walk of investigation. Then with an audacity that only a born leader would have risked, the Deacon made a suggestion to his custodians and with them went down the stairs, not among the Spooners, but among the Falkinses. He walked like a revival convert being accepted into fellowship. He offered his hand to young Jake with the declaration:

"Jake, I aims to see that the trials for your pappy's killin' are on the dead square."

After a moment of hesitation and to the astonishment of everyone, the young feudist accepted and shook the proffered hand, which, though he did not know it, had directed the assassination of his sire. In about ten minutes, the three Falkins men and their hostage returned to the steps, where

McAllister and Henry still waited, and in final ceremony the three Spooners gravely shook hands with the three Falkinses. Upon that signal, the clear space of the pathway overflowed, and the men on both sides mingled. Flasks appeared, and enemy drank with enemy. The truce was signed. Henry Falkins heard one old man from far back in the hills say to another, equally old, to whom he had not spoken in years:

"Jesse, you damned old sinner, why hain't ye niver come over ter buy them hawgs offen me thet ye traded fer ten year back?"

And the other man laughed shrilly, and retorted:

"Why you dod-gasted ol' rascal, I knew too durn well ye'd swindle me." And then with loud guffaws of laughter they passed and tilted the flask, and hobbled away arm-in-arm.

From the window of a house on Main Street, commanding the ratty thoroughfare which glared in the yellow July sun, Minerva looked out at the scene of reconciliation, and her heart beat with relief. A day of bloodshed had been averted, and the man she had ridden a dangerous road to warn walked in safety with his shoulders drawn back and his face smiling. For a moment, the girl wished that he might know how, since that day when he handed her the medal, she had carried his image in her heart—but, of course, if he remembered her at all, it must be only as one of the children of the old benighted order who were availing themselves of the light from the torch of which he had so eloquently spoken.

But in all this peace-making one man saw only defeat. Newt Spooner with heavy heart had left the crowd, and mounted his horse. Despair had settled on his soul, for now to kill Henry Falkins would be an impossibility. But as he rode into Main Street, crowded with indiscriminately mingled factions, he saw McAllister Falkins a half-block away and his son Henry, walking side by side.

Then, suddenly, Newt Spooner saw all things through a fog of crimson. The blood leaped to his temples and pounded there. He had made no truce, had signed no pledge, was bound by no man's bond. He would kill Henry Falkins here and now, and then go down like a mad mullah, satisfied to pay the penalty with his own life. He cocked the rifle and swung sidewise in his

saddle, supporting his weight on one leg, so that he might face the better to the side. Then he kicked both heels into the sides of the old nag, and went yelling and careening down the street, to overtake his victim and defy both clans.

Still gazing from the window, Minerva Rawlins saw that, too, and stood breathless with her hands against her breast, as the wild-eyed, liquor-inflamed boy came dashing along through the crowd. The town was small, and here, on the little strip of Main Street, all its activities centered. She looked on as one may watch a stage from a box, and her fingers clutched at her calico dress, as she stood in an agony of suspense.

CHAPTER XIV

The town marshal at Jackson was Micah French, and he was town marshal because his temperament was not one to be depressed by the quick step of stressful events. The arrival in town of men a-gallop and inflamed by liquor was not in those days unusual, and was regarded with a certain tolerance. The law was accustomed to let youth have its fling and later, under circumstances more auspicious, to serve a writ on the offender and hale him in a spirit of contrition before the magistrate.

This, however, was no ordinary day. Had Newt Spooner timed his demonstration for forty-five minutes earlier, his coming would have set such a large storm thundering that no peace-maker could have averted battle. Newt had waited, hoping to placate the Deacon, and had failed. Now, in desperation, he was running amuck. For a moment, Micah French, loitering at the curb in front of the court-house, failed to grasp the significance of the matter. He followed the course of usage, and allowed Newt to pass by.

But the Deacon, standing in a doorway which McAllister and Henry Falkins were just then approaching, recognized the full threat of the episode. He was accompanied by the six men of both clans, who had undertaken to act as the personal guard for Old Mack. As the two peace-makers came abreast, the Deacon, laying a hand on the arm of each, halted them and gave a signal to the others to close around. Then, as the two men, so suddenly swallowed in a human cordon, still questioned without comprehension, they were borne back into the doorway of the small shack store, and the Deacon with his three Spooner kinsmen ran again to the street.

The Falkins guardsmen had taken in the whole situation at a glance, and they remained indoors with the men whose safeguarding had suddenly become something more than an honorary task. The thing had been abrupt, but they needed no explanation. A Spooner had "bust loose," and to the Spooners belonged the first duty of handling their own law-breakers. If the Spooners failed, then they could themselves act later.

So, Newt, aflame with rage and the liquor which during all the forenoon he had been drinking, jerked his horse to its flanks, and looked wildly about. He had been riding in the approved fashion of the mountain bad man with his reins in his teeth and both hands dedicated to his firearms. His feet had been flying like flails because the old nag was unresponsive to his belligerent ardor and lent itself grudgingly to this mad career. But, spurring and shouting through his clenched teeth with his body swung sidewise for the broadside, Newt suddenly saw his victim surrounded and spirited into a place of safety. Then, with a howl of anger, he took one hand from his rifle to drag at his horse's mouth. He was going into that house, if he had to fight his way over every man in Jackson. By-standers scattered, not because they feared a drunken boy with a gun, but because just now they stood on their good behavior, and hesitated to shoot.

"Let me git at Henry Falkins! Git outen my road!" screamed the boy. His whole appearance was that of a maniac, and, as he spoke, the Deacon and his three henchmen came hurrying from the door into the street. Newt did not see them because his mad course had carried him a few yards beyond the shack which was his objective, but Black Pete and his allies were losing no time. As the boy swung himself from his saddle on the far side of his nag, his eyes still turned inward, he flung himself straight into the bear-like hug of the Deacon. Before he could struggle free, he was pinioned by three other pairs of arms, and was a prisoner. Kicking, biting and bellowing, he was disarmed and carried unceremoniously out into the street.

Someone asked contemptuously, "Who is that fool kid?" for Newt had not been much seen in Jackson since they had taken him down to the state prison, and to many persons he was still a stranger.

The boy himself tried to answer, but was silenced by a hand clapped roughly over his mouth; so he only gurgled and choked.

"It's only Little Newt Spooner," enlightened the Deacon commiseratingly. "He's just got drunk, an' ain't hardly responsible. Where's Micah French?"

"What air ye 'lowin' ter do with him?" asked a Falkins man, who expected the lad's kinsmen to make excuses for him, and carry him back to his own cabin. The Deacon looked up with a glance of grave reproach, as though the question grieved him.

"What can we do with him, except put him in the jail-house? He was breakin' the law, wasn't he? He was threatenin' the peace and quiet, an' endangerin' human life, wasn't he?"

It was a timely and popular play. The Deacon had offered to prove his conversion by his works, and here within the hour was an opportunity ready to his hand. It was a thing almost unheard of in feud usage, this turning a relative over to Falkins officers. And yet as greatly as it strengthened him in the eyes of the public, it carried a tremendous danger. He could now expect no loyalty from Newt. Newt, if he came to trial, might be stung into telling what he knew of the Deacon's part in the murder of old Jake. Still, it was a case for quick decision, and he did not hesitate. Moreover, Newt in jail would be more amenable to persuasion than Newt out of jail.

Falkins men gravely declared that Black Pete was standing up to his contract, and, since none of the Spooners cared much for "little Newt," he had small sympathy among his own kindred.

To the left of Jackson's court-house sits Jackson's "jail-house"—for the mountaineer would as readily call a court-house a court as a jail-house a jail. It is a small building of home-baked bricks, and its windows are low and iron-barred. Just now, it was empty—save for Newt Spooner. The solitary inmate was not to be released until the Deacon spoke the word, but there was no intention of bringing him to trial. It was merely a case of "sobering up" explained the peace-maker, as he rejoined the street crowd.

Not until the next day did the Deacon go to the boy there, and when he went, he went alone.

"Son," he said sadly, as he looked down on the seated figure, which did not rise to receive him, "I hated to do you that way worse than I can tell you. You know why I had to do it, don't you?"

"I knows," accused the boy bitterly, "that ye gits ever'body kilt thet ye wants kilt, an' I knows thet ye lied ter me an' fooled me. I knows thet ye've done been a damned traitor."

"I reckon it does look right smart that way to you, son," acceded the other. "It can't hardly help seemin' that way—an' yet I was tryin' to save your life, an' I did save it."

"I hain't none beholden ter ye fer thet," snorted Newt. "I didn't ask ye ter save my life. I'd a heap ruther ye'd quit a-meddlin' so damn' much in my business."

"But listen, son. A man can afford to look ahead an' bide his time. Just now, we've got to lay low an' keep quiet. All the Spooners except you have agreed to do that. You're a young feller with your life ahead of you, and waitin' a little won't hurt you. You've got to let this Falkins boy alone for a year. When I talked to you at Winchester, I didn't rightly know how things stood down here. Give me your hand on that, an' I'll get you out of here."

"I won't do hit," snapped the boy, defiantly.

"Then I guess you'd better stay here a while." The Deacon's voice was regretful.

"Ye means thet I kin lie in this jail-house tell I promises ye not ter hurt Henry Falkins?"

"Till you promise not to hurt him for a year," amended the other.

"An' I tells ye you kin everlastin'ly go ter hell!" shouted Newt, his face working spasmodically under his wrath.

It would have brought a ray of comfort to Newt, had he known that Minerva had fought back her disgust for the wild and lawless picture he had made, and had asked permission to visit him in the jail. She had wanted to plead with him, as the Deacon had pleaded, though it was not for a year, but for always, that she would have begged him to bury his enmity. Perhaps, she thought, if in this hour he felt the hand-clasp of friendship, he might realize that there are better things than hatred and the blind service of hatred. But the Deacon thought it best that no one save himself should talk with Newt. He might tell too much.

"I'm right sorry," he said, and his eyes were gravely sympathetic; "but the boy's been drinkin' right smart, an' I reckon it wouldn't hardly be best for you to see him. No, it wouldn't hardly be wise."

Three days the Deacon left him there, but on each day he argued at length and kindly, pointing out that his action was the hard course of one who

could not permit his sympathies to swerve him. Meanwhile, the prisoner was practically in solitary confinement, for the Falkins jailer followed the Deacon's directions, and allowed no one else to talk with him.

On the third day, Newt capitulated, and, though his promise of twelve months of forbearance was given under duress, and the Deacon knew he had incurred an enmity which would be lifelong, he knew, too, that the promise would be kept. That night Newt rode sullenly to the cabin on Troublesome, and stabled and fed the nag, and, when he had taken his place in front of the fire, he sat moodily and in unbroken silence for a half-hour, and then he looked up, and said shortly,

"Clem, I reckon I'm a-ready to do my sheer of work on the place. I'll feed the hawgs in ther mornin'."

A cold drizzle had come with nightfall; a fire had been built. One by one, the family "lay down," and from the four corners of the room came the heavy breathing of their slumber. But Minerva did not at once fall asleep, and so she knew that far into the night Newt sat gazing into the dying embers, and she covertly and shyly watched his face, very drawn and miserable.

At last, she slipped from the covers, and, coming over, laid a hand on his shoulder.

"Newt," she said in a low voice, "you're in trouble, boy—and I'm sorry."

"Thet's all right, Minervy," he answered, without moving, but into the surliness of his voice crept a trace of breaking.

Some day, of course, she must tell him exactly how responsible she had been for his failure, but just now she could not. He was wretched because he had not succeeded in repeating the infamy and the crime which had at first wrecked his life. By every theory of morals and every form of right-thinking he was beyond the pale of sympathy—and yet—Minerva Rawlins had in her veins enough of vendetta blood to understand that his suffering was genuine and that from his one view-point he had defaulted a debt of honor.

It was a thing of her doing, a thing which, if need be, she would do again; but that did not prevent her seeing in the thin, haggard-faced boy, who watched the embers die to ashes, a creature for whom she could feel sorrow—even sympathy. Perhaps it was a sympathy too wide in its scope; but, if so, it was a criticism for which Christ, Lord of broad sympathies, might, possibly, have felt a leniency.

In the months that followed, Henry Falkins organized and drilled into some semblance of military form a company of militiamen. His men were enlisted from Falkins and Falerin territory, and, though he invited the Spooners to join them, the distance made it impracticable. Henry believed that by military training these people might be weaned from lawless intolerance to a rudimentary acceptance of discipline.

One day, Newt Spooner, having ridden over to Jackson, saw these raw amateurs going through their manual of arms, and he stood at the side and sneered contemptuously as he watched. But the Deacon, who watched, too, did not sneer. With a constant diplomacy Black Pete had rehabilitated his reputation, and, if any of the Falkins clan still disbelieved in his sincerity, he was lonely in his scepticism. Men on both sides ceased to speak of the "truce," and called it by the more permanent name of "peace." But, reflected the far-sighted Deacon, there might come an outbreak some day, and then it would be no advantage to the Spooners to have a hundred Falkins take to the brush with the high-power military rifles. It would be just as well, if this militia idea were a good one, to carry it further. The county should have not one company—but two. Over in the section where the Spooners held dominance, the second should be mustered. So, in the course of time, the Spooner platoons were duly organized and taken into the state guard. The Deacon himself consented only to become a sergeant. Yet, from the inception, it was the sergeant, rather than the captain or lieutenant, who dictated every matter of importance.

The feeling between the erstwhile enemies had become outwardly so cordial that a challenge was given and accepted for a competitive drill, and Newt, who had at first scoffed and then yielded to the lure of the military,

marched with his comrades the little matter of twenty miles to Jackson, bearing a Springfield rifle and wearing a state uniform.

He had seen Henry Falkins only once since that Fourth of July, and it was now October. The hills were ablaze with gold and burgundy and scarlet. Newt knew that Captain Falkins would not command his company that day: that he was in fact "down below." Had he not been assured of this, he would have stayed at home and sulked in the woods.

He was biding his time. He had neither forgotten nor forgiven.

And yet, in spite of the black shadows of a life which exalted the vindictive and scowled on every gracious thing, Newt Spooner felt to-day the stirring of a new emotion. In this novel game of playing soldier, he found, rather against his will, an interest that threatened to become an enthusiasm. For the first time in his lonely life, he began to taste, with a tang of relish, the pleasures of companionship. These men with whom he hiked accorded him a rough fellowship. At first, he had been suspicious and surly, but now, when they called him the "tough kid of Troublesome," he grinned sheepishly and without resentment. Newt was waking out of a sleep that had lasted since babyhood and that had been all nightmare.

The flaming hills with their veils of violet haze across the distances; the cheerful rustle of crisp leaves under foot; the whole autumnal gamut of color and fragrance and spice was softening the world, even to its hard men of the mountains. They swung their rifles and kits with a tramp-like slouchiness, and when the noon grew warm they insisted on hiking with their shirt-tails outside their trousers; but in their swinging gait was a tireless energy that could walk armory-trained men off their feet, and then, if called on, go fresh into battle.

They swung down Jay-bird Creek, and passed the mouth of Fist-fight, and there, lying above its saw-mill, came to view a bit of landscape as much out of the picture as though it had been torn from another page of the geography and pasted there by mistake. At the edge of a town, so sprawling and ragged that one did not see it until he stumbled upon it out of a creek-bed gulch, spread the smooth campus of the college.

But, before they reached that point, the commanding officer halted his command.

"Boys," was his informal suggestion, "we're about to pass thet-there new-fangled college. I reckon we mout es well give them folks a treat. Let's fall in an' march by there like shore-'nough soldiers."

Newt Spooner happened to be the file of his four, and as they trailed by the cheering little group of students, the ex-convict saw "Clem's gal" leaning on the palings, and though he did not know why, he felt something akin to pride and excitement, and straightened his shoulders, and bore his rifle more jauntily. Minerva leaned forward, waving her sun-bonnet, and called out, "Newt, I hope you boys win," and the lad marched on, strangely pleased.

In that picture of men marching in ordered ranks, and wearing the uniform which denoted service, she thought she saw a long step toward conversion, and an approach to a better standard, and Minerva, too, felt a flutter of pleasure as she watched the column disappear around the curve of the road with its yellow dust-cloud clinging in its wake.

The militia officer from the bluegrass, who had come to act as umpire, masked his smile as he judged that contest. Then the amusement died, and he remembered Napoleon's criterion: "The best soldier is he who can bivouac shelterless, throughout the year."

A temporary rifle-range had been established, and in the improvised pit, with a fifty-year-old sergeant acting as target-marker, sat the officer from "down below." The mountaineer squatted like a clay effigy on his heels, and smoked a cob pipe.

"Sergeant," suggested the officer in a pause, during the overhead shrieking of rifle-bullets, "in case trouble started down here in the hills—I mean if soldiers were called out—what do you think these men would do? Could they be relied on?"

The mountaineer drew a long puff from his pipe, and smiled grimly.

"Wall, now, *lew-tenant*," he drawled thoughtfully, "I'll jest tell ye ther truth. Ef thar was ter be trouble *somewhars else* these-here fellers would be all

right; but jest right round hyar—well, I hain't so plumb shore."

"Then you think—?" The officer left the question unfinished, and the target-marker again grinned.

"I hain't thinkin' nothin' much, but ye kin jedge yerself, *lew*-tenant, thet ef a couple of hundred fellers with these-hyar fur-shootin' guns was ter take ter the brush, thar mout be some hell ter pay fer a spell. I kinder reckon," he added gravely, "thet, ef things bust loose hyar-about, hit mout be a right-good idee ter take all these fellers up to Loueyville and lock 'em up in the jail-house thar. It mout be a right-good idea."

CHAPTER XV

A man whose outlook on life had been broader than Newt's, and whose brain did not receive constant poisoning from within, would have softened that fall and winter, because a new influence was working upon him.

The influence was Minerva, and the boy found himself, as the splendid fall died swiftly into the unspeakable desolation of a mountain winter, counting the days between her visits to the cabin. But of this he said nothing, and the only evidences he gave to her at first were mute evidences, and a greater ferocity in suppressing the spirit of nagging and persecution to which his mother and sister drifted with inevitable perversity. When the girl returned at Christmas, after a longer absence than usual, she found, to her astonishment, the contour of the cabin altered. Newt had thrown against one end an additional room. It was a simple annex of hewn logs and puncheon floor with a clay-daubed chimney and no windows, but it was tight-chinked and solidly weather-tight. When she asked about it, her step-mother sniffed contemptuously that it was some of "Newty's foolishness." Later, when the boy himself came in and saw her sitting with the family circle before the fire in the main cabin, he shuffled his feet clumsily, and seemed unwilling to meet her eyes. A great embarrassment was on him and he was more diffident in her presence than he had ever been before. The girl saw it and wondered, and, when she could do so without attracting too much attention, she found an opportunity to lead him outside.

"M'nervy," the boy said shortly, when they were alone, "sence ye've been a-consortin' with them-thar fotchted-on teachers at the school, hit seems like ye hain't got much use fer us plain folks. I reckon ye're right-smart ashamed ter acknowledge ter them folks who yore kin air."

"Oh, Newty!" she exclaimed, with a world of surprise and reproach in her voice. Her face flamed hotly; for, to the mountain idea, disloyalty to "kith and kin" is the most unpardonable of offenses. It was the first time she had ever called him Newty. They were standing out in the icy air of the doorway.

Inside the main cabin, the family huddled before the fire, as uncommunicative as cattle. The pall of the black squalor had been tightening about the girl's heart like an impalpable constrictor and almost strangling it. Outside, the bitter wind lashed her calico skirt about her slim ankles, and cut like a knife. The boy, who wore no overcoat, stamped his feet, and thrust his chapped and reddened hands into his threadbare pockets.

"Oh, Newty," she expostulated again indignantly, "I thought ye knew me better then ter accuse me of bein' ashamed of my own folks!"

"They hain't your'n," snorted the lad in a queer, hard voice. "Thet is, none of 'em hain't your'n barrin' yore pap. I hain't sayin' nothin' 'gainst Clem ter ye, cause ye're his gal; but the rest on 'em is my folks and I reckon I kin say what I likes. I hain't never had a friend in this house twell ye came hyar. I've sot in thar night atter night an' listened at thet old man a-ravin' an' a cussin' twell, ef he wasn't my great-gran'pap, I'd hev choked him. I hear'n them women folks a-pickin' on ye an' a pesterin' ye, an' I knows ye'd shake the dirt of this place offen yore feet an' quit hit for good, ef hit warn't thet ye 'lows they needs ye. Ye had ought ter do hit, M'nervy. Nobody wouldn't blame ye."

The girl shook her head. The moon had peeped over the shoulder of a sugar-loaf peak, and flooded the world in cobalt. The stark sycamores along the creek-bank rose gaunt and gray, and the ragged picket fence and stile and barn were black etchings against the frosted hills. On the boy's face the silver light showed a tracery of bitterness and weariness. To Minerva it ceased to be the face of an ex-convict and a vindictive criminal. It was only the rather thin and wizened visage of a prematurely aged boy, who had, in his wild-animal sort of way, undertaken to be her champion. He had undertaken it much as the dog with a name for ferocity might indicate its devotion to someone whose hand had not been afraid to caress its unlovely muzzle. She impulsively stretched out her hand and laid it on his coat-sleeve, and his arm shook, not alone with the cold, but with a strange new agitation under a touch of kindness.

"Newty," she said softly, "why don't you shake the dirt of this place offen your feet?" Her talk mixed up strangely mountain vernacular and the more correct form of speech which they had striven to teach her, at the school.

Newt only looked at her with a short laugh.

"Whar'd I go?" he demanded fiercely. "What do I know? What could I do? This is whar I b'longs." With a contemptuous jerk of his head toward the cabin, he added: "Them's my kind o' folks. I was born amongst 'em, an' I hain't been nowhars else except ther penitentiary."

It was on the point of her tongue to remind him that he had been to school; that he could read and write, and was young and strong, and that all the world lay open to him, but she waited. If she was to influence him, she must go slowly and guardedly. So, instead, she asked a question about the thing of which he had wanted to speak and concerning which he found himself suddenly tongue-tied.

"What's the new room, Newty?" she demanded.

"Oh, hell!" ejaculated the boy with a sudden rush of color that even the moonlight failed to hide. "Damned ef I didn't plumb fergit hit!" That was a lie, for he had not forgotten, only he had been too bashful to speak. Now he led her over and opened the door.

A fire was roaring inside on the hearth. The place was unfurnished except for a chair, a bed and a table, all home-made, but all clean and soundly carpentered. In the Frankfort prison, Newt had worked in the chair-factory.

"Ye see, M'nervy," he went on, floundering for words, "ye see, I hain't had nothin' much ter do round hyar, an' I thought hit mout kill some time ter sort of build this-hyar contraption. I 'lowed ye mout be a little more satisfied ef ye had a room of yore own, whar ye could go to, an' put ther bar acrost the door, when them women folks pestered ye, an' tell 'em ter go ter hell."

As the girl looked about the place—all her own—tears came welling to her eyes. How could this boy—more nearly a wild beast than any other human creature she had ever known—have had the delicacy to understand that longing for privacy and self-withdrawal which at times had almost maddened her with its intensity? She sank down in the one chair and sat with the flames playing on her face and lighting the tears that flowed noiselessly, and, when she looked up to thank her champion, he was gazing down on her with a face set in a mask-like tautness,—less it betray emotion of which he was ashamed.

But he had not missed the tears in her eyes and he knew that his humble service had moved her. Suddenly he knew something else. It was not only because she had been less unpleasant than the other members of the household that he had missed her when she went away and had looked forward to her home-coming. He had set up his shrine to hatred of mankind. His experience had taught him much of enmity and little of love. He knew in an impersonal fashion that men had sweethearts and went "sparking" with girls, but for all this sort of thing he had retained in his young manhood the same sort of contempt which most boys pass through and out-grow in earlier life.

Now, he stood there before the roar of the fire on the hearth that he had built and watched the shadows retreat into the corners of the room. He saw Minerva sitting with her eyes still pensive and her lips still smiling, and the flames awakening soft color on her cheeks and mahogany glints in her hair.

She was beautiful. To a more discerning eye that would have long ago been apparent, but until now beauty had meant nothing to Newt Spooner. It had not existed.

So, with the stunning effect of light breaking on eyes that have been sightless, the young man in the frayed and drab homespun, whose brain had been even more colorless and somber than his clothes, felt a wild hunger to take her in his arms and claim her for his own. That this thing had been growing in his mind, unrealized until this moment, he did not suspect. That it was much less sudden than it seemed, he did not understand. He knew only that he, Newt Spooner, vassal to hate, was now in love, and, as he acknowledged it to himself, his face became drawn and pale, and his hands clenched themselves, for with the self-confession came utter despair.

She sat there in the chair he had made, by the hearth he had reared, in the room he had built—and the work had been that of a good craftsman because they had compelled him to learn in the penitentiary. Outside the winds were screaming about the roof-slabs he had nailed down. She was so close that he could put out his hand and touch her—and because now he wanted her beyond everything, even beyond the life of the man who had ruined his life, it was terribly clear that she could never be close to him except in such physical proximity as that of this moment.

The ex-convict was not accustomed to thought. In its stead, he had substituted brooding. Thought is hard and tinged with torture for the brain that has not been reflective. Yet now he must think.

Minerva had been to the college. She yearned for even a greater degree of education. He had built this room because he understood how she shrank from the squalid and unclean life of the mountain cabin—and in all the mountains was no more squalid creature than himself. She despised the idea of blood-reprisal, and to forego that would, by his standards, mean a baser surrender than for a priest to repudiate his cloth.

He was ignorant, penniless, vindictive. She was, to his thinking, learned, fastidious and pledged to the new "fotched-on" order.

Should he tell her that he loved her, provided he could imagine his stoic lips shaping such phrases, she could only be offended and distressed. He must not tell her. That one thing seemed certain, and, as he stood there, masking the storm in his thin breast under a scowling visage of tightly compressed lips and drawn brow, he was being racked by a yearning greater than he had ever known or imagined.

How long he remained rigid and silent he did not know, but at last he heard her voice, speaking very softly:

"Newty, you have been very good to me. You did all this for me—and yet even you don't know how much it means to me."

"Hit warn't nothin'," he answered in a dead voice. Then, having resolved not to betray himself, he found himself crying out to his own surprise, in a tumult of fierce and passionate feeling: "I'd go plumb down inter hell, fer ye, M'nervy."

The girl looked up, then she rose unsteadily, and laid a hand on his arm. Her eyes were gazing very fixedly into his, and she spoke eagerly:

"You say you'd do that—for me. Do something else, Newty. Come—out of a life that's not much better than hell—for me."

He spoke quietly again, though under her finger-touch his arm shook as if it were suddenly palsied:

"I don't jest plumb understand ye."

"Give it all up, Newty." She was talking excitedly, and her words came fast. "Give up this idea of vengeance. It's all wrong and mistaken—and wicked. It hurts you most of all. You said out there to-night that this was the only life you ever knew—"

"This an' ther penitenshery," he corrected her; and a harsh note stole into the words as he uttered them.

"There are other lives you can know. Can't you forego this idea of vengeance? Can't you forget it?"

The man gave a short and hollow laugh.

"I reckon so," he answered. Then, as his eyes flashed wildly, his utterance rose and snapped out the remainder of his response. "When Henry Falkins is dead an' buried—damn him!"

Minerva stood looking into the face that was close to her own. It was a face branded and stamped with so fierce a vindictiveness that she realized the hopelessness of argument. It would have been as easy to persuade a maniac to become sane by asking him to lay aside his lunacy. She turned and dropped into her chair, then, looking straight ahead at the blazing logs, she went on, holding her voice steady and even:

"When you were in jail, Newty—at Jackson—I tried to see you. But they—they wouldn't let me."

The bitterness left his eyes, and he bent suddenly forward.

"Ye tried ter see me—in ther jail-house? What fer did ye do thet?"

"I wanted to tell you, I was sorry—and to beg you to give up—your idea. I didn't know until that day that you were nursing a grudge—against Mr. Falkins."

For a while, Newt stood silent. Finally, he said curtly:

"I'm obleeged ter ye."

"But that isn't all, Newt." Minerva's hands were clasped in her lap, and the fingers twined themselves nervously and tightened as she went on. "I've got to tell you all of it. I heard that morning—what you aimed to do—and I went to Jackson—to warn him."

The mountaineer drew back, and over his pale face passed a paroxysm of bitterness, which at first left him wordless. His posture grew rigid, and, if Minerva Rawlins had been capable of physical fear, she would have felt it then, because she was looking into eyes burning with the fire of monomania. But, at last, he spoke in the same dead voice, and only to ask a question:

"How did ye know? Who betrayed me?"

"I can't tell you that. I knew that, if you succeeded, you would ruin your life—as well as end his. You are bound to see sometime that all this idea of a man's being his own judge and jury and executioner is wicked, and then—if you had succeeded—" She raised her hands in a despairing gesture, and broke off.

Once more the boy had become stiff in his attitude, and his face seemed a gargoyle of hatred.

"Ef I'm goin' ter be so plumb miserable erbout hit," he said slowly, "I mout as well suffer fer a couple as fer one. Who war hit thet betrayed me?"

Minerva shook her head.

"You think of Henry Falkins as your bitter enemy. He isn't, Newt. He's not any man's enemy. Only he has lived in the civilized world as well as here, and he knows that a system that's built on murder is wrong. You know only the Henry Falkins that you've imagined. I know how terrible it must have been down there—at Frankfort.... I know that you had little else to think about.... But just for that very reason you can't trust the ideas that came to you down there. The real Henry Falkins isn't the man you think."

Newt Spooner took two slow steps, and stood before her. As he half-turned, the fire fell on one side of his face, gleaming yellow and vermillion on the gaunt angle of his jaw and chin, and kindling the other and more baleful fire in his pupils. He talked in a monotone, and, as he talked, the girl seemed to

see a spirit dying in darkness and confinement, as a potted plant might die in a cellar.

"Ye says I didn't hev nothin' ter do down thar in ther peniten'shery but ter study over false notions. Mebbey ye're right, but I've done studied hit all out—an' I've got 'em settled. I reckon ye hain't got no proper idee of what a feller gits down thar in them damned stone walls, with stripes on his clothes an' no decent air ter breathe an' no water ter drink outen a runnin' spring-branch. Hev ye ever tried ter raise a young hawk in a bird-cage, an' watched hit sicken an' die? They aims ter reform fellers down thar. Well, jest watch an' see how good they've reformed me." It was the longest speech she had ever heard him make, but he was not through yet, and she did not interrupt. "Who sent me thar? This Henry Falkins thet ye're braggin' about. Why did he do hit? Out of the sneekin' meanness of his heart. War I ther fust feller hyar-about thet ever kilt anybody? Why didn't ther rest of 'em go down thar? Hit war because I war a kid thet didn't know no better then ter do what I war bid, an' because them what bid me didn't stand behind me." He paused and wiped his forehead on his coat-sleeve. "I didn't 'low thet thar war anybody in ther world a feller could trust. Then I came back hyar. I found my pappy dead, an' my ma married ergin, an' my rifle-gun sold.... Then—" His words ended in a sort of wretched gasp.

"Then you came hyar. I reckon I'd ought to hev knowed better by this time then ter be beguiled, but I 'lowed I could trust you. Ye war ther one body in ther world I'd 'a' swore by ... an' ye rid over thar an' warned him, an' hed me throwed inter ther jail-house."

He drew his shoulders back and turned slowly, starting toward the door; but, with his hand on the latch, he paused, and added with cold bitterness:

"Ye've done succeeded in a-balkin' me oncet, M'nervy; but ye've done 'complished another thing besides thet. I only aimed ter kill Henry Falkins oncet, but atter what ye've told me, ef thar war a way under God's sun ter do hit—I'd kill him twicet."

The girl rose and came over, and her hands fell on the boy's arm.

"Newty," she pleaded with tears of desperation in her eyes. "Newty, you must try to understand me. It was for you as much as for him. It would have

ruined your life. Besides, you misunderstand him—"

The young man shook her hands roughly away.

"I reckon my life's done been ruint a'ready," he declared. Then, with an up-leaping voice, he demanded as he fiercely caught her fore-arms in an iron grasp: "Ye says I don't understand Henry Falkins. What does ye know about him beyond what I knows?" The jealousy that rang through the question was the only declaration of love he had ever made to her, and his fingers unconsciously bit into her arms until they ached.

"He came down to the school," she said faintly, "and he gave me this medal because I had—I had tried to study hard."

She had succeeded in withdrawing her hands, and groped at her throat for the small metal disc, which she held out to him. But he drew back, his eyes gleaming venomously.

"I'd ruther tech a rattle-snake," he declared in a voice which she hardly recognized, "then ter lay hands on anything thet damned dog hed teched." She stood dazed, and he went on in the high-timbered shrillness of excitement: "Some day I'm a-goin' to have a reckonin' with thet feller, an', when I gits through, he won't go roun' givin' medals to no other gals." He wheeled and stamped out of the room, and the girl did not know that for hours he tramped the snowy woods of the mountainsides, cursing under his breath, and redoubling his oath of reprisal.

News from the outside world percolates slowly into the quarantine of the beleaguered hills. A fever that rushes hotly through the arteries of the nation from sea to sea, is hardly a flush to the country that leads its own isolated life. From Washington to 'Frisco, men were gathering at bulletin boards and clinging with hot excitement to the latest word of tidings. In city armories, militiamen were inspecting kits and drilling overtime. The *Maine* had been blown up in Havana harbor. The war fever was burning thousands into fitful patriotism, but back there in the Cumberland mountains, where men scarcely knew who was President of the United States, life was going more

placidity than usual. The war which this country knew most about had waned into a two-years' truce. Less than for two decades was there thought of fighting and blood-letting. One day, Newt met a trader riding a spent mule through the mired roads with a newspaper protruding from his splattered saddle-bags.

"I reckon you soldiers'll get a chance ter sashay out an' show what's in ye now," said the trader with a grin, as though he found the idea highly humorous.

"What does ye mean?" demanded the boy, resting on his grounded rifle and fixing the other with steady, incurious eyes. "Hes the Falkinses busted the truce?"

The trader laughed.

"Wuss then thet. This country's a-goin' ter declare war on Spain." He made the announcement with the superior air of one in touch with large and distant affairs.

"Who's Spain?" Newt Spooner put the question gravely and with no sense of betraying untoward ignorance. In the log school-house years ago he might have been told the answer to that question, but such matters had since then escaped his attention.

"Spain," enlightened the trader, whose geographical ideas had also until recently been vague, "is a country in ther other world—you has to go acrost the ocean ter git thar."

"Who lives thar?" inquired the lad.

"Hit's a country of outlanders."

Newt stood for a moment gazing across the dreary wastes of broken ridges.

"Well," he said calmly, "I reckon we kin go over thar an' lick 'em, ef need be."

But, if the fever came slowly to the hills, it infected the men of the two new companies thoroughly enough when it did come. So far, each organization was drilling in its own territory, and, when the boy thought of Henry

Falkins, it was not in connection with the war with Spain, but as the principal enemy in another war. On the lintel of the cabin door was a series of notches cut by his pocket-knife. Each month he added a fresh one at the end of the line. When he had cut twelve, he would have complied with his promise to the Deacon, and would once more tramp across the mountains on the mission which had been too often thwarted. Already there were seven of these cryptic reminders, and in a few days more the eighth would be added.

Minerva came and went, and Newt at first spoke to her as little as possible; but, when the other women of the family nagged her, he rose fiercely to her defense. The girl sought by gentleness and diplomacy to win him back to open friendship, but he held sullenly aloof.

At last, she said:

"Newty, can't we be friends again? Even if you can't understand what I did, can't you believe me when I say I did it as much for you as for him?"

He stood twisting his brogan toe in the hard-tramped dirt of the cabin yard. His face was expressionless. He looked at her, and turned away his face, while over it went a spasm of pain.

"I reckons what ye did appeared right ter ye, M'nervy," he generously acceded. "I reckon I've got more quarrel with them new-fangled notions they l'arns ye down thar at ther college then what I hev with you. They aimed ter l'arn me them same things at ther penitenshery—but I wasn't ter be corrupted. But all I kin see is thet ye warned my enemy, an' thet ye made common cause with him ergin me."

On the fourth of next July, Newt was going to have a celebration all his own. In his "marked-down" enemy, Newt saw a man whom he had never injured and who had, with smug hypocrisy, attacked him in a cowardly manner and made a felon of him. In his diseased imagination he pictured Falkins gloating over this triumph. That score he meant to settle. It was simple and immutable.

Then came the day when once more the company from Troublesome hiked across the hills to Jackson. Once more the college students were drawn up at the palings to see them pass. Again they marched raggedly, but their

faces, instead of being good-humored and full of frolic, were serious now. They were leaving the only country they had ever known. They were going to cross the ocean, and invade a land as foreign to their conceptions and ken as a continent on Mars.

Minerva Rawlins was leaning across the fence, and, as Newt passed her, he caught once more the flutter of her handkerchief. There was no leave-taking, and she did not know that, as he left the cabin that morning, his last words had been a warning to his mother and sister, that, if they "pestered Clem's gal" while he was away, he would hold them strictly to account on his return.

At the railroad station in Jackson, the outfit was joined by the other company; but, as Newt stood on the platform, his eyes somberly searching the space where the men were gathered, he sought vainly for the figure of Henry Falkins. At last, a corporal told him that the first lieutenant was in command, and Newt made no audible comment. But to himself he said:

"I reckon the damn' coward was skeered ter come along. He kain't fight Spain in no witness-cheer."

CHAPTER XVI

When the two companies from the hills entrained that raw morning they had no idea where they were going or what prospects lay ahead, but they conceived days of action, and fell upon months of dull routine. The mountaineer is restive under discipline and passionate in his insistence on personal liberty. He bristles at a curt command. It irks his soul to raise the right hand in salute when he passes another whose leggings are of leather instead of canvas and whose shoulders are decorated with certain insignia. To say "sir" in addressing a superior, or to admit any form of superiority, is a harder thing than to march on short rations, for a voice within is always making declaration, "I'm jest as good as any man."

So, the mountain companies did not at once fall into ordered and frictionless assimilation in the big military machine—did not at once become anonymous units. Yet even in the feud, men acknowledged the necessity, when need arose, of sinking the personal grievance in obedience to the clan requirement. With officers who failed to understand them and who had not been willing to make haste slowly, they would have become a mob of constant mutineers. But they were a part of a regiment whose peace-footing was two battalions, and whose colonel, though a bluegrass Kentuckian, understood and loved highland and lowland alike. The two Breathitt county companies with another that had marched forty-five miles from over near the Virginia line to entrain, made up one battalion, while the other was from the edge of the bluegrass. When he joined his bearded barbarians at Chickamauga, Colonel Burford smiled happily. To him they were big-boned children, but he nursed them along and taught them that the swift, military obedience asked of them was not a concession to individuals, but to abstract efficiency, and that this efficiency was their own chief interest. So, they came with astounding haste into a full acceptance of the necessity. They were still raw and looked like half-barbaric allies from the hinterland—as they were. They wore their shirt-tails out like Chinamen on the long and dusty hikes, and their service hats tilted at a dozen disreputable angles. They still bantered each other in quaint Elizabethan English drawled in nasal tones, but also they watched with keen, unblinking eyes the

machine-like evenness of the regulars, which it became their care, with swift absorption, to imitate. They were the Second battalion of the Fifth Kentucky, but they were better known as the "Shirt-tail battalion," and their far-seeing colonel seemed, on the whole, contented with them.

When other commands complained and sulked in the Georgia climate, and crowded the hospitals, these mountaineers thrived and said nothing. To them the army ration was an improvement over their accustomed fare. On kitchen detail they scowled, but served with stoicism—though "sich-like was women's work"—and, when they went out as provost guardsmen to round up the recalcitrant, they brought back their prisoners with business-like despatch. Though they were seeing a new life, every detail of which was wonderful to them, no sign or exclamation of surprise escaped their bearded lips. The Kentucky mountaineer might walk through the Champs Elysées of Paris, battered, threadbare and ignorant, but he would carry his head high and gaze straight at every man, eye to eye, giving no indication that any sight was new or unaccustomed.

Out on the target-range a detachment was at work one day mastering the problems of long-range fire with sadly inefficient rifles. It was shortly after their arrival at Chickamauga, and Newt Spooner had just fallen back, his Springfield still smoking with the black powder of its discharge. He had scored a "bull," and his thin lips were gravely pleased. Over the sultry area of the mobilization camp went the roar and activity of war-preparation. Newly commissioned staff officers galloped importantly from headquarters to headquarters. Mule trains and commissariat-wagons rumbled noisily under yellow clouds of following dust. Lines upon lines of company streets stretched away in a spread of canvas with the locales of commands marked by brigade and regimental colors; brazen mingling of shouts and bugles set to it its accompaniment of sound.

As Newt Spooner walked back, throwing open the breach of his piece, his eyes fell on a new figure, which wore its uniform with as soldierly a jauntiness as though it had never been accustomed to "cits." The face was already bronzed, and the gauntleted hands rested on the saber-belt. The man was Henry Falkins, and on his shoulder-straps and collar-ornaments were not the twin bars of a captain, but the oak leaves of a major.

Newt, falling back toward the little group of his fellows who sat cross-legged in the meager shadow of a tent-flap, halted suddenly and stood for a moment transfixed. Then his hand stole to his ammunition-belt, and toyed there with a cartridge. His face paled and hardened. So, after all, his enemy had not stayed at home.

Falkins looked up, and saw the soldier. He saw the attitude, and the venomous hatred of the narrowed eyes, and the itching twitch of the fingers at the cartridge-belt, and he knew then that his most dangerous enemy would not be always at his front. But he nodded to the boy, and said casually:

"Spooner, that last shot was a neat one."

The private did not answer. He did not salute, he did not move. He only stood and glared. Henry Falkins turned his back on the potential assassin, and strolled deliberately away. But the Deacon, now "top-Sergeant" of B Company came over to the boy—who had taken one step as if to follow Falkins—and stepped between.

"Son," he said in a low voice, while his eyes were very steady and quieting in their hypnotic quality, "your year ain't up yet—not by several months. I reckon until the fourth of next July, you'd better not let your face give you away like that. It's bad business in the army."

The boy fell suddenly trembling with the reaction of his temptation. For an instant, forgetful of his pledge, he had fully meant to shoot. Now, he turned and walked back toward the group of seated comrades. After a while, he inquired in a normal voice:

"What's Henry Falkins a-doin' with them major's leaves on his shoulder-straps? He hain't nothin' but captain of A Company. I thought he'd done stayed at home."

"He got here yesterday," enlightened the first sergeant. "He was sent away about something, an' he wears a major's straps because he's commandin' this battalion."

"Ye mean"—Newt leaned passionately forward, and, in his bared fore-arms, the muscles stood out corded—"ye mean thet Henry Falkins is a-bossin'

us?"

The Deacon nodded. Then he added, in a carefully lowered voice:

"Bide your time, son. It'll keep, an' we've got Spain on our hands first."

But the weeks passed, and the Shirt-tail battalion was no nearer Cuba, though it was much nearer efficiency for the field. Other commands left for Tampa and the front. Seemingly forgotten, regiments and brigades drilled and waited and fretted at Chickamauga until disgust came in the stead of ardor and hope of active service languished, and the mountaineers alone remained patient.

The Deacon was cut out for handling men, and was winning the name of an unusually efficient top-sergeant. With his experience in the outside world, he seemed a wise and capable shepherd going in and out among his sheep.

At last came orders. The command was to move, but instead of moving toward Tampa and Cuba, where the fighting had been, it was to take train across the continent, and join other waiting thousands at San Francisco, remote from the theater of war. The bluegrass troops grumbled afresh, but the men from the mountains kept their peace. They had not enlisted for any particular type of service. The President of the United States had called for men—and they had answered. It was up to the President.

That journey across the continent, across endless prairies and flat plains and into strange surroundings was also a revelation to Newt and his fellows, but they gazed out of the car windows with as little outward evidence of interest as cattle being shipped in box-cars.

And from early June until late in October they sat down and waited at Camp Meritt and the Presidio, drilling and being whipped into shape until it seemed to them that military life was the only life they had known. And between June and October falls the month of July, and in the month of July comes the fourth.

Over Private Newt Spooner's cot in his tent hung a calendar. Each day he carefully marked off a number, and, as he kept track of the time, a strange sort of contentment appeared to descend upon his soul. He studied his drill-manual, threw himself into the life of soldiering, and presented to the world

a face less grim and lowering. He was pointed out as a smart, well set-up file.

But beside Private Job Wedgesley, his bunkie, another man in the company had an eye on Private Spooner. At times, when the soldier did not know of it, the top-sergeant of the outfit strolled in and noted the calendar on which the passing of each day was so faithfully recorded, and the brain of the top-sergeant dedicated itself to cogitation. On the night of the third, Sergeant Peter Spooner asked and was given permission to speak privately with his major.

The tall grave figure with the thoughtful eyes and the chevroned sleeve was a picture of soldierly deportment, and, as he came into the tent of Major Henry Falkins and stood respectfully at attention, the battalion commander looked up, with a pleased smile.

"I have the captain's permission to speak to the major, sir," announced the infantry-man.

Falkins nodded.

"To-morrow is the Fourth of July, sir."

"Yes, there is to be a parade in town. Have your men tuck their shirt-tails in." The major smiled at his little pleasantry. The mountaineers had long since abandoned their more exaggerated idiosyncracies.

"It is concerning Private Newton Spooner, sir, that I want to speak."

"What about him?"

The Deacon told his story. He was shrewd enough to tell it with seeming frankness, even to the point of admitting that on that other day, now a year ago, he had bound Newt over for twelve months of truce. That period ended to-morrow. He spoke of the calendar in the private's tent, and Falkins' face darkened thoughtfully.

"Don't you imagine he has forgotten that grudge?" questioned the officer. On the table before him lay an unfinished letter to a girl in Winchester. He had boasted in a paragraph of which the ink was still damp that his militia experiment had succeeded.

"He has not forgotten it, sir. He has not changed it." The Deacon shook his head with conviction as he spoke. "You're a mountain man yourself, sir. Did you ever know a mountain hatred to die while the man himself lived to harbor it? Did you ever make a pet of a rattle-snake?"

The major was sitting at his camp table, littered with papers and paraphernalia. A swinging lantern cast its yellow flare on the canvas flaps and his side arms, lying with his discarded blouse on his cot. Just inside the opening stood the sergeant, seeming rather gigantic against the black background of the night sky through the triangle of the raised tent flap.

"I don't like to admit that." Falkins picked up the pen, and toyed with it absently. "I'm rather eager to see this boy make good. You are a mountain man, too. Your record for feud-hatred and homicide was once a rather full one, yet you came back to the hills, declaring for peace. Isn't the change in yourself permanent, sergeant?"

Falkins had made the personal application as an illustration and he made it smilingly; but the Deacon's face wore for a moment an expression of deep pain.

"I hope, sir," he replied respectfully, "that my record speaks for itself. But I had been living in the outside world. He has known only the mountains—and prison."

"And now he knows the army!" The officer spoke eagerly. "The service is stronger than the individual. It will grip him. If we can arouse his ambition —"

"It won't help to make mistakes, sir. To-morrow Private Newton Spooner becomes a menace to your life. Until midnight to-night you are safe."

For a while there was silence, then Major Falkins took up his pen again.

"Sergeant," he said, "to-morrow morning after inspection send Private Spooner to my tent."

"Yes, sir." The Deacon saluted, turned with the precision of an automaton and left the place.

Immediately after inspection on the next morning, a private appeared at the fly on Major Falkins' tent. The private was of course unarmed. His top-sergeant had seen to that, even though the soldier had surreptitiously sought to slip a revolver inside his army shirt.

As Newt Spooner presented himself, Henry Falkins was sitting on the edge of his cot. He was already in dress-uniform for the parade, and wore side arms. He glanced up, and nothing in the demeanor of the private escaped him.

For Newt stood at the tent-opening, as white as a ghost, and, despite his lately learned military bearing, there was the hint of a tremor through his entire body. It was evident that last night had brought little sleep to the eyes of this man. His hands were tight-clenched at his trouser seams, and deep back in his eyes burned a fire that was hardly sane. Yet Major Falkins was in part right. The sinew of the service is stronger than its atoms, and, as Private Spooner of B Company waited with clenched teeth, his hand rose automatically, though rigidly, in the prescribed salute.

"The first sergeant ordered me to report to ye," he announced in a queerly strained voice. At the "sir" he balked, but the officer was not inclined to quarrel over such details. He knew that however insane and morbid was the fixed idea in the soldier's mind, it was to himself a thing of ghastly reality.

"Spooner," said the officer quietly, "for the next ten minutes I waive all matter of rank. I sent for you to talk to you, not as Private Spooner of B Company, but as Newt Spooner of Troublesome Creek. To-day is the Fourth of July."

The boy took a step forward and his lips showed the teeth under them.

"I reckon I hain't a-forgettin' thet," he snarled in a half-whisper. "I reckon thar hain't been a day I hain't a-counted."

Falkins nodded with disconcerting calmness.

"Now, Newt," he said shortly, "I am told you have taken a blood-oath against me. Is that true?"

"Ef thar's a God in heaven he knows hit's true, an' I warns ye"—the boy's cheeks flamed with a wild rush of blood to the temples—"I warns ye that I'm a-goin' ter keep hit. I've done been stopped three times. Next time all hell hain't a-goin' ter stop me."

"What's the idea? What's the reason?"

"I reckon ye knows thet well enough."

"I know that I testified to facts—true facts, not perjury. I should have had to do the same thing if it had been my own brother who was on trial."

"Like hell ye would!" In the boy's exclamation was supreme scorn and repudiation of a lying excuse.

"I'm not going to argue with you and I'm not going to have traitors in my command. If you remain in my battalion from this point on, it's because I permit you to do it. I can have you transferred or bob-tailed. I don't want to do either. You have made a good soldier. I don't want to ruin you for a personal reason."

"Do ye reckon," the private's voice broke out like an explosion, "thet ye kin buy me off with fair talk thet-a-way? Ye couldn't do hit ef ye made me a major-general."

Falkins smiled grimly.

"Why should I buy you off?" he inquired. "Do you imagine I am afraid of you?"

He rose abruptly from the cot, and, as his enemy stood twitching frenziedly in every feature and muscle, unbuckled his belt and tossed it with its saber and revolver to the table half-way between them.

"There," curtly announced the commissioned officer, "you are as close to that gun as I am. Why don't you pick it up?"

With a snarl like an unleashed wild-cat and a swift noiseless movement, Private Newt Spooner leaped forward. His eyes were still burning into the face of his superior and his right hand crept out slowly until its fingers had caressingly touched and closed around the grip of the service pistol.

Then, in a forward-leaning and strained attitude, he paused and stood statuesquely holding the pose.

Falkins had put his arms at his back and stepped forward until the two were directly across the table, then the officer suggested quietly,

"You'd better hurry. We'll be interrupted."

For a moment, neither moved nor spoke. The private's breath came and went in gasps.

Slowly Newt Spooner shook his head and withdrew his hand from his weapon. The joy had gone out of his enterprise. His victim had not suffered any terror or sense of defeat. It was not as he had pictured it. Whether he shot or did not shoot, Major Henry Falkins would be the victor of that encounter. He straightened up again, and spoke slowly and in bitterness:

"You penitentiariated me—an' ye thought ye had me thar fer life. Now, when ye've got things fixed jest ter suit ye, ye makes a big play when ye knows I hain't a-goin' ter take ye up. I hates ye wuss then pizen—an' I'm a-goin' ter kill ye, but I'm a-goin' ter pick my own time an' place. Damn ye ter hell! I hain't give up my notion. I'm goin' ter git ye—but not now."

"All right." Falkins again buckled on his belt. "When this war is over, we can settle our affairs. As long as you are in my command, your military duties come first. Is that agreed?"

"I hain't makin' no promises. I may git ye in a year. I may git ye in a month. I'd ruther hev ye jest study erbout thet."

"Spooner, you are a fool." The officer spoke rather contemptuously. "You have sworn to two oaths. One is personal; the other is national. You swore, when you were mustered in, to fight the battles of your country. Now you are either going to keep that oath, or leave the service. Which is it to be?"

"Hit 'pears like thar hain't a-goin' ter be no battles ter fight."

"All right. Give me your hand that until we are mustered out, or reach the front, I need not watch you."

For a long while, the boy from Troublesome stood breathing heavily. To have his regiment sail away without him, to lose both revenge and participation in the service which had filled his life with a new interest, were intolerable. Again he seemed thwarted.

"Henry Falkins, I'm a-goin' ter git ye. Ye kain't never make no peace with me—but es long as we stays hyar in camp I gives ye my hand on a truce. An' ef we gits fightin', maybe I'll wait tell ther war's over." Into his tone crept the death-note of finality. "But some day I'm a-goin' ter git ye."

"That's all," pronounced the major briefly. "Report to your sergeant."

The boy from Troublesome saluted stiffly and left the tent.

CHAPTER XVII

It was not until summer waned to autumn and autumn passed into winter that the order came which slipped the leash and brought a day of departure.

The high-landers wore the appearance of veterans now, as they marched down to the crowded wharves, loaded with their field-equipment, and went across the gang-plank to the decks of the transport. The mountain men were still rough of exterior, though very smooth and soldierly to an eye that had seen them in their "original sin" of heathenish beginnings.

Lucinda Merton was in San Francisco on the day that the *Indiana* sailed. She and perhaps Henry Falkins knew why she had crossed the continent. As the regiment from bluegrass and mountains filed in their long lines over the side, she stood on the transport deck with the colonel and one of his majors and looked on. What things the lovers said that day, in the moments they stole alone, were their own secrets, but the girl's eyes and lips were smiling, and the eyes of the young major were full of light when he slipped into his blouse-pocket a small leather case—and a photograph. It was to smile at him over many campfires in the islands.

Yet, with a teasing laugh and a certain pride of section, the girl compared the central Kentuckians with the leaner, harder men of the hills, and announced:

"Those mountaineers of yours still cry out for the curry-comb, Henry."

It was the colonel who answered her. He, too, was gazing down with a smile wrinkling the corners of his eyes. The colonel, for all his Chesterfieldian polish, could judge a horse or man in the raw.

"They're a shaggy herd," he mused quietly, "exceedingly shaggy and unkempt. My barbarians, I call them, Lucinda. They are men with the bark on—but men." He paused, and the smile became a contented grin. "If there's a chance to baptize them, you'll hear of them again."

"For it's Tommy this an' Tommy that, an' 'Tommy 'ow's yer
soul?"
But it's 'Thin red line of 'eroes' when the drums begin to
roll."

Then came days of blue wastes and sparkling wake; days of lazy lounging on swinging decks and under awnings, and at night the phosphor-play of the Pacific and stars that hung low and softly lustrous. Often Private Newt Spooner surprised himself, as he leaned with his bare fore-arms resting on the rail, to find that his thoughts, instead of busying themselves with war or vengeance, were going strangely back to the added room of the smoky cabin on Troublesome and the girl who sat before the fire in the long evenings when the wind wailed through the dead timber. The logs were blazing there on the hearth he had built for her.

One morning the men crowded and jostled at the rail to gaze ahead where the hunched shoulders of Corregidor Island raised themselves like a crouching sentinel, at the gate of Manila Bay.

If the men of the Shirt-tail battalion had feared the dull routine of garrison duty, they were to be pleasantly disappointed. In those late January days the impending storm which the Honorable Emilio Aguinaldo was brewing for the invaders of his "republic" hung imminent on the horizon of the future.

The mountaineers went into quarters in the Binondo district of the city, but more than two score of them were always on the line of outposts which lay around Manila, resting its left on the salt marshes by the sea, and its right on the sea again at the end of a six-mile arc.

The Kentuckians rubbed elbows with a trim and seasoned command of regulars near the extreme left. To the front beyond the nipa houses and their

palm-fringed gardens, lay unseen the parallel, intrenched lines of the Insurgents.

As yet there had been no clash, but each dawn brought expectancy. Private Newt Spooner, carrying his rifle on sentry duty, often glimpsed their straw hats and brown faces, above the trench embankments, and glared across the intervening spaces. Occasionally, too, when regimental officers rode along the front on inspection of outposts, Newt saw the figure of his major. Then his embryonic hatred for the brown men, who lay masked at the back of these palms and rice paddies a few hundred yards away, passed into total eclipse behind a fiercer emotion.

One night when not on outpost duty, Newt lay on his cot in the company-room of the Binondo barracks. The boy was watching the shadows that wavered on the whitewashed wall, and his face wore a lowering scowl. Top-Sergeant Peter Spooner glanced at that scowl, and a faint frown crossed his own features.

Captain Sparvin of B Company had developed into a fair officer, and in actual service a wider gulf yawned between the men who held commissions and those who held warrants than had been the case back in the hills where the company was born. Yet Sparvin more and more depended on the Deacon, and more and more left company affairs in his capable hands. The company's efficiency and deportment were the first sergeant's care. Charges were preferred or dismissed at Sergeant Spooner's suggestion. When a "non-com" vacancy occurred, the man suggested by Black Pete was usually selected to fill it. And to the confidence of the officers was added a sort of idolatry on the part of the enlisted men. It is quite likely that had B Company been out on detached service, and had Sergeant Spooner given a command contradictory to his superior, even after these months of discipline, B Company would have followed the sergeant. Yet Sergeant Spooner had his problem, and that problem was his kinsman, Newt. When Newt scowled in that fashion the top-sergeant was troubled with apprehension. One crazy man in one crazy moment can do things which cannot be undone. Yet there was no outward ground for complaint or charges. In the entire outfit was no more efficient soldier than Newt. None answered more intelligently or with a snappier quickness to commands; none kept his kit in more perfect order; none was more soldierly. The

problem was intangible in its outward manifestations, but the sergeant knew that the boy was "bidin' his time."

After "taps" the company-room quieted save for snores and heavy breathing. But Newt, lying quiet on his cot, still staring at the shadows on the whitewashed wall, was not asleep, and Sergeant Peter Spooner was not asleep. The tropic night-quiet had settled over the empty streets of the city, and the footsteps of occasional pedestrians only emphasized the deep silence.

Suddenly there came to the ears of the private and the ears of the sergeant a far-away, but insistent sound, almost a ghost-sound in the vagueness with which it drifted across the roofs from the north. Yet it brought them both to their feet, and in an instant both stood together by the window. Now it was plain enough, and began swelling from a purring rattle to the crescendo of an approaching wind storm. Somewhere out there in the far distance was the constant splatter of Mausers like rain on a tin roof.

Instantly Sergeant Spooner was arousing B Company and turning them out. From the streets, too, five minutes ago quiet with a cemetery stillness, came a confusion of shouting and rushing, punctuated by the sounds of slamming doors and creaking shutters. Presently the clatter of hoofs and the brazen signals of bugles gave official notice of immediate action.

The men of B Company were dressing with the hurry of firemen, and Sergeant Spooner said quietly:

"Well, boys, the feud has bust loose."

Then, almost as suddenly as the clamor of the streets rose, it died again, and the city lay silent once more except for the distant, unending roar of musketry.

At regimental headquarters officers were gathering, and companies were falling in under the vigorous exhortation of non-coms. Newt Spooner saw Major Falkins hurry into the room, through whose open door he could see Private Watson at a telegraph key. The major was buckling his saber-belt as he went. About the instrument pressed a cluster of battalion and company officers, crowding eagerly up for news and orders. In a subtle fashion the news from within floated out and communicated itself to the lines of men

impatiently shuffling their feet in the streets. The fighting was all along the north front. That was where the Fifth Kentucky's outposts were stationed. That growing volume of Mauser argument, with the duller rumble of the Springfields, probably told of the Kentuckians holding hard against the pressure. Why did not the line fall into column and move forward? Why did they stand here waiting when they were needed there? Then came a rumor from the telegraph key that only two battalions were to go forward, while the third remained in town with the reserves.

That report sent a low grumble through the ranks. In the very rattle of tin-cup on haversack and rifle-butt on cobbles was a note of deep discontent. Newt could see through the open door the figure of Major Falkins leaning anxiously over the instrument. Then he saw him turn to come out with a smile. Brief staccato orders broke from captains and lieutenants and the Shirt-tailers were swinging down the Calle Lemerí, with the bluegrass battalion at their backs. The streets gave back hollow, ghost-like echoes to the rattle of their accouterments and the quick rhythm of their step. Clearer and noisier to the front rose the insistent drumming of the fight, and the men from the hills and lowlands were going at last into action.

About them were dark streets with jalousies that clicked as anxious householders thrust out startled faces. From other streets they heard kindred sounds telling of other columns, battalions and regiments, moving in other currents to the support of their own outposts. The long, swinging step of the mountaineers carried them swiftly. The bluegrass men had need to lengthen their stride to hold the pace, and from their ranks came a low hum of frank and eager excitement, but the high-landers marched in silence.

The First Nebraska had borne the brunt of the initial firing, but from that point it traveled along the whole insurrecto front as forest flames run in dry leaves, eating its way along a segment of five miles of trenches. As the battalions drew nearer and the chorus extended, the night rocked to the solid bellow of musketry, until individual reports were swallowed and lost in one deep and composite note.

The Shirt-tail battalion at last left the ordered streets behind and began its journey through the sparser-peopled environs. They hurried through villa-adorned suburbs, passing old Spanish mansions. Now overhead they heard

the whine of the Mauser bullets. These messengers went by with a spiteful song like a whispered shriek: they purred and whistled like a strangling human throat: they brought to the ear a ripping noise like the violent tearing of silk. They rattled nastily as they struck corrugated-iron roofs, and popped when they found billets in the walls of nipa houses.

A strange silence sat upon the marching column, or a silence which would have been strange, with less taciturn men, and they went as though they were going to mill with grain to be ground. As they were reinforcing outposts, no advance guard felt its way at the front. The colonel, major of the second battalion, and part of the staff, all mounted on Philippine ponies, rode a few paces ahead of the column. The way now led through scattered houses and straggling gardens, where ragged palm-fronds waved to the sea-breeze. From some of the windows came wails of fright as immured householders heard the popping of bullets against their frail habitations.

Suddenly, above the din of rifle-fire, rose a deep boom, followed by a rumble like the rail-song of a distant express. Two seconds later came a loud swish, and two or three of the frail nipa shacks to the left and rear collapsed as though a ten-pin ball had struck houses of cards. The column was under artillery fire, and should by all military theories deploy into open formation, instead of offering a compact target. But ahead lay an *estero*, or slough, which must be crossed on a bridge. Beyond that were open fields with rice-dykes and cane—a place of comparative security not yet attained.

At the order "double-quick" ringing from the bugles, the column leaped eagerly forward to a clattering trot, but before they reached the bridge two more of the loud-throated roars gave warning, and two more of the solid shot plowed past, to demolish other houses perilously near by. Henry Falkins looked back to see how his men were standing this initial test, and smiled, well satisfied.

Then the bridge was reached and crossed, and the command was spreading fan-like into open order. Now the bullets were not only giving voice overhead, but kicking up the dirt near at hand.

Out there in the darkness, now only a little way distant, lay the sixty or seventy men of the regimental outpost, who had been sustaining the onslaught from the trenches for an hour or more. One could mark their

positions from the spitting tongues of their rifles, and as the two battalions deployed, creeping up, in open order, to reinforce and relieve them, they fell back nonchalantly, wiping the sweat out of their eyes, powder-grimed, and making brief comments to their fellows; comments perhaps mingled with such sense of patronage as men coming out of their baptism of fire may have for those just going in. Then, with business-like quiet, the battalions worked forward and lay down in the trenches, which had merely been a guard-line for weeks.

"Falkins," said Colonel Burford, as the two went along the regiment's length, "there's no use wasting ammunition shooting at a sky line. Those fellows over there are barely sticking their scalp locks over the trenches. They are merely peppering the night."

The major nodded, then with a grin suggested:

"Colonel, those boys have been under their first strain. They'll rest easier if they can shoot a few volleys—and it won't burn much powder."

So, the two battalions, as a matter of indulgence, were permitted to contribute a salute of challenge, and then, as the bugler sounded "cease firing," they were ordered to dispose themselves as well as they could in the trenches and behind the rice-dykes, and rest until morning.

Thus they spent their first night in the field with the unending, but comparatively harmless, roar from the north as a clangorous lullaby, and the tropic starlight in their faces, and the breeze which whispered gently across the salt marshes from the sea fanning their foreheads.

When the dawn broke with tropical suddenness like the ringing up of a quick curtain, the theater of last night's drama stood revealed. With daylight came a slackening of the night-long Insurgent thunder, which slowly dropped away to desultory firing, and then to complete quiet. Off to the left of the line, where the Kentuckians had lain, stretched the broken wastes of the salt marshes, with here and there in the distance blue glimpses of the sea. But directly ahead, where all night the trenches had been barking and vomiting, the landscape was naked of visible life. The rice-fields went off for a short distance, broken only by their dykes, and farther away rose a

dense screen of bamboo and woodland, a solid mass of green, from which waved a ragged top of shredded palms.

As the men crouched over their hard-tack and coffee, they were thinking of the day's work, which they hoped would include passing beyond that screen and those trenches.

CHAPTER XVIII

During the night a siege-gun had been brought up by hand, and now, from its place where the road cut through the entrenchments, it opened with the morning greeting of a hoarse bark, as the crew serving it began feeling over the landscape for the field-piece which had boomed so insistently last night.

Then, as the morning wore on, and orders to advance came, the slow rifle-firing began again and increased in volume as the sun climbed.

The night-long rain of random lead had taken its toll in a few wounded, though none had sustained mortal hurt. Two or three men from B Company came back to the front from the improvised dressing-station at the rear, wearing reddened bandages, which they displayed with the cocky pride of medals, as they picked up their pieces and joined again in the game.

The masking woods told nothing of the trenches beyond except in the swish of Mauser bullets, which shredded drooping palm fronds into tatters. Newt Spooner was squatting on his haunches in the trench, with a pipe between his teeth. Every now and then he came to his knees and fired a shot. At his side knelt Jim Dodeman, who until he joined the militia had never fared twenty miles from the cabin on Troublesome where he had been born. Jimmy was bored with the ennui of shooting at a screen of palm trees and crouching between times in a hot ditch. So, at last, he rose for a fuller view and to stretch the cramp from his limbs. He rose silently and as silently lay down again, but this time he lay flat, and, when a pause in proceedings gave Newt leisure to relight his pipe, he looked down to recognize in Jimmy's posture the dummy-like quality of death. The little muddy spot under the soldier's temple was fed by blood trickling from his brain.

First-Sergeant Peter Spooner had been going back and forth along the company line, curbing the inclination of its restive integers to over-spend cartridges in futile bickering. He stopped and turned the prostrate figure face up, and for a moment looked into the dulled eyes.

"Dead," commented the sergeant briefly.

Newt nodded.

"Them damned Falkinses got him," he said over his shoulder. Then, remembering that he had swapped enemies, he grinned, and corrected himself: "I mean them other varmints."

At noon, a brigade staff-officer brought instructions. The whole line was to be advanced five hundred yards to a new position where the woods would no longer screen the enemy, and it was there to dig trenches along a roadway, which paralleled the present front.

That news sent a drone of excited pleasure through the bluegrass companies, and even into the phlegmatic stoicism of the Shirt-tail battalion crept the suppressed expectation of the first charge. Major Falkins went along the line for final instructions to company commanders, and First Sergeant Spooner cast down his company front the anxious glance of a stage-director who awaits the curtain call, on a first night.

But the two platoons seemed steady enough as they rose from the trenches in extended order, and waited for the word that should launch them forward.

Then a bugle rang, and the entire two battalions started silently and stolidly onward. In a few minutes the silence would be broken—from the front. On to the screen of the woods they went at a rapid quickstep, and through the foliage they broke into view, like circus riders through paper hoops. As they emerged into the open rice-fields, and could see the straw hats at the top of the trenches four hundred yards to the north, the stillness was ripped in one wild roar of musketry, and their terrific welcome had begun. Its echoes rolled away in waves of sound that merged with fresh outburstings, and nearer at hand, in weird shrieks, piercing the louder detonations, whimpered the lost-soul wail of the Mauser bullets. As the straw hats bobbed hysterically up and disappeared again, the men of the two battalions began stumbling and lying grotesquely down in the rice-fields.

They reached the road, which the brigade order said was to be their resting place. But neither brigade nor division orders can keep men alive in a place where the physical topography forbids. The road ran at the right and left in a sunken band between banks two or three feet high, affording—to east and west—a natural protection; but for the length of several furlongs it elected

to rise and proceed in a level flush with the rice-fields and gave to even the closest-lying and most prostrate figures pitiless conspicuousness as targets. On each side, the troops were at work, improving their cover, and for their work they had partial security; but the Kentuckians were left mercilessly exposed. They were firing desperately at the solid earth ahead and receiving in response a death-hail which they could not for many minutes endure.

Sergeant Peter Spooner, running in a crouching attitude, dropping, rising, his rifle barking, was doing all that mortal being could do to make moles of his men and burrow them into the earth. The situation was intolerable. The Shirt-tail battalion and the bluegrass battalion stood in peril of decimation in their maiden engagement.

Newt Spooner lay stretched behind a mound of earth some seven inches high. He lay spraddled and flattened like a large drab lizard, hugging the earth with his feet stretched apart, and even his heels held tight to the clay. At each report of his piece Private Spooner opened the block and blew through the breech, as a trap-shooter blows the powder out of a shot-gun. Private Spooner's face was sweating with exertion, and the dust turned to mud as it gathered on his chin and jaws.

Behind similarly insufficient mounds, or no mounds at all, several hundred other privates were similarly employed. At the front rose a dense fog of fleecy white, for the volunteers had not yet been afforded the luxury of smokeless powder. Ever and anon a man rose on one elbow and strained his eyes in a vain effort to penetrate the pale smoke, and as the hour-like minutes wore on, more and more of them rolled quietly over and relinquished their rifles and stared up out of eyes which the hot glare had ceased to trouble.

Orders are orders, and the line was commanded to remain here, but Major Falkins knew that his section of it must move forward, or fall back and leave the line broken. The colonel was at the regimental center where the line lapped on the deeper banks. Falkins, with a scarlet thread down his face where death had brushed him in passing, found the commanding officer.

"I can't stay where I am," he shouted; "I must go forward."

"Go," acquiesced the "C. O." crisply. "And go like hell!"

At the returning major's elbow pressed the battalion's trumpeter, and, at the signal of a nod, he set the bugle to his lips and blew, "Cease firing!" It was the command for which he had been fretting. The brazen message went only a little way along the noisy line, but it was relayed by word of mouth; and, as the firing fell away, the second command clamored upon the first. "Fix bayonets!"

Those notes were magic. They stood for the wild dash and close quarters and hand-to-hand punishment. They promised vengeance for the men who had fallen asleep. Down the front ran the ominous metallic click of engaging hilt and muzzle, and, as the pall of smoke began to rise, the line came shouting to its feet and set its eyes hungrily on the yellow stripe that marked the top of the earth-works. They stood, a moment, exposed as the command of "forward" flexed their taut nerves. There were three hundred yards between them and their goal, and these three hundred were annoyingly and maddeningly broken with fences and gullies, but now they were free to fire at will, which meant as fast as they could load. Also, as they advanced, they left behind their own blinding curtain of powder fog. And these men from the hills, shooting now at a point-blank range to which they were accustomed: a range at which every man was a sharp-shooter, combed and harried the yellow earthen band ahead of them with so galling and stinging and venomous a punishment that the straw hats drew down like turtle heads into shells, and the Mauser bullets, fired at random, went wilder and higher.

It was not easy work, though much easier than lying prone and being shot to pieces. Even with random marksmanship and growing panic, the brown men were still sheltered, and many shots went home. Newt, clambering over a fence, saw at his shoulder a boy who used to sit at his side on the split-log bench at school. He saw the boy loosen his hold on the same fence and roll over and over in the rice-stubble, clawing at his breast, while his lips snarled and swore.

Then, sixty yards from the yellow rim of the trenches, the bugle rang out its most blood-quickenning call, and, in answer, the line trembled and leaped forward, and mountain reticence broke at last in one prolonged mountain yell of fury and loosened passion.

And, as that barbaric howl of impending doom smote upon the ears of the Filipinos in their ordered trenches, they read in it a cue for swift exit, and their white-clad bodies began clambering out of the rifle-pits, and their brown legs began twinkling through the rice-fields behind.

The Kentuckians redoubled their pace. It was intolerable that the men whom they had left strewn along the rice-paddies should go unavenged. Yet, when they clambered across the trench fronts, it was to find them empty, save for those who lay dead.

For a moment, the victors halted, winded and almost exhausted at the trenches they had carried. Companies were as hopelessly jumbled and mixed as a galley of type that a compositor has dropped downstairs.

Private Newt Spooner and perhaps enough men to make a half-platoon, after a few moments of gasping and sweat-wiping, rose up and started on in the trail of the fleeing insurgents.

"Hold on there!" bellowed Sergeant Peter Spooner, for once losing his composure in a volley of profanity. "Where the hell do you think you're goin' to?"

"We're goin' atter 'em!" shrieked back Private Newton Spooner. "Come on, boys—we kin git 'em."

Major Falkins had seen the trouble and rushed up, his face steaming, but triumphant.

"Get back, damn you!" he ordered. "Get back to those trenches." He had neither time nor inclination to explain why pursuit was denied. Such matters as preserving division alignment were of no interest to these men.

For a moment, Newt Spooner hesitated, surveying his battalion commander with an insolent contempt, then he turned to the other restive privates.

"Come on, boys!" he yelled. "Don't suffer them niggers ter git away."

The major and his sergeant acted promptly. With the flat of sword and clubbed musket, they beat back the mutinous and excited men, and, after one blood-mad moment, all except Newt turned readily enough with shamefaced grins.

But, in the momentary flail-like wielding of his saber-blade, Henry Falkins had struck Newton Spooner one light blow, and straightway the boy forgot any war between the United States and Aguinaldo; and remembered only the old war between himself and the man who had sent him to prison. He slipped a cartridge into his breech and would have settled the score at the moment.

But, in that same moment, Sergeant Peter Spooner caught his hand, and whispered in his ear.

"Obey orders, damn you! This ain't your only chance. This ain't no private quarrel."

No one else had seen that look, or in the larger excitement read its significance, and, even while Sergeant Spooner held Private Spooner's steaming wrist, and their faces bent close together, sweat-wet and dirt-stained, a new roar awoke two hundred yards to their left, to seize their attention. The windows and doors of the old Spanish church, that stood with a crooked cross tottering over its stained stucco walls, was belching fire upon them. There was no time to form company or platoon now, or to sort men into their rightful commands. Major Falkins waved his saber and led the way at a run toward the offending walls, and Sergeant Spooner at his heels was herding the group forward at pell-mell speed, their rifles blazing and barking as they went.

A few of them did not reach the place, but enough did, and, as they came to the front, spreading and dividing to prevent possible escape from other entrances, the doors opened, and the over-venturesome refugees rushed out in a pelting tide of effort to fight their way to freedom by a sortie. Then the wrath of the mountaineers was appeased, and those of the enemy who did not remain for burial went back as prisoners.

As Henry Falkins hurried back to his command, Private Newt Spooner followed close at his heels and this time his rifle swung at his side. Its bayonet bore some stains which he wiped off as he walked. At the trenches, the bugle was sounding assembly. Across the face of the country, wisps and attenuated clouds of smoke were wreathing their way up and melting in the blue. From the rice-paddies and dykes rose wavering mists of heat.

The Kentucky hillsmen, now reformed into column, were going back to their fellows. They alone had had the capping triumph of crossing the earth-works and effecting the hand-to-hand dislodgment of the enemy. So they went back with a jaunty tread, and they paused before starting across that four hundred yards where they should be watched as returning victors, to pull out their shirt-tails. Marching in that style, they would not have to declare their identity.

To Henry Falkins they suggested, as the skirts of their flannel shirts flapped around their legs like kilts, those far-off ancestors of the Scotch highlands whose blood flowed unamalgamated in their veins.

CHAPTER XIX

That inflexible grip which the service takes upon its units and fractions of units, had slowly and unconsciously altered the view-point of The Fifth Kentucky foot. Back there in the stagnant rattle of a life which for a century had not taken a forward step, their motto had been, "Let us alone," and every man had been a law to himself; despot over his own affairs and the affairs of his family. Now, because they obeyed in a common cause and of their own volition, obedience no longer irked them, and they had come to think of themselves less as individuals than as bricks mortared together in a military arch.

The second day after the outbreak of insurrection passed with no greater excitement than occasional and desultory firing from the front. Night fell with utter quiet as though both armies were exhausted and ready for sleep. The stars overhead were bright and close, and the men, sprawling on the earth, were thinking softened thoughts, or crouching around campfires in rehearsal of recent events.

Near the spot where Newt Spooner lay stretched on his blanket, a bearded, gaunt man, with a sprinkling of gray in his beard, was writing a letter home. It was Uncle Jerry Belmear, whose forge and smithy stood at the forks of Squabble Creek. The yellow flare from a shaded lantern fell in sharp high lights on his lean cheekbones and on the cramped hand, laboriously pushing its pencil. His lips moved, automatically spelling out the words of difficult composition. Newt was watching him with the reflection that there was nowhere anyone to whom he himself could send a thrill of pleasure with a letter. Then, since strange influences were working in the boy's starved heart, he wondered if, after all, "Clem's gal" might not be glad to hear from him. Minerva was "edicated," and in her head were cogitations which he could never hope to comprehend. She took medals for "larnin'"—he ground his teeth as he thought from whose hand she had taken one. He was ignorant and "pizen-mean." The contrast was obvious. Yet, she had looked at him with a friendly glance, and had been grateful for his championship.

But these idle thoughts were violently interrupted by a sudden staccato outburst and the darting of Mauser tongues through the dark. Recumbent figures came to their feet. Uncle Jerry Belmear rose with the half-finished letter in his hand, and as he stood up he was struck. Had the same man been wounded in a charge or lying in his trench, he would have fallen silently, but that messenger out of the night, coming when his thoughts were all back in the silent Cumberlands, startled him into outcry. He wheeled, and from his lips broke a sound that started as an oath and ended in a weird shriek, heard along the whole battalion front.

As though they had wanted only that cue, the battalion, hitherto patient to await orders, sprang to the trenches and began pumping their Springfields frantically into the night. Buglers were madly blowing "Cease firing"; officers and sergeants were carrying profanity and strong language the length of the line, but the panic spirit had to spend itself before the men heard or obeyed—and realized with chagrin that stray bullets had upset them.

But that mild disgrace of showing nerves, instead of nerve, must be lived down, and it served to put the newly made veterans the more on their mettle.

Almost every day that followed brought its clash with the enemy, and once or twice the Shirt-tailers came into hand-to-hand struggles, where it was bayonet and butt, and "fist and skull," and where their barbaric yell drowned the bugles. They grew accustomed to the thunderous roar with which the cruisers in the harbor shelled the Insurgent positions in preparation for their advance, and so day by day, and step by step, the still parallel lines of the brown men gave back, and those of the American force hitched forward.

And in these, by no means idle days, the word went abroad among them that they were only waiting here to be relieved by fresh troops from the States, and were to be a part of the force designated to push on to the Insurgent capital.

But the rumor went ahead of the actuality. Sometimes there were days of quiet and even brief informal truces at certain sections of the front, when the open rice-fields became a common playground. Then the straw hats that

had heretofore bobbed up only to fire and bob down again, moved about in the open, and watched the *Americanos* playing baseball. Once a band came out from Manila, and, when the heat of the day was spent, gave a concert in the rice-fields, and at its end, as the national air swelled out and the troops from home stood at attention and uncovered, the straw hats across the open fields were also doffed. Though he did not quite understand why, that incident caused a strange and new emotion to pulse through the arteries of Private Newton Spooner; an emotion in no way kin to the "pizen-meanness" for which he was justly notorious. But the courteous enemy never allowed these pleasant recesses to endure long, and after a lesson or two in treachery they ended.

At last came the forward movement, the rush into native towns across their defenses, the pursuit of fleeing insurgents, and the glare in the sky as the nipa houses went up in flame; and the lying down at night in bivouac under the stars. In due course followed the end of state-troop days and the organization of new regiments of United States volunteers. Yet, this was more a change in the technical than the real, for while the Fifth Kentucky ceased to exist and the Shirt-tail battalion was no more, most of the men who had comprised the command were again together in the Twenty-sixth Volunteers, and the men from the hills still followed Major Henry Falkins.

Young Manly Fulton had returned to Louisville with a degree from Harvard University and an ambition to become a journalist. At the newspaper office where he was carried exceedingly near the bottom of the pay-roll, he was classed as a cub whose value no one took seriously save himself. In the course of time, it entered the mind of young Fulton that a visit to the schools and "colleges" of the Cumberlands would make a "feature-story" of general interest. He heard of young people, and older people, too, who were struggling to shake off the bonds of a century-old illiteracy, so he confided to his Sunday editor that herein lay, ready to hand, a subject with genuine "heart-interest." The Sunday editor laughed, and explained that this story had been often written, but, if the reporter wished to ring one more change on an old theme, he might go—at his own expense. So the young man went to Jackson, and from Jackson, with mule and saddle-bags, to the college on

Fist-fight Creek. As the principal was showing him over the place, a girl passed through the library, and the "furriner" was presented.

The girl looked unwaveringly into his eyes as the professor smilingly said, "This is Miss Minerva Rawlins; one of our native-born. We are rather proud of Miss Rawlins." Manly Fulton looked back at her, and his clean-cut young face for some reason flushed. He had heard much of the slatternly women of the hills, women who bore drudgery and children, and early became hags. Now, he found himself being put at ease by a young creature who carried herself like a goddess, and whose eyes shielded, behind a naïve reserve, the truant impulse to twinkle into amusement at his evident confusion.

Later, the head of the faculty suggested:

"If you want to see and appreciate the full contrast between the school-life and home-life of these people, persuade Miss Rawlins to play guide for you along Troublesome. To-morrow is Saturday, and she will be riding home. Why don't you ride with her?"

So, when "Clem's gal" started across the mountains, the young man rode at her side, listening eagerly to the new point of view that her speech developed, and marveling at the life he saw about him; a life in which he seemed to have stepped back a century. It was all wonderful, for spring had come to the hills and kissed them, and they were smiling with a smile of blossom and young leaf, and whispering with soft breezes and the singing of crystal waters.

For a time, her conversation was, "Yes, sir," and, "No, sir"; for, though at first it had been himself who was embarrassed, it was now she, and so, until she discovered how boyish and frank he was, she eyed him with shy and sidelong glances. But, at last, she began to reveal a flower-like personality which was altogether charming, strangely blended with a gravely mature point of view. Her language, partly the hard-conned "proper speaking" of the school, and partly idiom, amused him with its quaint out-cropping of Elizabethan phrases, which fell in tripping unconsciousness from her lips.

When near sundown they came to her cabin, he felt the girl's embarrassed eyes on him as her father invited him "to light an' stay all night." And at

table, though his stomach revolted against the greasy and uninviting fare, he knew that, as she served him standing, her eyes were fixed upon him. He caught the high-chinned courage of her unapologetic loyalty, even to swinish blood, and gamely bolted his food with mock relish.

"God!" thought the boy, as he vainly tried to sleep that night in the swelter of the over-crowded cabin. "What a life it must be for her! And yet," he added, "what escape is there?"

The next day, she took him rambling along creek-beds where she had friends among the early flowers and ferns and budding things and the feathered and singing things. She was in an unusually light and gay mood, and chattered until he felt that he was in an enchanted forest, and through her talk, which was all of birds and blossoms and woodland mysteries, he caught brief flashes of insight into herself.

"Do you know," he suddenly demanded, looking up from a mossy place where he was gathering violets, "that you are a rather wonderful sort of person?"

She stood over him, slender, and simply garbed in a blue calico dress and a blue calico sun-bonnet. Into her belt she had thrust a cluster of violets, and her eyes, which were closely akin to their petals, grew suddenly serious. The corners of her lips drooped in wistfulness.

"Am I?" she questioned gravely. It was the nearest thing to a compliment that had come her way.

"Yes," he asserted, rising to his feet. "Anywhere else in the world people would be wild about you, and here whom do you see? You know the verses, 'full many a flower was born to blush unseen.' Don't be one of them."

"How am I going to help it?" she asked him simply. He did not respond, because he was asking himself the same question. But, when that only visitor from the outside world had ridden away, the place seemed rather empty and desolate to the girl, and she sat alone in the spring woods while some voice insistently queried, "How can you help yourself?" She would marry no man who was ashamed of her people, even if such a man should come to woo her, and no man whom she would care to marry could well escape being ashamed of her people. Only one man had she ever known

who seemed to feel for her a sort of reverence; to look up to her as superior to himself. That man had been very rough and wolfish in his championship—and that man had been a felon!

If some man might come who felt that way, and yet who had a living and enlightened soul; if such a man should say, "I love you—"

"Clem's gal" bent forward and pressed her fingers against her temples. "Oh, God!" she whispered.

Long ago Malolas had been taken, and the armies of Emilio Aguinaldo were giving back. Soon was to come the second and longer phase of the insurrection: that of the guerilla days. But as yet there were still occasions of battle.

The enemy lay one day with his trench-tops commanding a steep river-bank and a deep, swiftly-flowing current of tawny water, adding defense to his front. Half-way across this stream the broken abutments and twisted girders of a dynamited railroad bridge showed his preparations for attack. Yet both river and trenches must be crossed, and the 26th Volunteers had come, among others, to do it. A small mortar was merrily tossing shells across the way, but they fell on roofs devised of the rails from the uptorn track, and fell for the most part harmless. One small section of the earth-works was unroofed, and from it the mortar had driven the Insurgents. That troubled the enemy only because it was the one loop-holed portion of the defenses and consequently more healthful for riflemen.

A few strong swimmers might carry a rope across, thought Major Falkins, and attach its loose end to the bamboo stakes which went up at the very edge of the trench-embankments, provided they could live long enough. Killing is quicker work than swimming in a strong current. But, if three started and one arrived, his fellows could follow in the few leaky barges that were available. These barges could cross, if at all, only by rope-ferry. The current set its veto on any use of oars. For such character of work a "suicide squad" is asked to nominate itself, and among those who responded

was Corporal Newton Spooner, formerly Private Newton Spooner of the Shirt-tailers, and before that, No. 813 at Frankfort.

As the boy stripped off his khaki and stood naked behind a screening tangle of riverside growth, several machine-guns and the musketry of the regiment were preparing to give him at least a noisy end.

Major Falkins stood by, coaching the three swimmers as a trainer coaches his jockey when the saddling bugle sounds in the paddock.

"Watch the rope," commanded the major briefly. "Swim in single file, and not too close together." He turned to Newt, who happened to be standing nearest him.

"It's going to be mean work, Spooner," he said in a low voice; "I hate to order it."

Corporal Spooner saluted, but his eyes narrowed and glittered with a light venomously serpent-like.

"I reckon," he said in a guardedly low voice, which only the major heard, "you'd like to see me peg out, wouldn't you? But I ain't goin' to do it. I'm goin' to live long enough to finish a job I've got to attend to yet. I reckon you know what it is."

Then he slipped without a splash into the water, for he was to lead the little procession. The major raised his hand in signal, and the spattering roar became a solid thunder. Rapid-fire guns, mortar and Krag played on the earth-works. Every Shirt-tailer was sighting as though for a sharp-shooter's medal—carefully, deliberately. A scathe of lead raked the trench tops, under which every brown head went down and stayed cautiously invisible. With strong, sure strokes the three naked men shot out into the stream and past its center—seemingly unobserved. It began to look as though they would gain the other side unseen by the enemy. But suddenly, from the loop-holed section, came spiteful little squirts of fire. Against that fire only the mortar could cope—and the mortar had turned its attention elsewhere. Tiny geysers kicked themselves up where the Mauser bullets struck and skipped on the water. The roar from the Shirt-tailers rose in louder indignation, and the crew serving the mortar was feverishly refinding the range. A few more strokes, and the three men fighting the current would be safe in the lee of

the steep bank—but the little geysers were multiplying. The third man suddenly turned his face backward over his shoulder, and shook his head. He raised a hand as one who waves farewell at a railroad station, and went down. Corporal Spooner and the other man were reaching out to grasp the projecting roots that fringed the opposite shore, but, as the second man crawled up on the bank, there appeared on his naked flesh a constantly spreading splotch of crimson. Corporal Spooner paused to drag him under cover, then proceeded to tie the rope and—safe, because of his very proximity—sat down, panting, to wait.

CHAPTER XX

Two general officers were eye-witnesses to that river crossing; they chatted about it over the cable with the government at Washington. Major Falkins, too, who had conceived the plan and crossed in the first barge, before the mortar got the exact range of the loop-holed breast-works, was also mentioned in these despatches. Later, both the major and corporal were given the Medal of Honor, and Newt became Sergeant Spooner, whereat the Deacon, now battalion sergeant-major, patted him approvingly on the back. But fate sometimes indulges in satiric contrasts. One afternoon, when the rush on a trench was over, and had been so mild an affair that the men felt like a fire company turning out to a false alarm, the last straggling volley from the routed enemy dropped both the major and the new sergeant in the stubble.

Newt's hurt was a shattered arm, but the superior officer had an ugly hole torn through one lung, over which the field surgeons shook their heads and whispered things about grave complications. Both were jolted back in wagons to the railroad.

Sergeant Spooner knew that his trouble was simply a matter of hospital inactivity and waiting, but in Manila, as in the field, surgeons talked anxiously about the battalion chief. Every day an orderly from division headquarters clattered up to the hospital to inquire after his health, and the ladies who had followed their soldier husbands as far as Manila sent flowers. It was finally decided that Major Falkins could only complete his recovery, if at all, in a more temperate climate, and so he was invalided back to the States. Newton did not know he was gone until the transport had sailed, and, when a hospital orderly brought the news, he said nothing, though his face set itself as he gazed at the whitewash of the ward wall, and sniffed the antiseptic odor of carbolic acid.

There were days of convalescence when with his arm in a splint the mountain boy wandered about the town, which he had, until now, had so little opportunity to investigate. Each day he would stroll to the north bank

of the Pasig River, where it cut the city in half, and wander among the strange many-colored sights and pungent reeks of the Chinese bazaars in the *Escolta*. If these explorations brought him any sense of wonderment or interest, it was denied expression in his brooding eyes. Sometimes he would cross the ancient stone bridge, and wander at random into the walled Plaza de Manila, which had been the town of three hundred years ago. Late afternoon usually found him on the *paseo* along the bay, and there, with the tepid water heaving drowsily at his front, he would lean until darkness fell, thinking of two things. Somehow, the face of "Clem's gal" rose often and insistently into his reflections, and the set of his jaw slackened almost to a smile. Then the thought of his old grudge would come, and the jaw muscles would stiffen again, crowding out the softness.

The grip of the service was strong upon him, and he could salute his superior without a wince, and stand as respectfully at attention as any other of his comrades; but he knew that this was only because he had learned to dissociate the personal self from the military self. His hatred and the resolve born of it were undying. Generations of Spooners had made a virtue of hating until it coursed as an instinct with their blood. He knew now that simply to kill Henry Falkins would be no revenge at all. True punishment must involve the torture of dread, and for the major death would fail to attain that purpose. He must, therefore, devise something more exquisitely painful, and now, having leisure for reflection, he let his mind run on ways and means.

The Islands are not a good place for one to brood upon a fixed idea. On every transport he saw men, backward-bound, whose faces wore the imprint of melancholia and morbid derangements; men who were climate-mad.

Yet, the sergeant had another idea at the back of his head to which he never referred, and while he was waiting to be sent back to his regiment he might often have been seen sitting on one of the *paseo* benches, deep in the study of a spelling book, or arithmetic.

While these things were going on in Luzon, Henry Falkins was fast coming back to health. This was natural enough, for each morning the breeze stirred the chintz curtains of his window in the old mansion near Winchester, and the breeze was freighted with the heavy sweetness of honey-suckle. Each

morning as he came down to breakfast, he would meet on the old colonial stairway a girl whose eyes sometimes danced mischievously and sometimes deepened into sweet serenity. Then in the dining-room, where Jouett portraits of men in blue and buff gazed down, this girl would pour his coffee from the old silver pot that these same ancestors had brought out of Virginia. And the colonel would fall pleasantly into reminiscences of days when he, too, wore a uniform, though it was gray, and rode with Morgan's men.

But there was a better medicine than that for Henry Falkins: the medicine of joy. Sundry preparations were going forward in the house. Dress-makers were working like beavers, because when the major had recovered sufficiently to return to the Philippines, he was not going alone. There was to be a wedding in the meantime. The girl had been down to "Bloody Breathitt," and stood with him on a high place in the hills. She had breathed deep with appreciative delight as she gazed off beyond the crests of their wooded slopes, where the patriarchal pines and oaks stood sentinel over the valleys. And there she had ridden the trails tirelessly, and the rude mountain folk had treated her like a young queen come from another land, because, with her sesame of graciousness, she had won her way into the sealed reserve of their hearts.

Together, the two had gathered the blossoms from the rhododendron, and down in shaded recesses where the waters whispered over mossy rocks and the elder-fringed forests closed in until only slender threads of sunshine filtered through, they had gathered ferns and been children together.

At last came the day when they knelt down and rose together from cushions before an improvised altar in the wide hall, and the colonel led them all to the wainscoted dining-room. There, in a vintage that had lain for a generation in the cobwebbed sleep of the cellar, both the old man from the mountains and the old man from the bluegrass toasted them—"Even if," as the colonel chortled, "the youngster is a Yankee soldier."

When the journey across the continent ended, they had lazy days at sea. As Henry Falkins gazed at his wife, panama-hatted, white-clad, with the Pacific winds stirring the one curl that, in persistent truancy, escaped its confinement to trail across one eye, he wondered if she were really not too

delectable a vision to be real. And his brother officers seemed to think so, too, so that she reigned on the quarter-deck.

But, if the testimony of so astute an observer as General Sherman is to be accepted, war is not unbroken honeymoon, and in the Islands in 1900 the general's monosyllabic descriptive was more applicable. At least, that was true in certain provinces, where the orders of *El Presidente* were being carried into effect with ardor and pertinacity. Those orders were to disperse, live outwardly as *Americanistas*, and under the semblance of peace to harry, sting and annoy the army of occupation. The seventy thousand troops now in the Islands were no longer marching and bivouacking as armies, but, "split in a thousand detachments," were scattered into garrisons from the China Sea to the Pacific.

Over beyond the mountains and across the level plantation lands of Nueva Ecija lay a town from whose center radiated many meager *barrios* and villages. It was a town with a small stone church, from whose teetering cross one arm had been shot away.

That church had a line of graves—inside its walls, with stones identically alike—and a history. Here, for almost a solid year, a garrison numbering at the outset fifty Spanish soldiers had held out with heroism against a swarming horde of Insurgents equipped with artillery. The town bore many *recuerdos* of that long and dogged fight. The walls of the church showed them in disfiguring scars, like those on the face of a man who has been mercilessly pitted by small-pox. The ruins of nipa houses showed them in fallen roof-trees and gaping breeches. The even ranks of gravestones, within the walls, bore eloquent testimony in successive dates of death.

In long, underscoring lines of brutally strong trenches and transverses, went still more of the record. How snugly and safely the besiegers had burrowed into the ground, and swept and whipped the starving garrison inside, was easy to read.

It was in this town with its church that Henry Falkins with his battalion was ordered to "wait in heavy harness, on fluttered folk and wild." The way

thither lay over a hundred miles of plain and mountain, and in that hundred miles, under the extremely capable eyes of Lacuna and Paolo Tecson, the brown hornets were buzzing with extraordinary and tireless stinging power.

The battalion would make the march with a mule train and an escort of two extra companies, and when it was ensconced in the village which the war-scarred church dominated, the escort would say farewell and return to Manila. The extra companies would be picked up for the homeward journey by a cruiser, which would meantime have steamed with supplies around the north end of Luzon, through Batingtang Channel, and down the Pacific coast. After that, from time to time other ships would come and bring old mail, and look in to see that the garrison was still there and on the job. It was not a place to take a bride, even though the bride had crossed the Pacific to be with her husband and held determined views on the subject of being left behind in her rooms at the Orient.

Possibly, Henry Falkins told her, she could follow later by sea.

For three days, the command, with its train of fifty mules pushed on through a level country, well watered, and seemingly uninhabited. On the fourth, it struck the mountains, and from that point crawled, scrambled and panted. Up slopes steep and slippery with untrodden grass, where hoofs and feet shot treacherously out, the column crept, until the mules balked, and their burdens had to be transferred to human shoulders; a half-dozen pack animals shot over cliff edges, and burst like balloons in rocky gorges below.

Then, descending into a valley where the grass grew long and lush along the waterways, and lay brownly parched a little distance back, the column readjusted its impedimenta, and mended its pace. Sometimes the heat over the grass simmered in misty waves, and the marching men clamped their unshaven jaws, and set their eyes eastward. The eyes were growing blue-circled and weary, and the infantrymen picked up each foot with a sense of distinct and separate effort. Sometimes from the long grass at the side broke an unwarned din of rifle-fire, as the "point" ran into an ambushade, and then the column closed up and in the merry response of volleys for the moment forgot its weariness. Sometimes the parched grass, kindled by unseen and hostile hands, burst into scorching sheets of flame at the front, necessitating tedious detours. In this fashion, at the end of ten days, they came to the

town with the church, and found the cruiser awaiting them. The escort returned at once, and left the First Battalion of the 26th Regiment, United States Volunteers, to attend to its knitting, with the Pacific Ocean in front of it and the ragged mountains at its back.

There was much to be done, for not all of the command was to stay there. In near-by towns smaller detachments under company officers were to establish themselves and put the fear of God and the Eagle into rebellious hearts. That these outlying factions might not be cut off from headquarters, nerves of telegraph wires must be strung across the hills and through the *bijuca* tangles of the *bosque*. These lines must, in places, follow bolo-cut tunnels through the jungle where the air was hot and fetid; where one fought for breath and was blinded by the streaming sweat, and where the stiffness of one's spine oozed out in flaccid weariness. Also, it proved immensely diverting to the loyal *amigos* to creep out by night with a pair of wire-nippers and undo in a moment what men had moiled through days to accomplish. When these wires sputtered and fell dead it was usually a fairly good indication that news of some fresh atrocity would finally percolate, and that a new "punitive expedition" must fare forth.

And yet in the town itself, and even in the smaller garrisons clustered about it, there was no overt act of rebellion—only ghastly news from the hills and hinterland.

In these days, former top-sergeant Peter Spooner, now battalion sergeant-major with the 26th Volunteers, became more than ever a force in himself. The smattering of Spanish which he had picked up in old Mexico had become a fluent stream. He was so valuable in a dozen ways that the semi-clerical work of sergeant-major often fell to other hands, while Black Pete was out on special detail. His scouting expeditions were effective of such results that the name of the dark giant became with the people of the enemy, as it had once been in the Kentucky mountains, a word to conjure with. In short, Black Pete Spooner was such a treasure of a "non-com" as gave his superiors food for mess-table boasting.

"Spooner," declared his captain, "could command a battalion if called on. He absorbs detail. He has even picked up the Morse code, and only

yesterday I found him relieving the signal-corps man at the key. That's an example of his versatile efficiency."

In many scouting expeditions, Sergeant Newton Spooner likewise won for himself the bitter hatred of the guerillas. These mountain men had, in common with the enemy, the ability to become invisible, and often when they were supposedly being stalked it was found that they were really stalking.

So the days passed, and at last a steamer brought fresh supplies and also Mrs. Henry Falkins, who would no longer be denied.

CHAPTER XXI

Months in the isolation of a tropic garrison bring to the minds of men strange vagaries. When the work is that of hunting down elusive little traitors, who present faces of friendship by day and develop ingenious and atrocious deviltries at night, the effects are neither softening nor humanizing.

The presence of Mrs. Henry Falkins was to the men of the battalion like the steady freshening of a clean and fragrant breeze into a miasma. Had they had their way, they would have set her up, a living image, in the place of the patron saint above the bullet-scarred altar of the church. But even saints have defects, virtuous and noble defects perhaps, such as erring on the side of too great faith in humanity, when humanity is treacherous.

One native woman, whose face bore more strongly the characteristics of some far-off Castilian ancestor than of immediate forbears and mixed race, came to headquarters, and ingratiated herself with the commander's lady. When she brought in the week's washing, her smile was a dazzling flash of milky teeth and lips touched with Spanish carmine.

And it fell to pass that, though he had always been an immune to feminine blandishments, the tall sergeant-major was seen frequently strolling between the *nipa* houses with the *mestiza* girl.

The Deacon, who had always been reserved, even melancholy in the thoughtfulness of his expression, was in these days more deeply somber than before.

Newt Spooner, alone in the command, recognized that there was some secret gnawing within his kinsman and that it was not a pleasant secret.

Deaths in the battalion had claimed several lieutenants, and left vacancies which carried commissions. Sergeant-major Spooner felt the time ripe for him to cross the line from non-com to commissioned officer. He could, in the old militia days, have had captain's bars for the taking. Now it would

need the mandate of Washington, but the fact that nothing was said about it secretly grieved him. His officers from major down had bragged endlessly of his efficiency, yet the thought that was constantly in his mind never seemed to occur to them, and he doggedly refused to suggest it. It should not be inferred that the non-commissioned giant went sulking about his work. On the contrary, whatever rancor he felt was inward and unworded, and for that reason the more dangerous.

Newt, too, was feeling the influences of marrow-pinching days and jungle-burrowing and mountain-climbing on chases that came to nothing. More and more prominently, the haunting presence of his private grudge thrust itself to the front of his brain and grew sinister.

The boy held his peace, though he knew that Sergeant-Major Spooner had received a letter from one of the Insurgent "generals" offering him a captain's commission "in the service and just cause of the Republic." Black Pete himself believed that this proffer was in reality an effort to lure him into the power of the enemy for torture and death, and he mentioned the incident only to his major.

Then, one morning, the *mestiza* girl bade a smiling farewell, which was also tearful, and was kissed by the major's lady. She was going away, she explained, to relatives who dwelt in the mountains. She waved her hand vaguely toward the Cordilleras: "*Mucho* distance away. No longer could she see the beautiful señora, or"—and here her dark lashes drooped and her olive cheeks flushed—"or the tall, brave *soldado Americano*."

Sergeant-Major Peter Spooner walked with her, as far as the outskirts of the town, and the two talked in low voices, in Spanish. So the Deacon was the last to bid her farewell, as befitted the man who had most impressed her heart.

If the sergeant-major was cast down, he only devoted himself more industriously to the service, and gave no sign.

And the service had need of him, for a few days later came word of a sizeable force of the enemy camped in the mountains, and bent on mischief. In one of the few loyal villages the *presidente* had been murdered and many *Americanista* houses put to the torch. Swiftly enough the battalion prepared

for pursuit and punishment. Yet to go out in force would mean failure, so several scouting parties left in advance of the column. One went under the command of Lieutenant Sperry, and Sergeant-Major Peter Spooner was included at his own request.

It was thought natural that the sergeant-major should wish to be one of the avengers. The native girl had gone that way; might be in that region where *amigos* were being slaughtered, and it was perhaps known to the guerillas that she had loved an American soldier whom they blackly hated.

The detail embraced only twelve men, one of whom returned. But even that one did not return to the town by the church.

At a considerable native village, some ten miles away and lying at the edge of the mountains, was garrisoned a platoon of the battalion under the command of *Teniente* Barlow. The road between the town with the church and this subsidiary station was, for that country, good, and the garrisoned village itself was as safe as a fortress. It was beyond that the work lay.

When Mrs. Falkins learned that a company from headquarters would march at once to follow up what news the scouts brought in, she promptly announced that as far as the village she would accompany the expedition. The major raised no objection. It was a pleasant thought that he could defer his farewell with his wife until he left the edge of the safety-zone, and meet her there on his return. Mrs. Falkins rode her native pony along that ten mile-march with a feeling of exhilaration and pride. These men who marched and fought behind her husband, were to her all members of a great family, of which he was the head. They were no longer raw men, "unmade, unhandled, unmeet," but seasoned and tempered veterans, and her young heart thrilled with pride as she drank in the morning air, and gazed with fascination at the vivid colors of the forests and the weird picturesqueness of the thatched hamlets by the way.

For five days after their arrival in the village, they awaited news from the hills. They had hoped for definite tidings before that time, but as yet the delay had caused no anxiety. The scouts might have found the reconnaissance a larger enterprise than they had anticipated. So those at the village invoked the philosophy of patience—and waited.

It had been some time since Lieutenant Barlow had seen a woman from God's country. He was one of the men who had come to the regiment with its reorganization, and now he was glad that he had turned a native bungalow into a fairly comfortable place for the quartering of his superior and his superior's wife. There was a small thatched porch, shaded against the mid-day glare by a grass curtain. From this verandah when the moonlight flooded the village, one had a view not to be despised. Across a bare space of so-called plaza stood the house occupied as headquarters, and now, on the fourth evening after their arrival, its office stood open-doored and vacant, save for the musician of the guard, who must remain on duty there until tattoo.

Everywhere about the village was the ordered quiet of a town well guarded. The girl sat in a deep wicker chair, while the two officers nursed their khaki-clad knees on the steps—and all talked of the States. The moonlight seemed to gush and flow over the face of the world, and to throw walls and roofs and palms into the fantastic picture-shapes of a fairy tale. Off between the houses, she could see the pacing figure of a sentry. Overhead from the nipa roof came the occasional stirring of a house-snake, and in the long silences, which the night stillness fostered, they heard tiny sounds of delicate scurrying footfalls as the lizards scampered across the walls.

One of them darted out into the yellow light of the open door, and halted near the lieutenant's knee. There, flashing like luminous jade and inflating his small crimson throat, he shrilled out his small, strident voice, and others answered.

It all seemed very unreal and far away and strangely beautiful. Then to their ears drifted a call from the sentry line for the corporal of the guard.

Athwart the front of the headquarters building lay an unbroken space, which the moonlight dyed with the deep blue-green radiance of a black opal. Shortly there appeared into this space two figures, carrying something which seemed heavy. They moved slowly as though their burden were a thing that required much care and, as they came nearer and made their way slowly toward the open door of the headquarters office, it became obvious that what they bore between them was a very limp human being. At first, it seemed unconscious and hung sagging in their arms; but, before they had

disappeared through the doorway, it came to life with a nerve-rasping jargon of delirious sounds and lashed out inconsiderately with its arms and legs at the men who were giving it assistance.

Major Falkins and Lieutenant Barlow rose hastily, and crossed the space of moonlight. The girl rose, too, but she went into the house with that sound of raving still in her ears—and sat down, suddenly unnerved.

In the office, the major and lieutenant found the creature which had, several days ago, been a private soldier of the headquarters scouts, lying on the floor in the lemon-colored lamplight. It was mumbling inarticulate things through parched and cracking lips, and gazing wildly out of a couple of red embers that had formerly been eyes. Its clothing hung on it in tatters, and the exposed flesh was bolo-gashed and briar-torn. This was the one man of the twelve who came back to report—and came back decorated from torture. The surgeon was already kneeling on the floor, doing what human skill could do—which was too little.

The raving man made tortured efforts to speak, as though the eternal peace of his soul required it; but, of those bending over him, none could construe the hoarse gibberish of his swollen tongue and unbalanced brain.

Sergeant Newton Spooner had silently entered the office in response to the major's summons. Now, he stood at attention just within the threshold, and his eyes were not pleasant eyes as he gazed on the threshing, disfigured thing, and recognized in him a kinsman. But, if his face was hard-set and lustful for vengeance, it was hardly more so than that of the battalion commander, standing by as the surgeon forced brandy between the teeth of the wrecked face. The physician finally rose with a shake of his head.

"It's no use," he announced briefly. "He can't last two hours."

But to the object of erstwhile human shape came a momentary flash of revival. He tried to prop himself on one elbow and waved his torn fingers toward the mountains. From his mouth came incoherent sounds, and in his eyes burned the desperation of a final effort to rid himself of some message. Then he reached his hand around to his neck, and they saw that he bore, pinned to his belt, a package wrapped in the red calico of which *tao* breeches are fashioned.

They removed it, and opened the covering, to find inside a communication of the sort that scrapes the civilization from men as a coarse cloth scrapes the tender blush from a peach.

"This memento we return with compliments," ran the screed in neatly penned Spanish. "The rest will be dealt with as befits foes of the Republic. If you follow you will find at Santa Rosa another memento.

"Adios, con mucho felicidad, General José Rosario."

Major Falkins wheeled to Sergeant Newton Spooner. His face was very white and stony. "Have your company ready to hike—quick!" His words were snapped out like the cracks of a mule-whip; but Sergeant Newton Spooner had saluted and disappeared before the final syllable was uttered.

Within the hour, Mrs. Henry Falkins stood at the shell-paned window of the bungalow and saw the company swinging toward the edge of town with a step that argued coming events. At their head, guiding them into the blind trails of the *bosque*, went a native from the village, but he went with a rope around his shoulders, which was held by a sturdy private of the advance guard. There was no intention that he should abruptly disappear into the jungle and carry warning, instead of giving service as guide.

At noon the next day, the column had proof that thus far at least they were following the right trail. The overhead wheeling of buzzards would have guided them now, even had the native failed of loyalty.

In the gulch of a stream that ran between tall and tangled banks, the advance came upon the bodies of the two men who had comprised the "point," and who had first run into the ambushade. What the other ten had done was plain enough. At that first outbreak, they had scattered into a second slough, running at right angles with the dipping trail. There they had lain down and taken cover among the scattered rocks, and there eight of them still lay. It was the only thing they could do, also it was what the enemy had planned they should do. Major, lieutenant, and sergeant went over the ground and read the signs. It was quite easy. They could tell the approximate order in which each had died, by counting the litter of empty cartridge-hulls about the bodies.

Then they found one pile of these spent souvenirs in a place where there was no corpse, and it was perhaps the largest pile of all. That should be the spot where Sergeant-Major Peter Spooner had come to bay for his last stand. Probably he had lost consciousness from blood-letting at the end. Otherwise, he would hardly have been taken alive.

The bodies were hurriedly buried, and the graves marked; then the column pushed on, a little grimmer and a little more silent and a little faster, toward Santa Rosa.

At dawn, the men of the 26th Volunteers filed into empty streets which echoed their marching tread. It was like a village of the dead, a place of empty houses and open doors. No one had waited to explain to the wrathful avengers. But they found, nailed conspicuously to the front of a nipa shack in the principal street, a large white sheet of paper, bearing another note of satiric directions.

"On the trail which leads from this street, the *bosque* will, at the distance of one league, contain one more memento.

"*Adios, con mucho felicidad, General José Rosario.*"

There was no spoken word, as Falkins, turning from the message, nodded to the company commander, and the column swung forward. There was no sound as they marched through the deserted street, except the rattle of cup and canteen on haversack and the purposeful thud of their own feet on the hard-beaten earth.

And beyond the edge of the town, where a sullen-looking carabao bull, sole occupant, gazed after them, there was still grim silence as they plunged into the thick growth of the *bosque* and bored their way into the country, which at every mile was growing wilder and more impassable. The eight bodies they had buried, and the one which had doubtless been, by this time, buried back at the garrison, accounted for seventy-five per cent. of the detachment which had gone ahead. The three others included Lieutenant Sperry, of Jackson, and Sergeant-Major Peter Spooner, and those two had been taken alive. The column was so grim in its purpose now that it needed no more orders than blood-hounds would have required.

CHAPTER XXII

At a place where they came upon the ashes of a dead fire, Henry Falkins halted the command, and, accompanied by a lieutenant and Sergeant Newton Spooner, undertook some investigations of his own. It was Sergeant Spooner, led by an inborn instinct which became a compass in the woods, who discovered the thing they sought. He returned in grim silence to the officers, and led them to a small clearing in the *bijuca* tangle. There, roped upright to a tree, was a body wearing the uniform of a first lieutenant of United States Infantry. Newt Spooner had found the "memento." The dead man bore no bolo gashes, and the wound which had disabled him had been only a bullet through one shoulder. Yet, as the officers came near, they realized that he had not been dead when he was placed here. He had stood up, lashed against a slender palm bole, and died on his feet. Yet even that failed to account for the hideous twist of acute agony frozen on the dead features. No ordinary torture would have so stamped the dying visage of such a stoic. The large brown ants were crawling everywhere, but the full meaning of their presence was to pass unrealized until Newton Spooner attracted attention. He silently led them closer and pointed to an amber smear about the lips and nostrils of the dead man.

"Honey, sir," he said briefly, in a voice that rasped like a file; "wild honey. They put that stuff in his nose and mouth, sir. The ants did the rest."

The officers turned away, sickened, and after a moment Falkins ordered briefly.

"Bring a burial detail, sergeant—and, sergeant," he added, as a vicious note crept into the timbre of his utterance, "when we come up with these fellows, we take no prisoners. You understand, no prisoners!"

For ten days after that, a company of United States Volunteers drove their way through the mountains and *bosques* of eastern Luzon, with the hammer-blows of forced marches. Their faces were the bristling, unshaven visages of half-wild men, and their eyes bore the inky cancellation-marks of a fatigue which, in such climates, is courtship of death. They had been

bearing a noonday steam-like heat that parboiled them and wasted them in floods of sweat. They had marched and slept in wet khaki when sudden rains drenched the land and the jungle simmered afterward. A demoniacal desire for a reckoning in full with one José Rosario sustained them. The chase had resolved itself into a hellish adaptation of hare and hound, for always ahead of them lay clues and information, and evidences of recent departures. Always, the wily guerilla was just out of grasping and crushing distance. In lonely villages, they found marks of his recent occupancy—with prisoners. In the hills, they found the ashes of his fires, but himself they never found. And, as he taunted them, they followed, "as dust-blown devils go": followed with an artificial and superhuman endurance engendered of mountain hate and an unassuaged thirst for vengeance. In many brains queer nightmare shapes rose and had to be brushed aside with a conscious effort, and in many veins the blood ran hot and feverish. The pursuit had carried them in a long circle like the flight of a fox, and brought them back to a point not so many miles from where they had entered the hills, but as far as ever from their quarry. The pursuing force was too large. The rest of the way they would rake *bosque* and hill in scattered segments, each acting for itself and seeking to fall upon the enemy while he watched the decoy of the largest detachment.

Major Falkins and a dozen men, including First Sergeant Newton Spooner, were working their way through a jungle which seemed impervious to human progress. For days they had been so working. Step by step they moved lethargically, and in single file. No military order of formation can be kept unbroken where men are weaving their tired bodies in and out through a matted growth of rank *bijuca* and jungle tangles. Besides, they moved as men half-asleep and indifferent to consequences, dragging leaden feet. The course they had taken had yielded never a sign, never an indication that they had chosen wisely. It led them through an unpeopled country where the valleys were mosquito-infested and malaria-ridden, and where drenching rains brought chill to their aching bones. They forced themselves forward with their hair matted and their brains dull. Clouds of mosquitoes moved with them. They were steadfast and resolute men, but they were also half-insane.

In this fashion, they came to a small, ravine-like channel, which for a little way ran in the direction they wished to go. Through it they could walk

upright without fighting vines and cane. Experience had taught the danger of easy ways, but weariness had overcome caution, and for a furlong they plodded silently.

Ahead of them, the dry stream-bed, which was giving them momentary comfort as a roadway, twisted at an angle. Even in their lethargy they observed one rule of military caution. They walked in file with an interval of several yards between each two. Eleven of them had passed out of sight around the turn. Major Falkins, who was number twelve, was just turning the point, and behind him trailed one other. It was Sergeant Spooner, who rarely lagged in the rear. Then the heavy stillness broke into the old familiar thunder, and four men lurched forward and crumpled down on their faces, as useless henceforth to the United States of America as burst bubbles.

"Back here, boys!" yelled Falkins, leaping out of his lethargy into sudden life.

"Git behind this twist—damn ye! Git into ther la'el!" shrieked Sergeant Spooner in echo, forgetting that the natural cover of the Islands was not the laurel of the Cumberlands. Falkins, standing at the turn, became an instant target, and the sergeant saw his campaign hat fly off spinning; saw the officer set his feet farther apart as one who braces himself, and heard the spiteful bark of his revolver. The sergeant himself was unseen, and it suddenly occurred to him that he might be more effective by remaining so. He saw the men who were still on their feet falling back on the protecting angle with its steep banks, firing doggedly as they came, and one by one he saw them drop short of their goal, except two who reached it only to lie down at the margin of shelter. He saw the major stand for a moment, shaking his head as the voices of the Kraggs died away and only the Remingtons of the enemy broke the silence.

Then the major, who no longer had a command, stepped back around the angle, and sat down on the ground. He laid his pistol on his knees and wiped blood from his eyes, but, after a moment, as though that posture were not comfortable enough, he stretched quietly out, with one elbow under his cheek, and drew up his knees as a child might lie in a crib when its mother has kissed it good-night. Spooner realized that he alone of that detail

remained an efficient. There was no one to save except himself—and Falkins. To save himself was easy. He had not yet been seen.

Cautiously, the sergeant crawled over and possessed himself of all the firearms that lay in reach, without revealing himself; then again he crawled back, burrowing under the overhanging bank. He laid the four Krag in a row with their muzzles roughly trained above the major's body, and waited. At his back rose a bank which would confuse and multiply with echoes any sound.

Finally, the cautious brown heads appeared, and brown bodies flitted among the dead, collecting their spoils. Then Newt cupped both hands at his lips, and let out the mountain yell, a yell which had grown famous in Luzon. At the same instant, as fast as he could work the triggers lying grouped before him, he made the rifles speak from their magazines, as it seemed in unison, and the four reports were magnified by the rocks into a seeming of volley-fire. Instantly and in frenzied consternation, the brown men disappeared, and Newt Spooner worked his way forward, firing as fast as he could until he could peer into the channel. But the white men there would require no attention, and could benefit by none save the impossible courtesy of burial. As for the brown men, they were gone.

In one body, however, there was still life, and that happened to be the body of the battalion commander.

Newton Spooner strapped as many cartridge-belts about himself as he could carry. Then he pressed his canteen to the lips of Major Falkins, and began a slow and tedious journey back toward a point ten miles to the east, where if all went well and every chance favored him, he might possibly strike the camp of the main detachment to-morrow afternoon. To-morrow afternoon! For once in his life, Newton Spooner laughed.

That night, Major Falkins did not die, but lay raving with a delirium of fever in the seclusion of the jungle whither the "non-com" had borne him. And, while he lay tossing, a dark figure sat huddled near-by, lethargically slapping at mosquitoes and bringing himself back with heart-breaking effort

out of the heavy-lidded temptation of sleep. The man who so sat, grinned from time to time, and there was the queer, distorted quality of madness in the grin.

When Henry Falkins at last opened his eyes, he saw about him only the dense tangle of the forest, and heard only the bird-voices in the trees. Slowly a recollection of yesterday came to his mind. He tried to rise on his elbow, and discovered his feet were tight-bound. Evidently he had been captured and was now being carried off by the ingenious Rosario to be filed away for future torture. Then he heard a sound like a strained chuckle, and turned his eyes, to find himself gazing into a grinning, lunatic face, which was the face of Sergeant Newton Spooner.

"Where are we, sergeant?" he inquired with forced composure. "Why am I tied up?"

The sergeant's reply was a hyena-like laugh, under which his gums were exposed beyond his teeth.

"I reckon," he suggested slowly, "ye mout es well drop the sergeant part of hit. Thar's jest the two of us left, and hit won't be long twell thar's jest one."

The wounded battalion commander settled back on the ground and said nothing. The demoniacal face of the other was not a face that could be reasoned with. It was the face of a man whose unhinged reason was capable of anything but sanity.

"Ye penitentiared me oncet," went on the sergeant in dead-voiced reiteration of an old theme. "Ye sent me thar when ye didn't have nothin' erginst me. In the penitensherry—" he talked on half-coherently, half-ramblingly—"a feller jest studies 'bout things and gits meaner—and hyar hit 'pears like he kin git meaner yit."

"You must have dragged me away from that ravine," interrupted Falkins, realizing that they were not where he had fallen, and reasoning rather with himself than with the other. "You saved me yesterday. Why did you do that?"

"Because," retorted the other quickly, with a fierce up-leaping of passion to his eyes, "because I was savin' my superior officer—not you, but a man in

that uniform—besides ye b'longed ter me. I wasn't a-goin' ter suffer no nigger ter git ye. Thet would hev been a soldier's death. Now thar's jest two of us—we ain't soldiers now—we're jest men."

Falkins lay of necessity outstretched, awaiting the pleasure of his captor. About him swarmed mosquitoes, and he tossed his head in the vain effort to shake them off, and slapped viciously at them—for with his feet trussed there had been no necessity to tie his hands. Above him he could see patches of blue between the waving palm fronds, and to his fevered eyes the sky seemed to rock and ripple like a placid sea. Then he looked at the other soldier, standing at a distance, and the soldier, too, seemed to wave gently from head to foot as though painted on a fluttering curtain, but he read in the glowering face that the man meant to kill him.

"You fool!" he muttered. "You poor damned fool!"

He spoke in a voice of lassitude, as though his interest in the matter were academic and dilute. In his brain, the tide of fever was rising afresh, and this time it stole on him with the warmth of a comfortable narcotic.

But Newt Spooner went on, more steadily now, though with no faltering of determination.

"I've waited the hell of a time.... I told ye my chanst would come.... I told ye, when ye tried ter play a damn' hero there at 'Frisco, thet I'd git my chanst. Ef I'd kilt ye then, ye'd hev hed all ther best of hit, but now hit's different. Now I kin make ye pray fer mercy—an' not git none."

"Kill me, and be damned to you!" snapped the bound man, for a moment roused out of growing stupor into a peevish irritability. "I'm no more afraid of you now than I was then."

"I reckon," the boy spoke very deliberately and impressively, "I reckon I knows a way ter make ye skeered." It had been a long time now since Newton Spooner had talked in the uncouth vernacular of the hills, but the Newt Spooner of this morning was, it seemed, a man relapsed; a man from whom had slipped all the changes that the months had wrought. He came slowly and unsteadily over, and squatted on his haunches above the prostrate figure. He drew one hand from behind him, and held it out.

"I found a wild bee gum down thar," he went on in a dead, level tone. "This hyar's wild honey. Thet-thar idee of givin' the ants a party hain't so damned bad atter all, is it?"

The major rolled over and presented his back to his enemy. He laughed and his tormentor did not know that it was the laughter of uncomprehending delirium. To Newt, it seemed a misplaced sense of humor.

"Wake me up for breakfast," murmured the major. "I want to take a nap now."

Later, Falkins awoke to a lucid interval, and saw nothing of his mad companion. But gradually his mind began to collect scattered fragments of memory, and the thing he had laughed at rose up to torture him. He remembered the threat now, and he remembered the dead face of the man they had found tied to a tree. He lay alone, shivering in weakness and harried by a terror he would not have cared to confess. An ant crawled over one wrist, and he leaped up, choking off a wild scream. It seemed that he could feel them crawling and stinging in thousands through his nostrils and nibbling at his brain. His fever would return, but for the present he lay sane and clammy with chill.

When the cool of the evening came, Newt reappeared. But his face, too, had lost its maniac glare. It was the face now of a man unutterably weary—as though all day he had been in some great travail.

"I reckon we mout as well be hikin'. Kin ye walk?" he inquired curtly.

"I'm not going to walk," retorted the officer belligerently. "This is as good a place to die as any."

"I ain't goin' ter hurt you," said Newt Spooner in a tired voice. "I reckon the time ain't come yet, after all."

"When will it come?" demanded the other, amazed beyond belief at this sudden change of front.

"Thet's my business. I hates you worse than pizen ... but I can't hurt you while we're both wearin' this uniform. It beats hell how much a man gets to thinkin' about a damn' pair of government breeches!" He stopped off as if in

embarrassment. Then he added: "Besides, I'm beholden to your wife. She gave me a lift once on the high-road."

Two days later, just as the platoon, flushed with a success which the others had missed, was preparing to break camp for the day's march, two men, both gibbering foolishly, both shambling on unsteady feet, tattered, thorn-torn and scalded with fever, dragged themselves, in the locked embrace of drunken men, up into sight of the outposts, and collapsed. One wore a major's uniform, and one had on his sleeve what was left of a sergeant's chevrons.

CHAPTER XXIII

The policy of splitting the command into bits, and leaving one platoon to carry on the seeming of the full force, had brought both disaster and success. The main body had taken a middle course upon which the smaller details might—theoretically—fall back, and on either side squads had scouted. While the men under Falkins were being misled and trapped, another detachment had slipped fortuitously upon a scouting party of the enemy, and, being less fatigued by reason of an easier course, they were stealing through the *bosque* with unabated caution, and not one of that scouting party escaped alive except two who were captured. The detachment rejoined the platoon, and in view of the spirit in which the main command received these prisoners, they finally laid aside their show of sullen stubbornness and talked volubly.

Not only did they talk, under the effective persuasion of their captors, but they acted. They agreed to lead the *Americanos* to the camp of General Rosario, which they said was pitched in a particularly inaccessible part of the mountains only a day's march away. Then the command, which had for so long been following a fox-fire, rose up, invigorated by the prospect of final success, and all day they slipped forward through trails which they could not have found alone. They marched with the swiftness of the final spurt, and at nightfall lay under cover, feasting their eyes on a column of smoke which rose from a canyon where the enemy lay in fancied security. The captives had done their work well, once they had undertaken it, but the onslaught must be sudden. There must be no time given to slaughter the American prisoners whom Rosario was carrying north with him as a present for Aguinaldo.

They could but admire the sagacity with which the enemy had selected his lair. They must attack through two high-walled gorges where machine-guns waited to mow them down. But the *Americanos* meant to reach those guns before they were discovered, and after that the impregnable strong-hold would become a trap without exits.

The column had therefore divided, each section taking a guide. The guides, with bayonets at their backs as reminders of their mission, had gone forward and with passwords bespoken the sentries, whose voices had been choked off in the pitchy darkness before they could give outcry.

Then came the mountain yell, but it came only from the narrower gorge, and it was accompanied by musketry which the steep walls echoed and re-echoed. The flood of flight surged into a wave of disorganized rout toward the other opening—where it fell back in broken spray from volley and bayonet. Useless now were the machine-guns; worse than useless the impregnable walls of rock. The insurgent forces, remembering their red iniquities, asked no terms or quarter, but hurled themselves on the bayonets and went down in the close chaos of bolo and clubbed musket. "And luckiest of them that fell, were those of them that died."

It was a little keyhole picture of red and black inferno, while it lasted, but it did not last long.

Yet, of General Rosario and his white prisoners there was no trace. That wily leader had gone on with a small escort before nightfall, and no one was left to tell what direction he had taken.

So it happened that when the two survivors of the ambushade came tottering into the camp which they had hoped to reach much sooner, they found the main detachment just leaving. Had it not been belated by the delay of the successful expedition into the hills, it would have passed this point twenty-four hours ago, and the half-dead refugees would have been too late.

It had taken Henry Falkins and Newt Spooner two days instead of one to cover that ten miles of *bosque*. They had come staggering, sometimes gibbering, and rarely were both of them sane. Sometimes they raved in duet, but during the first day Newt kicked and pummeled his superior forward as long as he could walk. After that, he carried, dragged and rolled the limp figure, obsessed only by the fixed idea that he had a package to deliver somewhere "over yon." Frequently he forgot that the package was a thing of life. Frequently, too, he madly beat it and swore at it, but always he worked it forward, falling time after time to rise again and stumble ahead. Then Newton Spooner became a thing without consciousness, and a faint

spark of realization flickered back into the murk of the major's brain, and laid on his sick soul the same necessity. That day, or part of it, he dragged and carried and kicked. At last, with neither fully conscious, they linked arms about each other's shoulders, gazed at each other with wild, agonized eyes, mumbled at each other with swollen tongues, and shambled, crawled and hitched along together.

Between two cots in the village at the mountains' edge the wife of Major Falkins vibrated like a pendulum for several days, and when the commanding officer's tongue became again a thing which he could lift and command he told her of his rescue by the boy who had taken a blood-oath against him, but he told nothing of the episode in which the sergeant had debated the fulfilment of his vow.

Later, when the company had marched back to its headquarters in the town with the church, Mrs. Falkins drew a glowing picture of heroism in a letter which she wrote home to the States. The colonel, her father, in due time received it, and it found its way into news column and editorial, and was duly read by many persons.

"Clem's gal," no longer at the mountain college, but studying at the State University in Lexington with the scholarship that she had won, was one of the many. She read in the little dormitory room overlooking the quiet campus. She had come here to prepare herself for a return to the mountain school as a teacher, and when next she went back to the Cumberlands the paper went with her, that the prophet might have honor at home.

It was October, and she had been summoned by the illness of her step-mother. Now, as the girl rode along the creek-bed roads, the hills were flaunting their watch-fires of autumn, and the horizon wore its veil of Indian-summer softness. Clem had met her in Jackson with his nag, and she was riding, mountain-fashion, on a pillion behind him. Her father was battered and disheveled, and about his clothes clung the smoke-house odor of the windowless cabin with its log fire, but there also clung about the vaulting slopes and ruggedly beautiful ravines the fragrance of the fall, and

the girl could not find it in her heart to feel gloomy, even though she was exchanging the wholesome life of the university for the squalor of the cabin. Thanks to Newt, she had her room, where she could withdraw as into her own castle. She felt almost gay, and, as she thought of the room which a rude, sullen-eyed boy had reared for her with his calloused hands, her eyes grew soft like the horizons. That boy, too, had been away into the world, and had become a hero. Presumably he was mending his broken life.

The old horse plodded slowly and sometimes the girl slipped down and walked alongside. Clem had little conversation after he had told how "porely" the step-mother was. "He reckoned hit all come about from gittin' dew-pizenen." But, as they made the trip, the girl recited to him the news from the far-away islands.

The man listened stolidly, and at the end inquired:

"Did I onderstand ye rightly, M'nervy? War Henry Falkins ther feller he saved?"

When the information was confirmed, he ejaculated in wonderment:

"Well, doggone my ornery skin! Hit seems like jest yestiddy thet Newty lit out acrost these-hyar hills, hell-bent on lay-wayin' Henry Falkins fer a-penitensheryin' him."

Then Minerva remembered the lad's face when she had told of Henry Falkins awarding her medal, and for the first time she understood.

Back in the town with the church the months went by with routine of garrison duty and periods of fevered activity.

The energetic Rosario had for a time lain dormant after the paralyzing blow which had obliterated so large a portion of his command, but as the natives began to evince a growing confidence in the protecting hand of the American government, the general bestirred himself, and once more tidings of his atrocities drifted into headquarters. During these months there passed between Sergeant Newton Spooner and his major no reference to the

morning in the jungle when the last echo of the old threat had found expression.

It was as though, on this subject, the lips of each were sealed by oath, but Sergeant Spooner went about his work with a smart and soldierly alacrity that kept the men of his company always on their toes. When there was trying work to do the commanding officer found himself instinctively turning to that company, and since the company responded to its top-sergeant like a muscle to a nerve, that meant that he turned to Newton Spooner.

Then came an epidemic of outrage.

Villages with *Americanista* *presidentes* went up in smoke. Haciendas of loyal Spaniards and Ilacanos were raided, and their people put to the bolo. With the wild stories of Rosario's activity that drifted in, there came persistently the fame of a white man who stood at the Filipino's right hand, giving him counsel. The rumor added that this man was a deserter from the American army. The truth or falsity of that allegation did not particularly interest the 26th Volunteer Infantry. The 26th from its Shirt-tailed beginnings had been stainless of the reproach of desertion. If other commands had been less fortunate it was not their affair. But it was very much their affair that, when they ran down a band of guerillas and closed with them, they encountered more numerous casualties, because someone had been teaching the brown men how to fight and shoot as they had never in their lives fought and shot before.

It very closely concerned the 26th Volunteer Foot that the game of war was being taught their foes by a renegade who had learned it under their own colors.

But the insult, set upon injury, came one day with a grim humor that was to have an even grimmer sequel.

The telegraph operator at a near-by village was passing the time of day with the S. C. man at the headquarters key. Suddenly the instrument went dead with a splutter, and, while the headquarters operator tested and cursed, it remained stubbornly dumb. The line had been cut again.

Before a detachment could be despatched to follow the wire to the break, the instrument set up a buzz, and the buzz became Morse code. As the astonished operator read the dots and dashes this message was clicked out to him: "General José Rosario, in passing, presents his compliments and hopes to report other mementos in near future."

Obviously the wire had been grounded and the message sent by the enemy himself at some point where he had tapped it with a field-transmitter. That must be the work of the renegade—presumably a Signal Code deserter, and yet though the *bosque* was combed for days by peeved and eager soldiery, no sign of a hostile force was found. Newton Spooner and a squad of scouting men came upon a muddy spot in the *bijuca* tangle where a number of feet had trod, and, though the top-sergeant noted the print of a service boot, he said nothing of the circumstance—at the time.

But while Newt said nothing he thought much. Keeping to himself, he was fighting a battle which one way or the other must prove decisive in his nature. He knew that he was facing a conclusion which could not be lightly turned aside, and which could not be met without harrowing his soul. To fail to face a certain specter which had unexpectedly arisen would be to brand himself in the tribunal of his own inner consciousness as a traitor to the service. To face it and accept the consequences that might, and probably would, arise, would be to put behind him and trample under foot the code of the mountains, and to confess that all his preconceived ideas of life had been distorted and without value.

Two deep-rooted impulses were wrestling with a ferocity that made the boy's soul a battle-ground, torn, scarred and utterly miserable. The chaplain had preached a sermon on Golgotha, and had told how the Master had gone to the Place of a Skull, and had fought there with the spirit. Newton Spooner was not the man for prayer or fasting, yet he fasted because his palate revolted against the rations, in the torture of indecision that racked him.

And as he could not eat, so also he could not sleep and the wide eyes which stared at the walls beyond his cot were eyes that burned with feverish misery. Whether or not one is to become an Iscariot is a problem that must bring its agony, an agony beyond the appeasement of thirty pieces of silver.

But when the problem so complicates itself that instead of being merely a problem it is a dilemma, and not only a dilemma, but the dilemma of choosing between proving an Iscariot to one's code or to one's country, the matter is one which may well unbalance a brain already depleted and jumbled of perspective by steaming jungles and the assaults of the tropics on one's sanity.

There was no one to whom Sergeant Spooner could go for counsel. To every man comes one black night that tests the metal of his soul, and makes or brands him with its result. It is a night when the furies ride shrieking, and when the border between the man and the madman wavers. He may not know it, but the dawn that comes at the end of such a night breaks on a soul that has accepted its damnation or has liberated itself and transformed itself.

About the garrison, Sergeant Newton Spooner bore a face in which the eyes were sunken and about whose lips ran deep lines of travail. In his duties he was prompt and smart, but that was the ingrained training, which had reached a state where it responded automatically to routine. As he tossed on his cot, he suffered agonies and when he fell asleep it was not for rest, but for nightmare. His dreams were harassed with a bitter problem and what the end was to be hung in the balance. Dreams are precarious and lawless, yet it was in the end a dream which decided him.

Just before he was aroused one morning he fell into a feverish slumber, following a wakeful night, and to him, as to many men before him, a vision came.

Minerva seemed to stand before the regimental band at dress-parade. She waved the flag and said, in a voice which no one else heard:

"The soldier serves his colors."

It happened that about the same time the *mestiza* girl whom Sergeant-Major Peter Spooner had honored with his attentions, before he had fallen into the villainous hands of Rosario, came back to the town. She did not remain long, and her face was sad. She had come, she confided to Mrs. Falkins, hoping to see the great, brave soldier, and, when she was told of how he had died, her sobs tore her until the spectacle of her grief was insupportable.

Then Newton Spooner did an unprecedented thing. Unversed as he was in the ways of courtship, he dogged the steps of the *mestiza* girl, fetching and carrying for her with doglike devotion.

And, since he was willing, instead of pressing his own suit, to sing the praises of the late sergeant-major, she let him sit at the threshold of her nipa house, and gaze at her while she sewed. When she went away and Sergeant Spooner asked a brief leave of absence to accompany her on a part of her return journey, the men of the garrison shook their heads and announced that they would be damned.

CHAPTER XXIV

Newt Spooner was gone a week, though he had only announced it as his purpose to escort the girl as far as a near-by village.

In three days more, according to the articles of war, his name must be dropped from the company roll, and his status become that of death or desertion. Even if he came back at once, he must face the lesser charge of absence beyond leave.

When the sergeant did return, he bore the marks of jungle travel, and as he reported to his company commander, his face indicated that his explanation would not be merely personal.

Yet Sergeant Spooner was secretive, and asked permission to guide a small force into the hills. He said that he had come upon evidence which would not wait, and he had, therefore, taken the liberty of following it up independently. He believed he could lead a detachment to a place where a party of insurgents were in hiding, and—at this his captain sat up and took notice—although it was a small party, he had information which led him to believe the renegade might be one of the number.

But for such an enterprise Newton Spooner's superiors required no urging. The sergeant said that no considerable force could hope to reach the place unheralded, so two picked squads stole out that same evening, and before dawn of the third day (for they marched only at night and lay hidden while the sun shone) were creeping through the long grass upon a native farm where two nipa houses proclaimed the presence of humanity. They crept cautiously, for though the place had all the seeming of private and peaceful domiciles, they had learned to distrust appearances and to trust Sergeant Newt Spooner's judgment. The spot was very wild and desolate, lying remote from any village. In the gray mists between night and morning it seemed a land of ghosts, with broken hills and jungle closing about it.

As daylight crept to the east, soldiers stood silent and patient at each door and window of each house. It was a strange disposition of troops about

thatched houses that lay soundless and wrapped in profound slumber. The lieutenant who had come in command stood at the right of the front door of the larger house, and over against him, on the left, stood Newt Spooner. But each stood with back pressed to wall, so flattened against the uprights that, in that dim light, one coming out of the door would pass them by unseeing. And at each of the other openings the watchers were likewise flattened as though they had been figures in bas-relief fantastically wrought by the builder.

They stood without sound or movement, until, as the light strengthened a little, the door opened and a *mestiza* girl in slippered feet and partial attire came out, carrying an earthen water-vessel. As she crossed the threshold, looking neither to right nor left, New Spooner's tight-pressed palm shot out and silenced her carmine lips. The officer recognized the girl. He had himself recently turned away unable to watch her sobs for her dead lover, and now he felt an impulse to resent this rough indignity at the hands of the sergeant. But something in the sergeant's face gave him pause, and at the same moment Newt Spooner sternly whispered to his prisoner in Spanish:

"Call him—call him, I tell you!"

For an instant, the girl stood trembling from head to foot, with dumb agony in her eyes. It was evident that she was facing the hardest crisis of her life, and that terror was dominant. As Newt bent forward with threatening hardness in his relentless face, she shrank back against the wall, bowing her head in forced assent, and with the soldier's strong hand still close enough to stifle any unwished-for outcry, she called in quavering, heart-broken Spanish:

"Beloved, come to me. Come *pronto!*"

There followed, at once, a sound of bare feet from inside, and a gigantic, half-clad figure appeared anxiously at the door. It was the figure of a white man; and, as the lieutenant caught its shoulder, and threw his revolver muzzle to its broad chest, he found himself looking into the grave eyes of former Sergeant-Major Peter Spooner, late of the 26th Volunteers.

For an instant, the officer stood too dazed to credit the testimony of his eyes, but, while the Deacon glanced down the barrel of Newt's leveled rifle,

and shrugged his shoulders with a low oath, the officer realized that he had under his hand the mysterious renegade.

And then, as the deserter, still gazing into the flinty face of his kinsman, raised his hands in surrender, he coolly turned toward the house, and shouted back in excellent Spanish:

"General, we are captives. Resistance is useless."

In answer to that message, there shortly appeared, framed in the door, the startled countenance of the notorious Rosario himself. Once too often, he had trusted himself with those inconsiderable escorts which had enabled him to pass from place to place without attracting attention.

The detail made its march back to headquarters, taking its prisoners with it, in a semi-dazed condition. Against Rosario they felt little vindictiveness, now that he was captive to their arms. But this other, this sergeant-major who had organized most of them into soldiery back there in the Appalachian hills, with him there was a ghastly difference. He had been a hero, mourned as lost. He had taken the pay of the service and held its highest warrant—and he had been false to his salt, for those tin bars which they roughly stripped from his shoulders.

But, if the command was struck sick with astonishment, Black Pete himself treated them to no show of emotion. He had already considered and weighed what it meant to desert to the enemy in time of war, and he had been taken in attendance upon the enemy's district leader, wearing the enemy's livery. He was already, in effect, dead, and he meant to maintain the stolid silence of death.

And so the detachment marched into headquarters with the grim silence of a funeral cortège, though as yet the corpse walked upright and on its own feet.

No lips were tighter set, and no face more stonily expressionless than that of Sergeant Newton Spooner. His was the capture, his the credit—and, in part, the shame. Between himself and the man who must hang existed the bond of one blood and one name. The smirch upon the regiment was likewise a smirch upon that blood and name.

The struggle in himself had begun from the moment when he found the print of a large boot in the mud, and the disgrace to the service and the regiment had come home to him ... the one form of disgrace which he had ever understood. But the mental sweat was not yet over. It must have its ugly culmination at general court-martial, and when that time came he, Newt Spooner, must say the words upon which conviction would indubitably follow. He knew that in its hideous fulness, had known it from the start, and yet, when the hour came and he took the stand to testify, no voice could have been steadier, and no gaze more unflinching than that with which he held the eyes of the accused.

But the gaze with which the Deacon met his was in no wise weaker. As Black Pete listened to the proceedings in which his life-sands were running out, his eyes were thoughtful and perhaps a shade wistful, but undrooping, and unwavering.

The defendant testified that, when he was captured, they offered him choice between death and a captain's commission. He had chosen the latter. They took him north, and he had talked with Aguinaldo in person. The "President" had received him as an officer and a dignitary. He had beguiled him with hopes of foreign recognition and a filmy vision of ultimate success. The Deacon had held during his life one goal and one ideal. His dream was leadership. He had tired of the warrant of the "non-com." He wished to sit in council with men of higher rank. The experiment had failed. He made no plea.

The hearing before G.C.M. came after the regiment had left the town with the church. It was on a larger parade ground that the united battalions were drawn up at sunset, and the regimental adjutant stepped a pace forward to the colonel's side and "published the order," which announced that Peter Spooner was "to be hanged by his neck till dead."

The lines stood silent as the adjutant's words were read. Black Pete at "the front and center," to be seen of all men, presented a picture quite as uncompromising as he had ever presented before. His contemplative gray eyes bore straight to the front as he stood at attention, and in them slept a thoughtful expression, as though they were looking off beyond horizons

hidden to other men, and already piercing the opaque things of life and death.

And Newt Spooner gave his company front a motionless, sternly impersonal figure upon which to gaze. In neither condemned nor informer was there a vestige of tremor as the officers came to the "front and center" and the formation ended.

In the wet mists of a rainy morning, they escorted Black Pete to a scaffold around which ranged, in hollow square, the regiment he had betrayed—and there they hanged him high as Haman. Brooding hills looked down, rain-shrouded, and to their crests at the last moment the condemned man raised his eyes.

There was silence, save for the pelting of rain on iron roofs, until it was broken by noise of the falling trap and the low whip-like snap of the tautened rope. Then the burial detail went out and did its work. Sergeant Newton Spooner returned to his routine duties with a grim taciturnity which did not invite conversation.

It was at Manila, many months later, that Major Henry Falkins again called Sergeant Spooner to battalion headquarters, and spoke with a certain embarrassment:

"Spooner," he inquired slowly, "have you come to realize that one man may bear testimony against another for reasons other than spite?"

A slow flush, brick-red and hot, spread over the bronzed face of the non-commissioned officer.

"I've come to understand a good many things, sir," he replied gravely. "And I've paid for learning them."

"We'll be mustered out before long," suggested Henry Falkins, "but I won't be long out of uniform, I hope. I'm going to stay in the service. Once I promised you a chance—"

Newt Spooner grinned.

"I reckon the uniform's good enough for me, too, sir," he interrupted. Then he added, with a diffidence which all expression of deep feeling brings to the mountaineer: "I reckon, sir, as long as I can serve under you I'll go on reënlisting."

Falkins was a mountaineer, too. He hastily changed the subject.

"Commissions from the ranks are going to men less capable than you—but examinations must be passed. If you'll study, Spooner, I'd like to get behind you and help."

"I've never spoken of that to any man, sir, but I've been thinking about it," announced the sergeant diffidently. "I've been studying for eighteen months."

Not far from the corner of Main and Limestone Streets in Lexington, Kentucky, and almost in the shadow of the Phoenix Hotel, a poster on the sidewalk and a flag from an overhead window proclaimed that "Men were wanted for the United States Army." Out of the door of the building so decorated, one spring morning, when the trees were in delicate new leafage, came a sergeant attached to the recruiting station. He was selected, as many of these men are, for his soldierliness of appearance. Such men are the best advertisement the service can use, and it uses them.

The sergeant was not overly tall, and, though spare, he was by no means lean. His shoulders swung back squarely, and his chest, rounded and strong like a barrel, bore on its olive-drab blouse a sharp-shooter's cross and the Medal of Honor, which must be bestowed by an Act of Congress.

His face was clear-cut and bronzed by tropic sun and ocean winds. In fine, as the sergeant walked to the corner, casting his eyes up and down Limestone Street, he was an inspiring figure of a man—and a soldier man. He had for the time nothing better to do than to stroll, and as he strolled a flicker of reminiscent amusement brought a pleasant grin to his firm lips.

Sergeant Newt Spooner was thinking of the black-clad, lowering-faced boy who years ago hiked through this town, bent on assassination.

As he went along the historic street, where every square held traditions of ante-bellum days, he began to encounter other strollers, college lads in sweaters and caps, and college girls with books. But his eyes finally focused their gaze on a young woman who came out of a house and also turned up the street, walking ahead of him. She was a slim girl in simple gingham, but in her cheeks was an apple-blossom glow and delicacy, and her movements were informed with the lithe grace of out-of-doors. Newt wanted to overtake and accost her. He wanted to see if she would recognize him, changed as he was, as quickly as he had recognized her, who was even more changed.

For this girl looked like some splendid young blossom that had come to flower in open woods, and the soldier saw, with mingled pride and twinging jealousy, that all the boys and men who passed took off their hats with frank ardor in their eyes. This was such a metamorphosed Minerva that he fell into shyness and delayed announcing himself until they had reached the stone gate-posts of the rolling campus, where, under the maples, the macadam road wound up to the college buildings, and the old field-gun of civil-war days looked out over the cadets' drill-ground.

There he plucked up courage to call in a low voice, "M'nervy!" and at the mountain pronunciation, coming unexpectedly from behind, the girl wheeled and stood for a moment, confronting him in a pretty picture of delight and astonishment, while a warm color stole into her cheeks.

"Newty!" she cried, as she held out both hands in greeting. "Where in the world did you spring from?"

They stood there under the maples for a while, and the boy made her talk of herself, and, while they talked, a man, wearing the uniform of a lieutenant of infantry, came down the walk. He was a likeable-looking fellow, well set-up and soldierly, but very young. From his campaign hat to his polished puttees, he was new, new like the lately minted coin that has not long circulated. Lieutenant March was not long from the "Point," and he was at present stationed here as Commandant at the University. The sergeant, with his back turned that way, was deep in conversation with the girl, so that, as

he heard a pleasant voice saying, "How are you, Miss Rawlins," he turned just in time to see the officer's lifted hat, and to catch the smile on his lips. But his soldier instinct was now second nature, and in the same glance he saw the "U.S.A." of the collar-ornaments.

At once, Sergeant Newt Spooner stood at attention, his heels together and his hand at his hat-brim in salute. The officer, too, was taking in those things which military men observe. He saw the service stripes and the two medals on the breast, and his eyes brightened. As he returned the salute he cheerily inquired:

"What command, sergeant?"

"Fifty-ninth Infantry, sir; late of the 26th Volunteers."

"Here on leave?"

"Recruiting detail, sir."

The officer's eyes were dwelling on the decorated breast.

"Medal of Honor man," he said. "What service was that, sergeant?"

The girl, whose less-trained eyes had not recognized the import of the little metal disc, flushed with pleasure. Newt flushed, too. It irked him to talk about himself; but the military ethics were ingrained, and he still stood upright, and answered respectfully, but as briefly as possible:

"The islands, sir. Province of Nueva Ecija." When the lieutenant had gone, the sergeant looked down in an embarrassed fashion at the white road.

"Minerva," he said, "I don't know whether it interests you, but I'm studying pretty hard myself. That's why I asked for this detail. That and one other reason. I'm only a non-commissioned officer, and you're almost a school-teacher. I'm on the wrong side of the line, but I've applied for an examination, and, when this term of enlistment is up I've got a good chance of a commission." He saw her looking at his medal, and heard her saying:

"I should think you would have, Newty."

"Oh," he hastened to tell her, "I mean that I've got an influential friend, who's going to help me."

"Who is that, Newty?" she demanded; and, as he answered, the young sergeant flushed.

"The best soldier in the service, Colonel Henry Falkins."

The girl looked down at the pavement and then up at the tender green of the maples. Her only reply was a low, "Oh!" but her voice said more, and presently she added a question:

"You said, Newty—" her eyes now held a challenging twinkle as she spoke—"that there was one other reason why you asked for this—what do you call it?—oh, yes, I know, this detail. What was that reason?"

The sergeant raised his face, and held her eyes with a steady gaze, until her own eyes fell, and her cheeks grew more rosy.

"That reason," he announced boldly, "is that I want plenty of chance to tell you what the reason is."

THE END

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Colored frontispiece by John Rae.

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A story of Canadian prairies in which the hero is stirred, through the influence of his love for a woman, to settle down to the heroic business of pioneer farming.

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One of the best stories of life in a girl's college that has ever been written. It is bright, whimsical and entertaining, lifelike, laughable and thoroughly human.

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Patty is full of the joy of living, fun-loving, given to ingenious mischief for its own sake, with a disregard for pretty convention which is an unfailing source of joy to her fellows.

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One of the most beautiful studies of childhood—Rebecca's artistic, unusual and quaintly charming qualities stand out midst a circle of austere New Englanders. The stage version is making a phenomenal dramatic record.

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Additional episodes in the girlhood of this delightful heroine that carry Rebecca through various stages to her eighteenth birthday.

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By Annie Hamilton Donnell.
Illustrated by Elizabeth Shippen Green.

This author possesses the rare gift of portraying all the grotesque little joys and sorrows and scruples of this very small girl with a pathos that is peculiarly genuine and appealing.

EMMY LOU, Her Book and Heart,
By George Madden Martin.
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Emmy Lou is irresistibly lovable, because she is so absolutely real. She is just a bewitchingly innocent, hugable little maid. The book is wonderfully human.

STORIES OF RARE CHARM BY GENE STRATTON-PORTER

THE HARVESTER

Illustrated by W. L. Jacobs

"The Harvester," David Langston, is a man of the woods and fields, who draws his living from the prodigal hand of Mother Nature herself. If the book had nothing in it but the splendid figure of this man, with his sure grip on life, his superb optimism, and his almost miraculous knowledge of nature secrets, it would be notable. But when the Girl comes to his "Medicine Woods," and the Harvester's whole sound, healthy, large outdoor being realizes that this is the highest point of life which has come to him—there begins a romance, troubled and interrupted, yet of the rarest idyllic quality.

FRECKLES.

Decorations by E. Stetson Crawford.

Freckles is a nameless waif when the tale opens, but the way in which he takes hold of life; the nature friendships he forms in the great Limberlost Swamp; the manner in which everyone who meets him succumbs to the charm of his engaging personality; and his love-story with "The Angel" are full of real sentiment.

A GIRL OF THE LIMBERLOST.

Illustrated by Wladyslaw T. Brenda.

The story of a girl of the Michigan woods; a buoyant, lovable type of the self-reliant American. Her philosophy is one of love and kindness towards all things; her hope is never dimmed. And by the sheer beauty of her soul, and the purity of her vision, she wins from barren and unpromising surroundings those rewards of high courage.

It is an inspiring story of a life worth while and the rich beauties of the out-of-doors are strewn through all its pages.

AT THE FOOT OF THE RAINBOW.

Illustrations in colors by Oliver Kemp.

Design and decorations by Ralph Fletcher Seymour.

The scene of this charming, idyllic love story is laid in Central Indiana. The story is one of devoted friendship, and tender self-sacrificing love; the friendship that gives freely without return, and the love that seeks first the happiness of the object. The novel is brimful of the most beautiful word painting of nature, and its pathos and tender sentiment will endear it to all.

MYRTLE REED'S NOVELS

LAVENDER AND OLD LACE.

A charming story of a quaint corner of New England where bygone romance finds a modern parallel. The story centers round the coming of love to the young people on the staff of a newspaper—and it is one of the prettiest, sweetest and quaintest of old fashioned love stories, * * * a rare book, exquisite in spirit and conception, full of delicate fancy, of tenderness, of delightful humor and spontaneity.

A SPINNER IN THE SUN.

Miss Myrtle Reed may always be depended upon to write a story in which poetry, charm, tenderness and humor are combined into a clever and entertaining book. Her characters are delightful and she always displays a quaint humor of expression and a quiet feeling of pathos which give a touch of active realism to all her writings. In "A Spinner in the Sun" she tells an old-fashioned love story, of a veiled lady who lives in solitude and whose features her neighbors have never seen. There is a mystery at the heart of the book that throws over it the glamour of romance.

THE MASTER'S VIOLIN.

A love story in a musical atmosphere. A picturesque, old German virtuoso is the reverent possessor of a genuine "Cremona." He consents to take for his pupil a handsome youth who proves to have an aptitude for technique, but not the soul of an artist. The youth has led the happy, careless life of a modern, well-to-do young American and he cannot, with his meagre past, express the love, the passion and the tragedies of life and all its happy phases as can the master who has lived life in all its fulness. But a girl comes into his life—a beautiful bit of human driftwood that his aunt had taken into her heart and home, and through his passionate love for her, he learns the lessons that life has to give—and his soul awakes.

Founded on a fact that all artists realize.

ZANE GREY'S NOVELS

THE LIGHT OF WESTERN STARS

Colored frontispiece by W. Herbert Dunton.

Most of the action of this story takes place near the turbulent Mexican border of the present day. A New York society girl buys a ranch which becomes the center of frontier warfare. Her loyal cowboys defend her property from bandits, and her superintendent rescues her when she is captured by them. A surprising climax brings the story to a delightful close.

DESERT GOLD

Illustrated by Douglas Duer.

Another fascinating story of the Mexican border. Two men, lost in the desert, discover gold when, overcome by weakness, they can go no farther. The rest of the story describes the recent uprising along the border, and ends with the finding of the gold which the two prospectors had willed to the girl who is the story's heroine.

RIDERS OF THE PURPLE SAGE

Illustrated by Douglas Duer.

A picturesque romance of Utah of some forty years ago when Mormon authority ruled. In the persecution of Jane Withersteen, a rich ranch owner, we are permitted to see the methods employed by the invisible hand of the Mormon Church to break her will.

THE LAST OF THE PLAINSMEN

Illustrated with photograph reproductions.

This is the record of a trip which the author took with Buffalo Jones, known as the preserver of the American bison, across the Arizona desert and of a hunt in "that wonderful country of yellow crags, deep canons and giant pines." It is a fascinating story.

THE HERITAGE OF THE DESERT

Jacket in color. Frontispiece.

This big human drama is played in the Painted Desert. A lovely girl, who has been reared among Mormons, learns to love a young New Englander. The Mormon religion, however, demands that the girl shall become the second wife of one of the Mormons—

Well, that's the problem of this sensational, big selling story.

BETTY ZANE

Illustrated by Louis F. Grant.

This story tells of the bravery and heroism of Betty, the beautiful young sister of old Colonel Zane, one of the bravest pioneers. Life along the frontier, attacks by Indians, Betty's heroic defense of the beleaguered garrison at Wheeling, the burning of the Fort, and Betty's final race for life, make up this never-to-be-forgotten story.

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